



Western Australia

Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Regulations 2007

Compare between:

[12 14 Jul 2017 2010, 0206-g0-0005] and [01 Jul 2018 Oct 2010, 0206-h0-0002]

~~Dangerous Goods~~Occupational Safety and Health Act 2004~~1984~~

Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Regulations 2007

~~An Act to promote and improve standards for occupational safety and health, to establish the Commission for Occupational Safety and Health, to provide for a tribunal for the determination of certain matters and claims, to facilitate the coordination of the administration of the laws relating to occupational safety and health and for incidental and other purposes.~~

~~———— [Long title amended by No. 30 of 1995 s. 4; No. 74 of 2003 s. 87(2); No. 51 of 2004 s. 62.]~~

Part 1 — Preliminary

Division 1 — Introductory

1. Citation

~~———— These regulations are [Heading inserted by No. 43 of 1987 s. 4.]~~

1. Short title

~~———— This Act may be cited as the *Dangerous GoodsOccupational Safety (Road and Rail Transport of Non-explosives) Regulations 2007**Health Act 1984*¹.~~

~~[Section ¹ amended by No. 30 of 1995 s. 5.]~~

2. Commencement

~~These regulations~~ ~~The provisions of this Act shall~~
come into operation ~~as follows:~~ ~~on such day or days as is or are~~
~~respectively fixed by proclamation¹.~~

(a) regulations 1 and 2 — on the day on which these regulations³. ~~Terms used~~

~~(1) In this Act unless the contrary intention appears —~~

~~**appointed member** means a member of the Commission~~
~~referred to in section 6(2)(a) or (d);~~

~~**apprentice** means a person who is an apprentice under a training~~
~~contract registered under the *Vocational Education and*~~
~~*Training Act 1996* Part 7 Division 2;~~

~~**Australian Standard** means a document having that title~~
~~published by Standards Australia International Limited~~
~~(ACN 087 326 690);~~

~~**Australian/New Zealand Standard** means a document having~~
~~that title published jointly by —~~

~~(a) Standards Australia International Limited~~
~~(ACN 087 326 690); and~~

~~(b) the Standards Council of New Zealand;~~

~~**chairperson** means the chairperson of the Commission;~~

~~**code of practice** means a code of practice approved by the~~
~~Minister under Part VIII;~~

~~**Commission** means the Commission for Occupational Safety~~
~~and Health established under this Act;~~

~~**Commissioner** means the person holding office as WorkSafe~~
~~Western Australia Commissioner under section 9;~~

~~**Commissioner of Police** means the person holding the office of~~
~~Commissioner of Police under the *Police Act 1892*;~~

~~**department** means the department of the Public Service of the~~
~~State principally assisting the Minister in the administration of~~
~~this Act;~~

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~~———— **employee** means ———~~

~~———— (a) a person by whom work is done under a contract of employment; or~~

~~———— (b) an apprentice;~~

~~———— **employer** means ———~~

~~———— (a) a person that employs an employee under a contract of employment; and~~

~~———— (b) in relation to an apprentice, a person who employs the apprentice under a training contract registered under the Vocational Education and Training Act 1996 Part 7 Division 2;~~

~~———— **hazard**, in relation to a person, means anything that may result in ———~~

~~———— (a) injury to the person; or~~

~~———— (b) harm to the health of the person;~~

~~———— **import** means to bring into the State, whether from outside Australia or otherwise;~~

~~———— **improvement notice** means an improvement notice issued under Part VI;~~

~~———— **inspector** means an inspector appointed under section 42, and subject to section 42B(3), includes a restricted inspector appointed under section 42A;~~

~~———— **plant** includes any machinery, equipment, appliance, implement, or tool and any component or fitting thereof or accessory thereto;~~

~~———— **practicable** means reasonably practicable having regard, where the context permits, to ———~~

~~———— (a) the severity of any potential injury or harm to health that may be involved, and the degree of risk of it occurring;~~

~~———— (b) the state of knowledge about ———~~

~~———— (i) the injury or harm to health referred to in paragraph (a);~~

-
- ~~(ii) the risk of that injury or harm to health occurring; and~~
- ~~(iii) means of removing or mitigating the risk or mitigating the potential injury or harm to health;~~
- ~~and~~
- ~~(c) the availability, suitability, and cost of the means referred to in paragraph (b)(iii);~~
- ~~**prescribed law** means a law prescribed for the purposes of section 14(1)(b);~~
- ~~**prohibition notice** means a prohibition notice issued under Part VI;~~
- ~~**provisional improvement notice** means a provisional improvement notice issued under Part VI Division 2;~~
- ~~**risk**, in relation to any injury or harm, means the probability of that injury or harm occurring;~~
- ~~**safety and health committee** means a safety and health committee established under Part IV Division 2;~~
- ~~**safety and health magistrate** means a person holding office as a safety and health magistrate under section 51B;~~
- ~~**safety and health representative** means a safety and health representative elected under Part IV Division 1;~~
- ~~**self-employed person** means an individual who works for gain or reward otherwise than —~~
- ~~(a) under a contract of employment; or~~
- ~~(b) as an apprentice;~~
- ~~whether or not the individual is an employer;~~
- ~~**supply**, in relation to any plant or substance, includes supply and re-supply by way of —~~
- ~~(a) sale (including by auction), exchange, lease, hire, or hire-purchase, whether as principal or agent;~~
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~~———— (b) the disposal in a manner referred to in paragraph (a) of
assets of a business that include any plant or substance;
and~~

~~———— (c) the disposal of all of the shares in a company that owns
any plant or substance;~~

~~———— **trade union** means ———~~

~~———— (a) an organisation registered under section 53 of the
Industrial Relations Act 1979; or~~

~~———— (b) an organisation registered under the *Industrial Relations
Act 1988*² of the Parliament of the Commonwealth and
having employees as its members, or a branch of any
such organisation;~~

~~———— **transferred law** means a law or a provision of a law transferred
to the administration of the Minister pursuant to an order under
this Act;~~

~~———— **Tribunal** has the meaning given to that term in section 51G(2);~~

~~———— **WA Police** means the Police Force of Western Australia
provided for by the *Police Act 1892*;~~

~~———— **workplace** means a place, whether or not in an aircraft, ship,
vehicle, building, or other structure, where employees or
self-employed persons work or are likely to be in the course of
their work.~~

~~———— (2) Anything that, under this Act, is required to be served on, or
otherwise done in relation to, an employer in relation to a
workplace or a matter related to a workplace, is deemed to have
been so served or done if it is served on, or done in relation to, a
person at the workplace who has or reasonably appears to have
responsibility for the management or control of the workplace.~~

~~———— (3) For the purposes of sections 18A, 19A(2), 20A(2), 21A(2),
21C(2), 22A(2), 23AA(2), 23B(2) and 23H(2), a contravention
causes serious harm to a person if it causes any bodily injury to
the person, or causes the person to have a disease, of such a
nature as to ———~~

~~———— (a) endanger, or be likely to endanger, the person's life; or~~

~~_____ (b) result, or be likely to result, in permanent injury or harm
to the person's health.~~

~~_____ (4) For the purposes of this Act, a police officer is to be treated as
an employee of the Crown and the Crown is to be treated as the
employer of a police officer.~~

~~_____ (5) Without limiting any other provision of this Act, a police officer
is at work during any period of time when the officer is
performing a function of a police officer, whether or not the
officer is rostered on duty and, in relation to a police officer, the
expressions "work" and "at work" are to be construed
accordingly.~~

~~_____ [Section 3 amended by No. 43 of 1987 s. 5; No. 30 of 1995 s. 6;
No. 79 of 1995 s. 67(5); No. 54 of 2002 s. 4; No. 74 of 2003
s. 87(3); No. 51 of 2004 s. 14, 38, 63, 73 and 104; No. 8 of 2008
s. 15 and 23(5); No. 44 of 2008 s. 57; No. 36 of 2009 s. 4.]~~

3A. — Penalty levels defined

~~_____ (1) Where a person is liable to a level one penalty for an offence
against this Act the person is liable —~~

~~_____ (a) if the offence was committed by the person as an
employee —~~

~~_____ (i) for a first offence, to a fine of \$5 000; and~~

~~_____ (ii) for a subsequent offence, to a fine of \$6 250;~~

~~_____ (b) if paragraph (a) does not apply —~~

~~_____ (i) in the case of an individual —~~

~~_____ (I) for a first offence, to a fine of \$25 000;
and~~

~~_____ (II) for a subsequent offence, to a fine of
\$31 250;~~

~~_____ or~~

~~_____ (ii) in the case of a body corporate —~~

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- ~~_____ (I) for a first offence, to a fine of \$50 000;
and~~
- ~~_____ (II) for a subsequent offence, to a fine of
\$62 500.~~
- ~~— (2) Where a person is liable to a level 2 penalty for an offence
against this Act the person is liable —~~
- ~~_____ (a) in the case of an individual —~~
- ~~_____ (i) for a first offence, to a fine of \$100 000; and~~
- ~~_____ (ii) for a subsequent offence, to a fine of \$125 000;~~
- ~~_____ or~~
- ~~_____ (b) in the case of a body corporate —~~
- ~~_____ (i) for a first offence, to a fine of \$200 000; and~~
- ~~_____ (ii) for a subsequent offence, to a fine of \$250 000.~~
- ~~— (3) Where a person is liable to a level 3 penalty for an offence
against this Act the person is liable —~~
- ~~_____ (a) in the case of an individual —~~
- ~~_____ (i) for a first offence, to a fine of \$200 000; and~~
- ~~_____ (ii) for a subsequent offence, to a fine of \$250 000;~~
- ~~_____ or~~
- ~~_____ (b) in the case of a body corporate —~~
- ~~_____ (i) for a first offence, to a fine of \$400 000; and~~
- ~~_____ (ii) for a subsequent offence, to a fine of \$500 000.~~
- ~~— (4) Where a person is liable to a level 4 penalty for an offence
against this Act the person is liable —~~
- ~~_____ (a) in the case of an individual —~~
- ~~_____ (i) for a first offence, to a fine of \$250 000 and
imprisonment for 2 years; and~~
- ~~_____ (ii) for a subsequent offence, to a fine of \$312 500
and imprisonment for 2 years;~~
- ~~_____ or~~

- ~~———— (b) — in the case of a body corporate —~~
~~———— (i) — for a first offence, to a fine of \$500 000; and~~
~~———— (ii) — for a subsequent offence, to a fine of \$625 000.~~
~~———— [Section 3A inserted by No. 51 of 2004 s. 15.]~~

~~3B. — Offences, first and subsequent~~

- ~~———— (1) — In this section —~~
~~———— *relevant day* means the day on which section 15 of the~~
~~*Occupational Safety and Health Legislation Amendment and*~~
~~*Repeal Act 2004*⁺ comes into operation.~~
~~———— (2) — For the purposes of this Act —~~
~~———— (a) — an offence is a first offence committed by a person if, at~~
~~the time when the offence is committed, the person has~~
~~not previously been convicted of any offence against this~~
~~Act committed on or after the relevant day; and~~
~~———— (b) — an offence is a subsequent offence committed by a person~~
~~if, at the time when the offence is committed, the person~~
~~has previously been convicted of one or more offences~~
~~against this Act committed on or after the relevant day.~~
~~———— [Section 3B inserted by No. 51 of 2004 s. 15.]~~

~~4. — Application of this Act~~

- ~~———— (1) — This Act binds the Crown in right of the State and also, so far as~~
~~the legislative power of the State extends, in all its other capacities.~~
~~———— (1a) — The functions that the Crown has under this Act because a police~~
~~officer is to be treated as an employee of the Crown are, so far as~~
~~they concern a police officer, to be performed by the~~
~~Commissioner of Police.~~
~~———— (1b) — This Act has effect subject to any instrument for the time being~~
~~in force under section 6A of the *Mines Safety and Inspection*~~
~~*Act 1994.*~~

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- ~~— (2) Subject to this section and except as may be otherwise expressly provided by Parliament, this Act does not apply to or in relation to a workplace —~~
- ~~— (a) that is, or at which work is carried out on, a mine to which the *Mining Act 1978*, or the *Mines Safety and Inspection Act 1994*, applies;~~
- ~~— (b) at which a petroleum operation or geothermal energy operation, as defined in section 5(1) of the *Petroleum and Geothermal Energy Resources Act 1967*, is carried on;~~
- ~~— (c) at which a pipeline operation, as defined in section 4(1) of the *Petroleum Pipelines Act 1969*, is carried on; or~~
- ~~— (d) at which an offshore petroleum operation, as defined in section 4 of the *Petroleum (Submerged Lands) Act 1982*, is carried on.~~
- ~~— (2a) Subsection (2) does not prevent a provision of Part II from applying in relation to a workplace that is, or at which work is carried out on, a mine to which the *Mining Act 1978*, or the *Mines Safety and Inspection Act 1994*, applies.~~
- ~~— (3) The Minister and the Minister for the time being administering the Act referred to in subsection (2) that is concerned may, by instrument in writing, jointly declare that this Act, or such provision of or under this Act as is specified in the instrument shall, for such period as is described in the instrument, apply to or in relation to a workplace referred to in subsection (2), or any part of such workplace that is specified in the instrument.~~
- ~~— (4) On the service of a copy of the instrument mentioned in subsection (3) on an employer that would be subject to a duty under this Act if this Act applied in accordance with the instrument, this Act shall so apply in relation to the workplace or part of a workplace concerned to the exclusion of any inconsistent provision of or under the Act referred to in subsection (2) that is concerned.~~

~~(5) A copy of each instrument under subsection (3) shall be published in the *Gazette*; as soon as practicable after the instrument is made and before it is so published a person, other than the employer served with the instrument under subsection (4), that is subject to a provision of or under this Act by reason of that subsection is not guilty of an offence against a provision of or under this Act if the person proves that the person did not know, and could not reasonably be expected to have known, that the provision so applied.~~

~~(b) the rest of the regulations — on the day on which the Act Part 3 comes into operation¹.~~

3. Main objects

~~The main objects of these regulations are —~~

~~(a) to set out the obligations of persons involved in the transport of dangerous goods by road or rail; and~~

~~(b) to reduce as far as practicable the risks to people, property and the environment — [Section 4 inserted by No. 43 of 1987 s. 7; amended by No. 84 of 1990 s. 2; No. 62 of 1994 s. 109; No. 54 of 2002 s. 5; No. 51 of 2004 s. 74; No. 68 of 2004 s. 94; No. 13 of 2005 s. 50; No. 35 of 2007 s. 101.]~~

4A. Act does not operate to affect adversely certain police operations

~~(1) In this section —~~

~~**covert operation** means the performance of a function of a police officer in circumstances where —~~

~~(a) a covert operation is undertaken by WA Police for the purpose of obtaining information about criminal activity;~~

~~(b) performance of the function is not practicable without exposing a police officer to a risk of imminent and serious injury or imminent and serious harm to the police officer's health; and~~

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- ~~_____ (c) unless the performance of the function is secret or confidential, it would be likely that _____~~
- ~~_____ (i) the effectiveness of the performance of the function is reduced; or~~
- ~~_____ (ii) a person is exposed to the danger of physical harm arising from the transportations of another person;~~

~~_____ **dangerous operation** means the performance of a function of a police officer in circumstances where performance of that function _____~~

- ~~_____ (a) is reasonably necessary; and~~
- ~~_____ (b) is not practicable without exposing a police officer to a risk of imminent and serious injury or imminent and serious harm to the police officer's health.~~
- ~~_____ (2) A police officer cannot refuse to work as mentioned in section 26(1) if the refusal to work would adversely affect, or could reasonably be expected to affect adversely, a covert operation or a dangerous goods by road or rail; and operation.~~
- ~~_____ (3) An inspector cannot issue a prohibition notice under section 49(1) to prohibit an activity if prohibiting the carrying on of the activity would adversely affect, or could reasonably be expected to affect adversely, a covert operation or a dangerous operation.~~

~~_____ [Section 4A inserted by No. 54 of 2002 s. 6.]~~

5. Objects

~~_____ The objects of this Act are _____~~

- ~~_____ (a) to promote and secure the safety and health of persons at work;~~
- ~~_____ (b) to protect persons at work against hazards;~~
- ~~_____ (c) to give effect to the assist in securing safe and hygienic work environments;~~

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- ~~———— (d) to reduce, eliminate and control the hazards to which persons are exposed at work;~~
- ~~———— (e) to foster cooperation and consultation between and to provide for the participation of employers and employees and associations representing employers and employees in the formulation and implementation of safety and health standards to current levels of technical knowledge and development;~~
- ~~———— (f) to provide for formulation of policies and for the coordination of the administration of laws relating to occupational safety and health;~~
- ~~———— (g) to promote education and community awareness on matters relating to occupational safety and health.~~
- ~~———— [Section 5 amended by No. 43 of 1987 s. 8; No. 30 of 1995 s. 47.]~~

**~~Part II — Commission for Occupational Safety
and Health~~**

~~[Heading inserted by No. 74 of 2003 s. 87(4).]~~

~~6. — The Commission~~

~~(1) There shall be a Commission for Occupational Safety and Health.~~

~~(2) The Commission shall consist of —~~

~~(a) a person nominated by the Minister and appointed by the Governor as chairperson;~~

~~(b) the Commissioner;~~

~~(c) 2 persons employed in the Public Service under Part 3 of the *Public Sector Management Act 1994*, of whom —~~

~~(i) one shall be nominated by the Minister; and~~

~~(ii) the other shall be an officer of the department, as defined in section 4(1) of the *Mines Safety and Inspection Act 1994*, nominated by the Minister to whom the administration of that Act is committed;~~

~~and~~

~~(d) 9 persons appointed by the Governor of whom —~~

~~(i) 2 shall be persons nominated for appointment by the body known as the Chamber of Commerce and Industry of Western Australia (Inc);~~

~~(ii) 3 shall be persons, of whom one shall be a person who has knowledge of and experience in the mining industry in the State, nominated for appointment by the body known as The Trades and Labor Council of Western Australia;~~

~~(iii) 3 shall be persons having knowledge of or experience in occupational safety and health who shall be nominated for appointment by the~~

~~Minister after consultation between the Minister and the bodies referred to in subparagraphs (i) and (ii); and~~

- ~~(iv) one shall be a person nominated by the Chamber of Minerals and Energy of Western Australia Inc.~~
- ~~(3) Where any of the bodies referred to in subsection (2)(d)(i), (ii) or (iv) fails to make a nomination within 60 days after being requested in writing by the Minister to do so the Governor may appoint any person who is suitably qualified, and any person so appointed shall be deemed to have been nominated pursuant to subsection (2)(d)(i), (ii) or (iv), as the case may be.~~
- ~~(4) A nomination for the purposes of subsection (2)(c) may be made from time to time, may be made by reference to the holder of a specified office and may be expressed to operate for a period or in such circumstances as are specified in the instrument of nomination.~~
- ~~(5) In addition to the name mentioned in subsection (1), the Commission may use, and operate under, the name “WorkSafe W A”.~~
- ~~(6) A person other than the Commission that uses or operates under the name mentioned in subsection (1) or (5), or any name that is so similar that it is likely to be misunderstood as referring to the Commission, commits an offence.~~
- ~~(7) Nothing in subsection (6) prevents the department of the Public Service principally assisting the Minister in the administration of this Act from using or operating under the name of “WorkSafe Western Australia” or a similar name if that designation is given to it under section 35 of the *Public Sector Management Act 1994*.~~
- ~~[Section 6 amended by No. 30 of 1995 s. 8; No. 74 of 2003 s. 87(5); No. 51 of 2004 s. 103 and 105.]~~

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6A. Deputy chairperson

- ~~— (1) The Minister shall appoint one of the members of the Commission to be deputy chairperson of the Commission.~~
- ~~— (2) During any vacancy in the office of chairperson or while the chairperson is unable to act by reason of sickness, absence or other cause, the deputy chairperson shall perform the functions of the chairperson.~~
- ~~— (3) No act or omission of the deputy chairperson acting as the chairperson shall be questioned on the ground that the occasion for so acting had not arisen or had ceased.~~

~~———— [Section 6A inserted by No. 30 of 1995 s. 9.]~~

7. Acting members

- ~~— (1) If ————~~
 - ~~———— (a) an appointed member is unable to act by reason of sickness, absence or other cause; or~~
 - ~~———— (b) the office of an appointed member is vacant and has not been filled in accordance with this Act,~~
- ~~———— the Minister may appoint an eligible person to act temporarily in the place of that appointed member, and while so acting according to the tenor of the appointment that other person has all of the functions, powers and immunities of that appointed member.~~
- ~~— (2) Where an appointed member who is deputy chairperson is performing the functions of the chairperson, the Minister may, under subsection (1), appoint another eligible person to act in the place of that appointed member.~~
- ~~— (3) No act or omission of a person acting in the place of another under this section is to be questioned on the ground that the occasion for the appointment or so acting had not arisen or had ceased.~~

- ~~— (4) The appointment of a person as an acting member may be terminated at any time by the Minister.~~

~~— [Section 7 inserted by No. 30 of 1995 s. 10.]~~

~~8. Terms and conditions of appointed members~~

- ~~— (1) An appointed member shall hold office for such term not exceeding 3 years as is specified in the instrument of appointment and is eligible for re-appointment.~~

- ~~— (2) An appointed member other than a person who is an officer of the Public Service of the State is entitled to such remuneration and allowances as are determined by the Minister on the recommendation of the Minister for Public Sector Management⁴.~~

~~— [Section 8 amended by No. 51 of 2004 s. 75.]~~

~~9. WorkSafe Western Australia Commissioner~~

- ~~— (1) The Governor shall appoint a person to be WorkSafe Western Australia Commissioner.~~

- ~~— (2) The Commissioner shall be appointed for such term not exceeding 5 years as is specified in the instrument of appointment and on the expiration of the term is eligible for re-appointment.~~

- ~~— (3) Subject to the *Salaries and Allowances Act 1975*, the Commissioner is entitled to such conditions of service as are determined by the Minister from time to time on the recommendation of the Minister for Public Sector Management⁴.~~

- ~~— (4) If a person appointed to be Commissioner was immediately before that appointment an officer of the Public Service of the State the person shall despite that appointment retain all existing and accruing rights on appointment as Commissioner.~~

- ~~— (5) If a person appointed to be Commissioner was immediately before that appointment a public service officer within the meaning of the~~

~~Public Sector Management Act 1994, the person is entitled upon resigning his or her office as Commissioner or upon ceasing to be Commissioner to be appointed to an office in the Public Service of the State not lower in status than the office the person so occupied immediately before appointment as Commissioner.~~

~~— (6) The Commissioner shall not engage in paid employment outside his or her duties and functions under this Act without first obtaining the approval in writing of the Minister.~~

~~— [(7) deleted]~~

~~— (8) In addition to the name mentioned in subsection (1), the Commissioner may use, and operate under, the name “WorkSafe W A Commissioner”.~~

~~— [Section 9 amended by No. 43 of 1987 s. 10; No. 55 of 1987 s. 4; No. 32 of 1994 s. 19; No. 30 of 1995 s. 11 and 47; No. 51 of 2004 s. 76 and 102(2).]~~

10. — Vacation of office

~~— A person’s office as Commissioner or as an appointed member becomes vacant if —~~

~~— (a) the person’s term of office expires; or~~

~~— (b) the person —~~

~~— (i) dies; or~~

~~— (ii) becomes permanently incapable of performing the duties of the office; or~~

~~— (iii) resigns from office by written notice addressed to the Minister; or~~

~~— (iv) is, according to the Interpretation Act 1984 section 13D, a bankrupt or a person whose affairs are under insolvency laws; or~~

~~— (v) is removed from office by the Governor on the grounds of neglect of duty, incompetence or the person’s behaviour; or~~

~~_____ (vi) is absent without leave of the Minister from
3 consecutive meetings of the Commission;~~

~~_____ or~~

~~_____ (e) being a member appointed under section 6(2)(d)(i), (ii)
or (iv), the person's nomination is revoked.~~

~~_____ [Section 10 inserted by No. 51 of 2004 s. 77; amended by
No. 18 of 2009 s. 60.]~~

11. requirements and Leave of absence

~~_____ The Minister may grant leave of absence to an appointed member
on such terms and conditions as the Minister determines.~~

12. Casual vacancies

~~_____ Where an office of appointed member becomes vacant
otherwise than by effluxion of time a person appointed to the
vacancy shall hold office only for the balance of the term of the
person whose vacancy he or she fills.~~

~~_____ [Section 12 amended by No. 51 of 2004 s. 102(1).]~~

13. Meetings of the Commission

~~_____ (1) The chairperson may at any time and shall when so requested by
the Minister or by not less than 5 members of the Commission
convene a meeting of the Commission to be held at a time and
place to be determined by the chairperson.~~

~~_____ (2) The Commission shall meet at least 6 times a year at intervals of
not more than 3 months.~~

~~_____ (3) The chairperson shall preside at any meeting of the Commission
at which he or she is present.~~

~~_____ (4) If both the chairperson and the deputy chairperson are absent
from a meeting of the Commission, the members present shall
elect by secret ballot one of their number to preside at that
meeting and that member shall have, in addition to the powers~~

~~of a member of the Commission, the powers of the chairperson under this section.~~

~~— (5) — At a meeting of the Commission 7 members constitute a quorum.~~

~~— (6) — Subject to subsection (6a), at a meeting of the Commission —~~

~~— (a) — only members appointed under section 6(2)(d) are entitled to vote; and~~

~~— (b) — where any question requiring a vote arises the question shall be decided by a majority of the votes of the members appointed under section 6(2)(d) if, and only if, not less than 6 of those members also constitute such majority.~~

~~— (6a) — If —~~

~~— (a) — on a vote at a meeting of the Commission, a majority of the votes of members appointed under section 6(2)(d) is constituted by 5 of those members; and~~

~~— (b) — on a vote at a subsequent meeting of the Commission on the same question, a majority of the votes is constituted by 5 of those members,~~

~~— the chairperson may, at that subsequent meeting, cast a vote to be included in the majority vote.~~

~~— (7) — Subject to the presence of a quorum the Commission may act notwithstanding any vacancy in its membership.~~

~~— (8) — A member of the Commission who has a pecuniary interest whether direct or indirect in any matter to be considered by the Commission shall declare the nature of that interest at every meeting at which the matter is considered.~~

~~— (9) — Subject to this Act, the Commission may determine its own procedures of the ADG Code so -~~

~~— (10) — It is the duty of the Commission to work for the attainment of the objects of this Act by achieving a consensus, as far as they apply to the transport of~~

dangerous goods by road or rail; and this is practicable,
among its members.

~~[Section 13 amended by No. 30 of 1995 s. 12; No. 51 of 2004
s. 102(1).]~~

14. Functions of the Commission

~~(1) The functions of the Commission are —~~

- ~~(a) to inquire into and report to the Minister upon any
matters referred to it by the Minister;~~
- ~~(b) to make recommendations to the Minister with respect
to —~~
 - ~~(i) this Act;~~
 - ~~(ii) any law or provision of a law, relating to
occupational safety and health that is
administered by the Minister and any law or
provision of a law relating to occupational safety
and health that is prescribed for the purposes of
this paragraph; and~~
 - ~~(iii) subsidiary legislation, guidelines and codes of
practice proposed to be made under or for the
purposes of any prescribed law;~~
- ~~(c) to examine, review and make recommendations to the
Minister in relation to existing and proposed registration
or licensing schemes relating to occupational safety and
health;~~
- ~~(d) to promote consistency between the ~~provide advice to~~
~~and cooperate with Government departments, public~~
~~authorities, trade unions, employer organisations and~~
~~other interested persons in relation to occupational~~
~~safety and health;~~~~
- ~~(e) to formulate or recommend standards, requirements and
specifications or other forms of guidance for the purpose
of assisting employers, self-employed persons and~~

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- ~~employees to maintain appropriate standards of occupational safety and health;~~
- ~~———— (f) to promote education and training in occupational safety and health as widely as possible;~~
- ~~———— (g) in cooperation with educational authorities or bodies to devise and approve courses in relation to occupational safety and health;~~
- ~~———— (h) having regard to the criteria laid down by the National Occupational Health and Safety Commission, to advise persons on training in occupational safety and health and to formulate and accredit training courses in occupational safety and health;~~
- ~~———— (i) to recommend to the Minister the establishment of public inquiries into any matter relating to occupational safety and health;~~
- ~~———— (j) to collect, publish and disseminate information on occupational safety and health;~~
- ~~———— (k) to formulate reporting procedures applying to the transport of dangerous goods by road, rail and other modes of transport, and monitoring arrangements for identification of workplace hazards, and incidents in which injury or death is likely to occur in an occupational situation; and~~

Division 2 — Interpretation

4. Terms used

~~———— In these regulations, unless the contrary intention appears —~~

- ~~Act — (1) to commission and sponsor research into occupational safety and health.~~
- ~~———— (2) The Commission may issue for public review and comment any regulations, codes of practice or guidelines with respect to which it proposes under subsection (1)(b) to make any recommendations to the Minister.~~

- ~~— (3) The Commission shall ensure, as far as is practicable, that any information it provides is in such language and form as are appropriate for the persons to whom the information is directed.~~
- ~~— (4) The Minister shall within 60 days after receiving from the Commission a recommendation under subsection (1) make reply in writing to the Commission in relation to that recommendation.~~
- ~~— [Section 14 amended by No. 43 of 1987 s. 11; No. 30 of 1995 s. 47.]~~

14A. Mining Industry Advisory Committee

- ~~— (1) In this section —~~
- ~~— **committee** means the *Dangerous Goods Safety Act 2004*; committee referred to in subsection (2);~~
- ~~— **ADG Code** means the *Australian Code for the Transport of Dangerous Goods by Road and Rail* (also called the Australian Dangerous Goods Code) published by the National Transport Commission, Edition 7.5 (ISBN 978-1-921604-69-0), as in effect on 1 March 2017, including (for the avoidance of doubt) its appendices;~~
- ~~— **ADR approved** means approved in accordance with the *European Agreement Concerning the International Carriage of Dangerous Goods by Road* published by the Inland Transport Committee of the Economic Commission for Europe;~~
- ~~— **aggregate quantity**, in relation to a load containing dangerous goods, means the total of —~~
- ~~— (a) the number of kilograms of —~~
- ~~— (i) solid dangerous goods; and~~
- ~~— (ii) articles (including aerosols),~~
- ~~— in the load; and~~
- ~~— (b) the number of litres or kilograms, whichever is used in the transport documentation for the load to describe the goods, of liquid dangerous goods in the load; and~~

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(c) the total capacity in litres of the receptacles in the load containing dangerous goods of UN Class 2 (other than aerosols);

another participating jurisdiction means a participating jurisdiction other than this State;

appropriately marked has the meaning given in regulation 106;

appropriately placarded has the meaning given in regulation 111(2);

approval means an approval that is given by the Chief Officer or an authorised body and is in effect under these regulations;

approved packaging means —

(a) packaging of a design that is approved under regulation 56; or

(b) foreign approved packaging;

approved tank means —

(a) a tank of a design that is approved under regulation 56;
or

(b) a foreign approved tank;

approved test means a test that is approved under regulation 15(1)(a);

approved training course means a training course that is approved under regulation 15(1)(b);

article means a manufactured item, other than a fluid or particle, that —

(a) is formed into a particular shape or design during manufacture; and

(b) has hazard properties and a function that are wholly or partly dependent on that shape or design,

and includes batteries, aerosols, gas-filled lighters, seat belt pre-tensioners and refrigerating machines;

authorised body means a body or any other person authorised under regulation 60 to give approvals;

bulk container has the meaning given in regulation 33;

capacity means the total internal volume of a packaging at a temperature of 15°C, expressed in litres or cubic metres;

cargo transport unit means —

- (a) a road transport tank, or freight, vehicle; or
- (b) a railway transport tank, or freight, wagon; or
- (c) a portable tank; or
- (d) a bulk container; or
- (e) a freight container; or
- (f) an MEGC;

combination means a road vehicle consisting of a motor vehicle and one or more trailers;

Competent Authorities Panel or **CAP** means the panel of that name comprising persons each of — ~~**mining industry** means the mining industry in the State;~~

~~**Ministers** means —~~

~~(a) the Minister to whom —~~

- (a) is a competent authority (or a representative of a competent authority) of this or a participating jurisdiction; and

(b) is appointed by the Transport and Infrastructure Council;

compliance plate means a plate that must be attached to a portable tank, MEGC or tank vehicle under the ADG Code Part 6, and includes an identification plate;

consigns and **consignor** have the meaning given in regulation 40;

corresponding approval means an approval to which regulation 265 applies;

corresponding authority means the authority in another participating jurisdiction or, if there are separate authorities in that jurisdiction in relation to road transport and to rail transport, the authority in relation to road transport or rail transport, as the

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case requires, whose functions most nearly correspond to those of the Chief Officer under the Act;

corresponding dangerous goods driver licence means a licence to which regulation 266 applies that has effect in this State under that regulation as a dangerous goods driver licence;

corresponding dangerous goods vehicle licence means a licence to which regulation 266 applies that has effect in this State under that regulation as a dangerous goods vehicle licence;

corresponding determination means a determination to which regulation 263 applies;

corresponding exemption means an exemption to which regulation 264 applies;

corresponding law means a law of another State or a Territory corresponding, or substantially corresponding, to these regulations;

dangerous goods has the meaning given in regulation 28;

dangerous goods driver licence means a licence that is in force under Part 17 Division 3;

Dangerous Goods List means the list set out in the ADG Code section 3.2.3;

dangerous goods vehicle licence means a licence that is in force under Part 17 Division 4;

demountable tank means a tank, other than a portable tank, that is designed to be carried on a vehicle but that does not form part of and is not permanently attached to the vehicle and is designed to be removable;

determination means a determination that is made by the Chief Officer and is in effect under these regulations;

driver licence means an Australian driver licence as defined in the *Road Traffic (Authorisation to Drive) Act 2008* section 3(1);

driver licensing authority means an Australian driver licensing authority as defined in the *Road Traffic (Authorisation to Drive) Act 2008* section 3(1);

driving licences register means a register kept by the driver licensing authority of a State or Territory that records information about driver licences granted under a law of that State or Territory;

emergency service officer —

(a) means an officer or employee of the FES Department; and

(b) in Part 14 — includes an officer of an ambulance service;

exemption means an exemption, in force under the Act Part 4, from any provision of these regulations;

FES Department means the department of the Public Service principally assisting in the administration of the *Fire and Emergency Services Act 1998*; ~~this Act is committed; and~~

food includes —

(a) a substance prepared or intended for human or animal consumption; and

(b) a substance (except dangerous goods) intended to be an ingredient of food;

food packaging means —

(a) a receptacle that contains, or is designed or intended to contain, food; or

(b) material designed or intended to be used in a receptacle that is designed or intended to contain food;

foreign approved, in relation to packaging, means packaging that has the markings required by the ADG Code Part 6 for packaging of its type, in confirmation that the packaging is ADR approved, ICAO approved, IMO approved, RID approved or UN approved;

freight container means a re-usable container of the kind mentioned in Australian/New Zealand Standard AS/NZS 3711 that is designed for repeated use for transport of goods by one or more modes of transport;

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hose assembly means a hose, or hoses connected together, for use in the transfer of dangerous goods to or from a tank on a vehicle, a portable tank or a storage receptacle and includes —

- (a) if there are 2 or more hoses connected together — the connections between the hoses; and
- (b) the attachment connecting the hose or hoses to the tank; and
- (c) anything else (except the vehicle, portable tank or storage receptacle) attached to the hose or hoses;

IBC or intermediate bulk container has the meaning given in regulation 34;

ICAO approved means approved in accordance with the ICAO Technical Instructions;

ICAO Technical Instructions means the *Technical Instructions for the Safe Transport of Dangerous Goods by Air* published by the International Civil Aviation Organisation;

IMDG Code means the *IMDG Code, International Maritime Dangerous Goods Code*, 2014 Edition, incorporating Amendment 37-14 (ISBN: 978-92-801-1597-0);

IMO approved means approved in accordance with the IMDG Code;

incompatible has the meaning given in regulation 32;

inner packaging, in relation to goods for which outer packaging is required if the goods are to be transported, means any packaging that is, or that is to be, contained or protected by the outer packaging;

journey means the transport of dangerous goods from where the goods are consigned to where the goods are delivered to the consignee;

large packaging means outer packaging that —

- (a) is designed for mechanical handling; and
- (b) has a capacity of not more than 3 m³; and
- (c) is intended to contain articles or inner packaging with —

(i) a net mass of more than 400 kg; or

(ii) capacities totalling more than 450 L;

load has the meaning given in regulation 38;

loads and ***loader*** have the meaning given in regulation 42;

MEGC or ***multi-element gas container*** has the meaning given in regulation 35;

model subordinate law means the Model Subordinate Law on the Transport of Dangerous Goods by Road or Rail set out in Schedule 2 to the *National Transport Commission (Model Legislation — Transport of Dangerous Goods by Road or Rail) Regulations 2007* (Commonwealth), as that Schedule is in force from time to time;

multimodal means applicable to, suitable for use on, more than one mode of transport;

NATA means the National Association of Testing Authorities;

outer packaging means external packaging (including absorbent materials, cushioning and any other components) necessary for the purposes of transport to contain and protect —

(a) articles; or

(b) receptacles in composite packaging as defined in the ADG Code section 1.2.1.1; or

(c) inner packaging in combination packaging as defined in the ADG Code section 1.2.1.1;

overpack means packaging (other than large packaging) used to hold and consolidate packages of goods into a single unit for easier handling and stowage;

Example for this definition:

Pallet, together with strapping or shrink wrapping, designed to hold packages; box or crate into which packages are placed.

owner, of a vehicle, has the meaning given in regulation 39;

package in relation to dangerous goods or other goods, means the complete product of the packing of the goods for transport, and consists of the goods and their packaging;

packaging of dangerous goods or other goods, means anything that contains, holds, protects or encloses the goods, whether directly or indirectly, to enable them to be received or held for transport or to be transported, including inner packaging, outer packaging, overpacks, large packaging, IBCs, MEGCs, tanks (including the tank of a tank vehicle), bulk and freight containers, drums, barrels, jerry cans, boxes and bags;

packed in limited quantities has the meaning given in regulation 45;

Packing Group has the meaning given in regulation 31;

packs and **packer** have the meaning given in regulation 41;

participating jurisdiction means —

- (a) this State; and
- (b) another State or a Territory that has a corresponding law;

placard load means a load that contains dangerous goods and that must be placarded under regulation 110;

placards has the meaning given in regulation 111(1);

portable tank means a multimodal tank that —

- (a) is designed primarily to be loaded onto a vehicle or ship; and
- (b) has a capacity of more than 450 L; and
- (c) is equipped with skids, mountings, stabilisers and accessories to facilitate mechanical handling; and
- (d) is capable of being loaded and unloaded without removing its service equipment or structural equipment; and
- (e) is capable of being lifted when full;

premises includes a structure, whether permanent or temporary, and land, but does not include a vehicle;

pressure drums means welded transportable pressure receptacles of a water capacity of more than 150 L but not more than 1 000 L;

Note for this definition:

Cylindrical receptacles equipped with rolling hoops, and spheres on skids.

prime contractor has the meaning given in regulation 43;

prime mover means a road vehicle that is designed to tow a trailer, but does not include a vehicle that has a load carrying capacity without a trailer;

provisional licence has the meaning given in the *Road Traffic (Authorisation to Drive) Act 2008* section 3(1);

rail, in relation to the transport of dangerous goods by rail, does not include —

(a) a railway in a mine; or

(b) a slipway; or

(c) a railway used exclusively by a crane;

rail authority, in respect of a train on a railway, means the person (whether or not a public authority) that is responsible for the care, control or management of the railway;

rail operator has the meaning given in regulation 44;

receptacle, in relation to a substance or article, means a container that is —

(a) for receiving and holding the substance or article (including anything that enables the container to be closed); and

(b) in contact with the substance or article;

recognised testing facility has the meaning given in regulation 57;

registered means registered under Commonwealth, State or Territory law;

RID approved means approved in accordance with the *International Regulations Concerning the Carriage of Dangerous Goods by Rail* published by the Inland Transport Committee of the Economic Commission for Europe;

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rigid vehicle means a road vehicle the load carrying area of which is fixed to the vehicle's chassis or frame;

road means a road or other place over which vehicles move, whether on private property or not, that is open to, or used by, the public, whether on payment of consideration or not;

service equipment, in relation to a tank or an MEGC, has the meaning given in the ADG Code section 6.7.2.1, 6.7.3.1, 6.7.4.1 or 6.7.5.1, as the case requires;

structural equipment, in relation to a tank or an MEGC, has the meaning given in the ADG Code section 6.7.2.1, 6.7.3.1, 6.7.4.1 or 6.7.5.1, as the case requires;

Subsidiary Risk has the meaning given in regulation 30;

tank has the meaning given in regulation 36;

tank vehicle means a road vehicle or unit of rolling stock —

(a) of which a tank forms part; or

(b) to which a tank (other than a portable tank) is attached;

trailer means a road vehicle that is designed to be towed, or is towed, by another road vehicle, but does not include a road vehicle propelled by a motor that forms part of the vehicle;

train means 2 or more units of rolling stock coupled together, of which at least one unit is a locomotive or a self-propelled unit;

Transport and Infrastructure Council means the Ministerial Council called the Transport and Infrastructure Council established with the authority of the Council of Australian Governments;

tubes means seamless transportable pressure receptacles of a water capacity of more than 150 L but not more than 3 000 L;

UN approved means approved in accordance with the *Model Regulations for the Transport of Dangerous Goods* annexed to the *Recommendations on the Transport of Dangerous Goods* published by the United Nations;

UN Class, in relation to dangerous goods, has the meaning given in regulation 29;

UN Division, in relation to dangerous goods, has the meaning given in regulation 29;

unit of rolling stock means any thing capable of transporting people or things —

(a) that is designed to run on rails; or

(b) that is designed to operate or be used on the road or on a railway and is being operated or used on a railway,

and it does not matter how the thing is moved or propelled;

vehicle means —

(a) a road vehicle, including a combination; or

(b) a unit of rolling stock.

[Regulation 4 amended in Gazette 30 Jun 2008 p. 3130;
22 Jun 2010 p. 2717-19; 19 Feb 2013 p. 989; 13 Jun 2014
p. 1929-31; 8 Jan 2015 p. 131; 17 Nov 2015 p. 4696;
5 Feb 2016 p. 360; 11 Jul 2017 p. 3820-1.]

5. Examples and notes in these regulations

- (1) An example of the operation of a provision in these regulations forms part of these regulations but is not to be taken to be exhaustive and, if the example is inconsistent with the provision, the provision prevails.
- (2) Notes in these regulations do not form part of them and are provided to assist understanding.

6. References to determinations, exemptions, approvals and licences

In these regulations, a reference to —

(a) a determination, exemption, approval, dangerous goods driver licence or dangerous goods vehicle licence; or

(b) a corresponding determination, corresponding exemption, corresponding approval, corresponding dangerous goods driver licence or corresponding dangerous goods vehicle licence,

includes a reference to the determination, exemption, approval,
and licence as varied.

**7. References to variation of determinations, exemptions,
approvals and licences**

In these regulations, a reference to the variation of —

- (a) a determination, exemption, approval, dangerous goods
driver licence or dangerous goods vehicle licence; or
- (b) a corresponding determination, corresponding
exemption, corresponding approval, corresponding
dangerous goods driver licence or corresponding
dangerous goods vehicle licence.

includes a reference to a variation by addition, omission or
substitution.

**8. Inconsistency between these regulations and documents
adopted**

- (1) In this regulation —

code means a code, standard, rule, specification or other
document, made in or outside Australia, that does not itself have
legislative effect in this State;

subsidiary legislation includes rules, regulations and
instructions made, determined or issued under any other Act or
under any Act of the Commonwealth, another State or a
Territory.

- (2) If a code or subsidiary legislation adopted by these regulations
is inconsistent with these regulations, these regulations prevail
to the extent of the inconsistency.

9. References in ADG Code

For the purposes of these regulations, unless the contrary
intention appears —

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-
- (a) a reference in the ADG Code to the Competent Authority is to be taken to be a reference to the Chief Officer;
-
- (b) a reference in the ADG Code to a numbered Regulation is to be taken to be a reference to the provision in these regulations that corresponds to the provision of that number in the model subordinate law.
-

Division 3 — Application

10. Application to transport by road and rail

Unless the contrary intention appears, these regulations apply to the transport of dangerous goods by road or rail.

Notes for this regulation:

1. These regulations do not apply to the transport of substances or articles that, under the ADG Code, are within Class 1 (explosives), Division 6.2 (infectious substances) or Class 7 (radioactive materials). Those substances and articles are not dangerous goods for the purposes of these regulations.
2. The Act section 16 provides for the relevant offence and penalty for transporting goods too dangerous to transport. As to goods too dangerous to transport, see the *Dangerous Goods Safety (General) Regulations 2007*.

(b) the Minister 11. Dangerous situations

These regulations do not apply to the transport of dangerous goods by or at the direction of —

- (a) a DGO or a police officer who is exercising a power under the Act Part 6 Division 5 or 6; or
- (b) an emergency service officer who is acting to reduce, eliminate or avert any risk to people, property or the environment from dangerous goods in a dangerous situation.

12. Exempt transport

(1) In this regulation —

designated goods means any substance or article that, under the ADG Code, is within —

- (a) Class 1 (explosives), except —
 - (i) any substance or article that, under the ADG Code, is within Division 1.4S; and
 - (ii) track signals carried in a unit of rolling stock for the safety of persons working in rail transport;

or

(b) Category A of Division 6.2 (infectious substances); or

(c) Class 7 (radioactive materials).

(2) These regulations do not apply to the transport by a person of a load that contains dangerous goods if all of the following requirements are met —

(a) the load does not contain any designated goods;

(b) the load does not contain —

(i) dangerous goods in any single receptacle with a capacity of more than 500 L; or

(ii) more than 500 kg of dangerous goods in any single receptacle;

(c) the aggregate quantity of the dangerous goods in the load is less than 25% of a placard load;

(d) the goods are not being transported by the person in the course of a business of transporting goods by road;

(e) the goods are not being transported by the person on a passenger train.

[Regulation 12 amended in Gazette 22 Jun 2010 p. 2719;
13 Jun 2014 p. 1932.]

13. Further exemptions

These regulations do not apply to the transport by a vehicle of dangerous goods —

(a) that are in a consignment where the aggregate quantity of dangerous goods is less than the quantity set out in the ADG Code section 1.1.1.2(3)(a); or

(b) in the vehicle's fuel tank; or

(c) in an appliance or plant that forms part of the vehicle and is necessary for its operation; or

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- (d) that are portable fire fighting equipment or other portable safety equipment and are part of the vehicle's safety equipment.

[Regulation 13 amended in Gazette 13 Jun 2014 p. 1932; 11 Jul 2017 p. 3821.]

13A. Partial exemption for transport by complying MPU

- (1) In this regulation —

complying MPU means an MPU that complies with an approved code of practice (if any) in respect of the following matters —

- (a) packaging of dangerous goods carried by the MPU;
- (b) consignment procedures for dangerous goods carried by the MPU;
- (c) safety standards for vehicles and equipment;
- (d) stowage and constraint of dangerous goods carried by the MPU;
- (e) segregation of dangerous goods carried by the MPU;
- (f) bulk transfer of dangerous goods carried by the MPU;
- (g) documentation of dangerous goods carried by the MPU;
- (h) safety equipment carried by the MPU;
- (i) procedures during transport of dangerous goods by the MPU;

mobile processing unit (MPU) has the meaning given in the *Dangerous Goods Safety (Explosives) Regulations 2007* regulation 3 but does not include a trailer that is towed by a mobile processing unit.

- (2) Parts 4, 5, 6, 8, 9, 10, 11, 12 and 13 and regulation 215 do not apply in respect of the transport by a person of the ingredients of an explosive if the transport is by means of a complying MPU.

[Regulation 13A inserted in Gazette 11 Jul 2017 p. 3822.]

13B. Special provisions for tools of trade and dangerous goods for private use

- (1) This regulation applies to a load if —
- (a) for loads not including dangerous goods of UN Division 2.1 (other than aerosols), UN Division 2.3 or Packing Group 1 — the load includes an aggregate quantity of dangerous goods of less than 500; and
 - (b) for loads including dangerous goods of UN Division 2.1 (other than aerosols), UN Division 2.3 or Packing Group 1 —
 - (i) the load includes an aggregate quantity of dangerous goods of less than 250; and
 - (ii) any dangerous goods of UN Division 2.3 or Packing Group 1 together constitute less than 100 of the aggregate quantity;
- and
- (c) the goods are not being transported in the course of a business of transporting goods but are being transported —
 - (i) by a person who intends to use them; or
 - (ii) so they can be used for a commercial purpose.
- (2) A person transporting a load to which this regulation applies is exempt from all the obligations imposed by these regulations other than those imposed by this regulation.
- (3) A person must not transport a load to which this regulation applies unless each package in the load —
- (a) complies with the packaging requirements appropriate to the quantity of dangerous goods, as specified in Part 4; and
 - (b) is labelled and marked as specified in Part 5 Division 1; and

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(c) is loaded, secured, segregated, unloaded and otherwise transported in such a way as to ensure that —

(i) its packaging remains fit for purpose; and

(ii) the risks to any person, property or the environment are eliminated, or if it is not practicable to eliminate the risks, are minimised to the maximum extent that is practicable.

Penalty for this subregulation: a fine of \$1 500.

(4) If a load to which this regulation applies contains an aggregate quantity of dangerous goods of UN Class 3, 4, 5 or 6 of more than 250, a person must not transport the load —

(a) in the passenger compartment of a vehicle; or

(b) in an enclosed space that is not separated from the passenger compartment of a vehicle.

Penalty for this subregulation: a fine of \$1 500.

(5) If a load to which this regulation applies contains an aggregate quantity of dangerous goods of UN Division 2.1, UN Division 2.3 or Packing Group 1 of more than 50, a person must not transport the load —

(a) in the passenger compartment of a vehicle; or

(b) in any other enclosed space in a vehicle unless the space is sufficiently ventilated to prevent an accumulation of vapours or fumes that is likely to cause risk.

Penalty for this subregulation: a fine of \$1 500.

[Regulation 13B inserted in Gazette 11 Jul 2017 p. 3822-4.]

Division 4 — Instruction and training

14. Instruction and training

(1) This regulation applies to any task involved in the transport of dangerous goods, including the following —

(a) packing dangerous goods;

- (b) consigning dangerous goods;
- (c) loading dangerous goods;
- (d) unloading dangerous goods;
- (da) handling fumigated cargo transport units;
- (e) marking packages;
- (f) placarding placard loads;
- (g) preparing transport documentation;
- (h) maintaining vehicles and equipment used in the transport of dangerous goods;
- (i) driving a vehicle transporting dangerous goods;
- (j) being the consignee of dangerous goods;
- (k) following the appropriate procedures in accordance with these regulations in a dangerous situation.

(2) A person who is responsible for management or control of a task must not employ, engage or permit another person to perform the task if the other person —

- (a) has not received, or is not receiving, appropriate instruction and training to ensure that he or she is able to perform the task safely and in accordance with these regulations; or
- (b) is not appropriately supervised in performing the task to ensure that he or she is able to perform the task safely and in accordance with these regulations.

Penalty: a fine of \$10 000.

(3) A person must not manage, control or supervise a task unless the person has received instruction and training to enable him or her to manage, control or supervise another person to perform the task safely and in accordance with these regulations.

Penalty: a fine of \$10 000.

[Regulation 14 amended in Gazette 13 Jun 2014 p. 1932.]

15. Approvals — tests and training courses for drivers

- (1) The Chief Officer may, on an application made in accordance with regulation 194, approve —
- (a) a test of competence for drivers of road vehicles transporting dangerous goods; or
 - (b) a training course for drivers of road vehicles transporting dangerous goods.
- (2) The Chief Officer may approve a test of competence or a training course only if the Chief Officer considers that a person who passes the test, or completes the course, will have the skills and knowledge to perform the task to which the test or course relates safely and in accordance with these regulations.

Division 5 — Goods suspected of being dangerous goods

16. Goods suspected of being dangerous goods

If it is not clear whether particular goods are dangerous goods, but a person suspects, or ought reasonably to suspect, that they are, the person must not consign or otherwise transport them until —

- (a) the goods have been classified in accordance with the ADG Code; or
- (b) a determination has been made under regulation 17(1)(a) in respect of the goods.

Penalty: a fine of \$10 000.

[Regulation 16 amended in Gazette 22 Jun 2010 p. 2719.]

Division 6 — Determinations

17. Determinations — dangerous goods

- (1) Subject to subregulation (2), the Chief Officer may, for the purposes of these regulations, determine that a substance or article is or is not —

-
- (a) dangerous goods; or
-
- (b) dangerous goods of a particular UN Class or
UN Division; or
-
- (c) dangerous goods that have a particular Subsidiary Risk;
or
-
- (d) dangerous goods of a particular Packing Group; or
-
- (e) incompatible with particular dangerous goods.
-
- (2) The Chief Officer may determine that a substance or article is
dangerous goods for the purposes of these regulations, only if
the substance or article is dangerous goods for the purposes of
the definition of ***dangerous goods*** in the Act section 3(1).
-
- (3) If a substance or article ceases to be dangerous goods for the
purposes of the definition of ***dangerous goods*** in the Act
section 3(1), a determination made under subregulation (1)(a)
that the substance or article is dangerous goods ceases to be in
effect in respect of the substance or article.

Note for this regulation:

As to determinations that particular dangerous goods are or are not too
dangerous to transport, see the *Dangerous Goods Safety (General)
Regulations 2007*.

18. Determinations — packaging

The Chief Officer may determine that —

- (a) particular dangerous goods must not be or may be transported in or on the same cargo transport unit as other goods, whether or not dangerous goods; or
- (b) particular dangerous goods may or may not be transported in any packaging despite any prohibition or authorisation in the Dangerous Goods List.

[Regulation 18 amended in Gazette 13 Jun 2014 p. 1932.]

19. Determinations — vehicles, routes, areas, times etc.

The Chief Officer may determine that particular dangerous goods may be or must or must not be transported —

- (a) using a specified vehicle or kind of vehicle; or
- (b) on a specified route; or
- (c) in or through a specified area; or
- (d) at a specified time; or
- (e) in quantities in excess of a specified amount; or
- (f) in specified packaging.

20. Determinations may be subject to conditions

- (1) In making a determination, the Chief Officer may impose in relation to the determination any condition necessary for the safe transport of dangerous goods.

- (2) A person to whom a determination applies must not contravene a condition the administration of the determination.

Penalty: a fine of \$10 000.

21. Effect of determinations on contrary obligations under these regulations

If these regulations impose an obligation on a person, ~~Mines Safety~~ and the person is authorised or permitted to act contrary

to that obligation by a determination, the obligation is to be read as if it stated that the person could fulfil the obligation by acting in accordance with the determination.

22. Offence to do any thing prohibited by a determination

If a determination prohibits the doing of any thing, a person to whom the determination applies must not do that thing.

Penalty: a fine of \$5 000.

23. Register of determinations

(1) The Chief Officer must keep a register of determinations.

(2) The register —

(a) may be part of a central register kept by the Chief Officer with the corresponding authorities; and

(b) may have separate divisions for different kinds of determinations.

(3) The Chief Officer must record in the register —

(a) each determination made under these regulations; and

(b) each corresponding determination.

(4) The Chief Officer must note in the register —

(a) any revocation of a determination; and

(b) a decision of CAP reversing a decision that a corresponding determination should have effect in all participating jurisdictions or participating jurisdictions including this State.

24. Records of determinations

The record of a determination in the register must include —

(a) the terms of the determination; or

(b) the following information —

(i) details of where in the *Gazette* the determination was notified or published;

- (ii) the provision of these regulations, and of the
ADG Code, to which the determination relates;
- (iii) the dangerous goods, equipment, packaging,
vehicle or other thing to which the determination
relates.

**Division 7 — Registers of determinations, exemptions,
approvals and licences**

25. Term used: register

In this Division —

register means each of the following —

- (a) the register of determinations kept under regulation 23;
- (b) the part of the register kept under the Act section 23(8)
dealing with exemptions from compliance with these
regulations;
- (c) the register of corresponding exemptions kept under
regulation 187;
- (d) the register of approvals kept under regulation 202;
- (e) the register of dangerous goods driver licences kept
under regulation 245(1);
- (f) the register of dangerous goods vehicle licences kept
under regulation 245(2).

26. Registers may be kept on computer

- (1) A register, or part of a register, may be kept on a computer.
- (2) An entry made on a computer for a register is taken to be a
record made in the register.

27. Inspection of registers~~*Act 1994 is committed (the Minister for
Mines),*~~

- (1) The Chief Officer must ensure that each register is available for
inspection by the corresponding authorities and the public.

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Registers of determinations, exemptions, approvals and
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(2) The Chief Officer is taken to comply with subregulation (1) in
respect of a register by ensuring that there is reasonable access
to —

(a) copies of information in the register; or

(b) a computer terminal to inspect the register.

Part 2 — Key concepts

Division 1 — Kinds of goods

~~— acting jointly.~~

~~— (2) There is to be an advisory committee called the Mining Industry
Advisory Committee.~~

~~— (3) The functions of the committee are —~~

~~— (a) to advise and make recommendations to the Ministers
and the Commission on occupational safety and health
matters concerning the mining industry; and~~

~~— (b) to liaise with the Commission to coordinate activities on
related functions and to maintain parallel standards,~~

~~— and in 28. **Term used: dangerous goods**~~

~~— (1) Subject to subregulations (2) and (3), for the purposes of these
regulations, a substance or article is ***dangerous goods*** if —~~

~~— (a) it satisfies the dangerous goods classification criteria set
out, or referred to, in the ADG Code Part 2; or~~

~~— (ba) it is named in column 2 of the Dangerous Goods List,
irrespective of whether the name is —~~

~~— (i) a generic name; or~~

~~— (ii) a name described as “N.O.S”;~~

~~— or~~

~~— (b) a determination made under regulation 17(1)(a) that the
substance or article is dangerous goods is in effect.~~

~~— (2) A substance or article that satisfies the criteria set out, or
referred to, in the ADG Code Part 2 is not dangerous goods for
the purposes of these regulations if —~~

~~— (a) it is described as not subject to the ADG Code in a
Special Provision in the ADG Code Chapter 3.3 that is
applied to the substance or article by column 6 of the
Dangerous Goods List; or~~

(b) a determination made under regulation 17(1)(a) that the substance or article is not dangerous goods is in effect.

(3) Except for regulation 29, a substance or article is not dangerous goods for the purposes of these regulations if, under the ADG Code, it is within any of the following classes or divisions of dangerous goods —

(a) Class 1 (explosives);

(b) Division 6.2 (infectious substances);

(c) Class 7 (radioactive materials).

[Regulation 28 amended in Gazette 22 Jun 2010 p. 2720.]

29. Terms used: UN Class, UN Division

For the purposes of these regulations, the **UN Class** or **UN Division** of particular dangerous goods is —

(a) if a determination made under regulation 17(1)(b) that the goods are of a particular UN Class or UN Division is in effect — the Class or Division specified in the determination; or

(b) if no such determination is in effect — the Class or Division determined for the goods in accordance with the ADG Code.

Notes for this regulation:

1. Under the UN classification system there are 9 classes of dangerous goods. Under that system some Classes are further divided into Divisions and some Divisions are divided into Categories.
2. Under the ADG Code, if particular dangerous goods are listed in the Dangerous Goods List, their UN Class or Division is that listed in column 3 of that list opposite the name and description of those goods, unless Chapter 3.3 of that Code provides for those goods to be assigned to a different Class or Division.

30. Term used: Subsidiary Risk

For the purposes of these regulations, the **Subsidiary Risk**, if any, of particular dangerous goods is —

(a) if a determination made under regulation 17(1)(c) that the goods have a particular Subsidiary Risk is in effect — the Subsidiary Risk specified in the determination; or

(b) if no such determination is in effect — the Subsidiary Risk determined for the goods in accordance with the ADG Code.

Note for this regulation:

Dangerous goods that are able to be assigned to more than one UN Class or UN Division are assigned a Subsidiary Risk. The Subsidiary Risk or Risks are the other UN Class or Classes or UN Division or Divisions to which the goods also belong. Under the ADG Code, if particular dangerous goods are listed in the Dangerous Goods List, their Subsidiary Risk, if any, is that listed in column 4 of that list opposite the name and description of those goods, unless Chapter 3.3 of that Code provides for those goods to be assigned a different Subsidiary Risk.

31. Term used: Packing Group

For the purposes of these regulations, the **Packing Group**, if any, of particular dangerous goods is —

(a) if a determination made under regulation 17(1)(d) that the goods are of a particular Packing Group is in effect — the Packing Group specified in the determination; or

(b) if no such determination is in effect — the Packing Group determined for the goods in accordance with the ADG Code.

Notes for this regulation:

1. The assignment of particular dangerous goods to a Packing Group indicates the degree of danger and the level of containment required for the goods. Only dangerous goods that are substances can be assigned to a Packing Group. The Packing Groups, and the degree of danger they indicate, are —

(a) Packing Group I (substances presenting high danger);

(b) Packing Group II (substances presenting medium danger);

(c) Packing Group III (substances presenting low danger).

2. The Packing Group of a substance can be determined from the Dangerous Goods List, although in some cases it is also necessary to refer to the ADG Code Chapter 3.3.

32. Term used: incompatible

- (1) Dangerous or other goods are ***incompatible*** with dangerous goods if —
- _____ (a) under the ADG Code Chapter 9.1, the goods are incompatible with the dangerous goods; or
- _____ (b) the goods are determined under regulation 17(1)(e) to be incompatible with the dangerous goods; or
- _____ (c) when the goods are mixed, or otherwise brought into contact, with the dangerous goods, the goods are likely to interact with the dangerous goods and increase risk to people, property or the environment because of the interaction.
- (2) Packaging or equipment for use in the transport of dangerous goods is ***incompatible*** with the goods if any component of the packaging or equipment that is intended or likely to come into contact with the goods during transport —
- _____ (a) is likely to interact with the goods and increase risk to people, property or the environment because of the interaction; and
- _____ (b) is not protected from contact under foreseeable circumstances by a protective coating or other effective means.

Division 2 — Containers and loads

33. Term used: bulk container

- (1) A ***bulk container*** is a container (with or ~~but~~ without a liner or coating) that —
- _____ (a) has a capacity of 1 m³ or more; and
- _____ (b) is intended for the transport of solid dangerous goods that are in direct contact with the container.

(2) None of the following is a bulk container, even if it has a capacity of 1m³ or more and is intended for the transport of solid dangerous goods —

(a) a large packaging that complies with the requirements of the ADG Code Chapter 6.6;

(b) an IBC;

(c) a tank;

(d) a tank vehicle;

(e) any other packaging that complies with the requirements of the ADG Code Chapter 6.1 or 6.3.

Limiting the generality of 34. Terms used: IBC, intermediate bulk container

(1) An **IBC** or **intermediate bulk container** is a rigid or flexible portable packaging that —

(a) is intended for the transport of dangerous goods; and

(b) complies with the specifications in the ADG Code Chapter 6.5; and

(c) has a capacity of not more than —

(i) if the packaging is intended for the transport of solids of Packing Group I and is a composite container, fibreboard container, flexible container, wooden container or rigid plastics container — 1 500 L;

(ii) if the packaging is intended for the transport of solids of Packing Group I and is a metal container — 3 000 L;

(iii) if the packaging is intended for the transport of solids or liquids of Packing Group II and III — 3 000 L;

and

(d) is designed for mechanical handling.

- (2) Rigid or flexible portable packaging that complies with the requirements of the ADG Code Chapter 6.1, 6.3 or 6.6 is not an IBC.

[Regulation 34 amended in Gazette 22 Jun 2010 p. 2720.]

35. Terms used: MEGC, multiple-element gas container

An *MEGC* or *multiple-element gas container* is —

- (a) a multimodal assembly of cylinders, tubes or bundles of cylinders that are interconnected by a manifold and assembled within a framework and are intended for the transport of gases; and
- (b) any service equipment and structural equipment necessary for the transport of gases in the cylinders or tubes.

[Regulation 35 amended in Gazette 17 Nov 2015 p. 4696.]

36. Term used: tank

(1) A *tank* is —

(a) a receptacle for receiving and holding dangerous goods;
and

(b) any service equipment and structural equipment that
enable the receptacle to transport those goods.

(2) A receptacle for receiving and holding dangerous goods of
UN Class 2 is not a tank unless it has a capacity of more than
450 L.

(3) None of the following is a tank —

(a) packaging that complies with the requirements of the
ADG Code Chapter 6.1, 6.3 or 6.6;

(b) an IBC;

(c) an MEGC;

(d) a cylinder;

(e) a pressure drum;

(f) a tube;

(g) a bulk container that complies with the requirements of
the ADG Code Chapter 6.8.

[37. Deleted in Gazette 13 Jun 2014 p. 1932.]

38. Loads

For the purposes of these regulations —

(a) all the goods in or on a road vehicle are a single load,
even if the vehicle is transporting more than one cargo
transport unit; and

(b) all the goods in a cargo transport unit being transported
on a rail vehicle are a single load.

[Regulation 38 inserted in Gazette 22 Jun 2010 p. 2720;
amended in Gazette 13 Jun 2014 p. 1933.]

Division 3 — Persons with special duties

39. Term used: owner

A person is an ***owner*** of a vehicle if the person —

- (a) is the sole owner, a joint owner or a part owner of the vehicle; or
- (b) has possession or use of the vehicle under a credit, hire-purchase, lease or other agreement, except an agreement requiring the vehicle to be registered in the name of someone else.

40. Terms used: consigns, consignor

(1) A person ***consigns*** dangerous goods or other goods for transport, and is the ***consignor*** of the goods, if —

- (a) subregulation (2) applies to the person; or
- (b) subregulation (2) does not apply to the person or anyone else, but subregulation (3) applies to the person; or
- (c) subregulations (2) and (3) do not apply to the person or anyone else, but subregulation (4) applies to the person.

(2) This subregulation applies to a person who, with the person's authority, is named or otherwise identified in the transport documentation that complies with the ADG Code Chapter 11.1 as the consignor of the goods.

(3) This subregulation applies to a person who —

- (a) engages a prime contractor or rail operator, either directly or through an agent or other intermediary, to transport the goods; or
- (b) if paragraph (a) does not apply — has possession of, or control over, the goods immediately before the goods are transported; or

(c) if neither paragraph (a) nor (b) applies — loads a vehicle with the goods, for transport, at a place —

(i) where dangerous goods are awaiting collection;
and

(ii) that is unattended (except by the driver of the vehicle) during loading.

(4) This subregulation applies to a person if —

(a) the goods are imported into Australia; and

(b) the person is the importer of the goods.

41. Terms used: packs, packer

A person ***packs*** dangerous or other goods for transport, and is a ***packer*** of the goods, if the person —

(a) puts the goods in a packaging; or

(b) assembles packages into large packaging or an overpack; or

(c) supervises an activity mentioned in paragraph (a) or (b);
or

(d) manages or controls an activity mentioned in paragraph (a), (b) or (c).

42. Terms used: loads, loader

A person ***loads*** dangerous or other goods for transport, and is a ***loader*** of the goods, if the person —

(a) loads the goods in or onto a vehicle; or

(b) places or secures a portable tank, bulk container or freight container containing the goods for transport onto a vehicle; or

(c) supervises an activity mentioned in paragraph (a) or (b);
or

(d) manages or controls an activity mentioned in paragraph (a), (b) or (c).

43. Term used: prime contractor

A person is the ***prime contractor*** for the transport of dangerous or other goods by road if the person, in conducting a business for or involving the transport of goods by road, undertakes to be responsible, or is responsible, for the transport of the goods by road.

44. Term used: rail operator

A person is a ***rail operator*** for the transport of dangerous or other goods by rail if the person undertakes to be responsible, or is responsible, for —

- (a) the transport of the goods by rail; or
- (b) the condition of a unit of rolling stock transporting the goods.

Division 4 — Miscellaneous

45. Term used: packed in limited quantities

Dangerous goods are ***packed in limited quantities*** if —

- (a) the goods are packed in accordance with the ADG Code Chapter 3.4; and
- (b) the quantity of dangerous goods in each inner packaging or in each article that contains the goods does not exceed the quantity specified, or referred to, in column 7 of the Dangerous Goods List for those goods.

Part 3 — Transport of dangerous goods to which Special Provisions apply

46. Application of this Part

This Part applies in relation to the transport of dangerous goods
if —

- (a) column 6 of the Dangerous Goods List specifies that a
Special Provision in the ADG Code Chapter 3.3 applies
to the dangerous goods; and
- (b) that Special Provision —
 - (i) prohibits the transport of the goods by road or
rail; or
 - (ii) imposes a restriction on the way the goods are to
be transported by road or rail.

[Regulation 46 inserted in Gazette 22 Jun 2010 p. 2721.]

47. Duty on consignors

A person must not consign dangerous goods for transport if the
person knows, or ought reasonably to know, that —

- (a) a Special Provision applies to the transport of the goods;
and
- (b) the transport of the goods does not or will not comply
with the Special Provision.

Penalty: a fine of \$10 000.

48A. Duty on packers

A person must not pack dangerous goods for transport if the
person knows, or ought reasonably to know —

- (a) that column 6 of the Dangerous Goods List specifies that
a Special Provision in the ADG Code Chapter 3.3
applies to the transport of the goods; and

- (b) that the transport of the goods does not, or will not,
comply with the Special Provision.

Penalty: a fine of \$5 000.

[Regulation 48A inserted in Gazette 22 Jun 2010 p. 2721.]

48B. Duty on loaders

A person must not load dangerous goods on to a vehicle for
transport if the person knows, or ought reasonably to know —

- (a) that column 6 of the Dangerous Goods List specifies that
a Special Provision in the ADG Code Chapter 3.3
applies to the transport of the goods; and

- (b) that the transport of the goods does not, or will not,
comply with the Special Provision.

Penalty: a fine of \$5 000.

[Regulation 48B inserted in Gazette 22 Jun 2010 p. 2722.]

48. Duty on prime contractors and rail operators

A prime contractor or rail operator must not transport dangerous
goods if the prime contractor or rail operator knows, or ought
reasonably to know, that —

- (a) a Special Provision applies to the transport of the goods;
and

- (b) the transport of the goods does not comply with the
Special Provision.

Penalty: a fine of \$10 000.

49. Duty on drivers

A person must not drive a road vehicle transporting dangerous
goods if the person knows, or ought reasonably to know, that —

- (a) a Special Provision applies to the transport of the goods;
and

- (b) the transport of the goods does not comply with the
Special Provision.

Penalty: a fine of \$5 000.

Part 4 — Packaging

Division 1 — General

50. Packing of dangerous goods in limited quantities

Dangerous goods packed in limited quantities do not need to be packed as required by this Part.

[51. Deleted in Gazette 22 Jun 2010 p. 2722.]

52. References to ADG Code Part 4 include Dangerous Goods List requirements

In this Part, a reference to dangerous goods being packed in accordance with any relevant provision in the ADG Code Part 4 is to be taken to include a reference to the goods being packed in accordance with any packing requirement specified in relation to the goods in the Dangerous Goods List.

Division 2 — Suitability and design of packaging

53. Suitability of packaging for transport

(1) Packaging is unsuitable for the transport of dangerous goods if —

- (a) it is required to undergo performance tests under the ADG Code Part 6 and it is not approved packaging; or
- (b) it does not meet any relevant standards or requirements specified by the ADG Code Part 4 or 6 (including requirements with respect to inspection, maintenance and repair); or
- (c) its use, or reuse, for the transport of the goods does not comply with the ADG Code Part 4 or 6; or
- (d) its use for the transport of the goods is prohibited by a determination; or
- (e) it is incompatible with the goods; or

(f) it is damaged or defective to the extent that it is not safe to use to transport the goods.

(2) A freight container is also unsuitable for use as a bulk container for the transport of dangerous goods if it does not have affixed to it a Safety Approval Plate as required under the International Convention for Safe Containers 1972.

[Regulation 53 amended in Gazette 22 Jun 2010 p. 2722-3.]

54. Marking packaging

(1) A person must not apply any marking required by the ADG Code Part 6 on packaging if the packaging is not of a design that is approved under regulation 56.

(2) A person must not apply a marking mentioned in the ADG Code Part 6 on packaging that is not appropriate for the packaging.

Penalty: a fine of \$10 000.

55. Applications for approval of packaging designs

(1) This regulation applies to packaging that is required to undergo tests under the ADG Code Part 6.

(2) A person may apply to the Chief Officer for the approval of a design for a packaging to which this regulation applies for use in the transport of dangerous goods.

(3) An application for approval must include the information required under the ADG Code Part 6.

[Regulation 55 amended in Gazette 3 Aug 2012 p. 3757.]

56. Approvals — packaging designs

(1) The Chief Officer may, on an application made in accordance with regulations 55 and 194, approve a design for a packaging for use in the transport of dangerous goods if satisfied that a packaging of that design —

(a) will comply with, or is permitted by, the ADG Code Part 6; and

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Division 2 Suitability and design of packaging

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(b) satisfies all the relevant testing and inspection requirements set out in that Part.

(2A) In determining whether packaging of a particular design satisfies any particular testing requirement, the Chief Officer may rely on any test certificate issued by a recognised testing facility that complies with regulation 58.

(2) If approval is sought for the design for a tank or an IBC that is pressure equipment of a kind the design of which must be registered under the *Occupational Safety and Health Regulations 1996* regulation 4.2, the Chief Officer must not approve the design unless the design has been so registered.

(3) In giving his or her approval, the Chief Officer may impose in relation to the approval any condition that —

(a) is about the construction, packing, maintenance or use of packaging manufactured in accordance with the design; and

(b) is necessary for the safe use of the packaging to transport dangerous goods.

(4) A person must not construct, pack or fail to maintain packaging for use in the transport of dangerous goods or use packaging to transport dangerous goods if the person knows, or ought reasonably to know, that —

(a) a condition about the construction, packing, maintenance or use of the packaging, as the case requires, was imposed in relation to the approval of the design for the packaging; and

(b) the construction, packing, failure to maintain or use is in contravention of the condition.

Penalty: a fine of \$10 000.

[Regulation 56 amended in Gazette 22 Jun 2010 p. 2723.]

57. Term used: recognised testing facilities

For the purposes of these regulations, the following testing facilities are ***recognised testing facilities*** for packaging of a particular design —

- (a) a testing facility registered by NATA to conduct performance tests required under the ADG Code Part 6 for the design;
- (b) if NATA has not registered a testing facility to conduct performance tests of that kind — a testing facility in Australia capable of conducting the tests;
- (c) a facility in a foreign country approved by a public authority of the country to conduct performance tests of that kind.

58. Test certificates

- (1) A recognised testing facility may certify in writing that packaging of a particular design has passed particular performance tests for particular dangerous goods.
- (2) If a performance test is conducted by a testing facility registered by NATA, any test certificate, or report on the test, must —
 - (a) contain any details required under the relevant Chapter of Part 6 of the ADG Code; and
 - (b) be in the appropriate form used by NATA registered testing facilities.
- (3) If a performance test is conducted in Australia by a recognised testing facility that is not registered by NATA —
 - (a) the test must be observed by or for the Chief Officer; and
 - (b) any test certificate or report must contain any details required under the relevant Chapter of Part 6 of the ADG Code.

59. Approvals — overpacks

- (1) The Chief Officer may, on an application made in accordance with regulation 194, approve a method of preparing an overpack for transporting dangerous goods that does not comply with the ADG Code section 5.1.2 if the Chief Officer considers that the risk involved in using the method is not greater than the risk involved in using a method that complies with the section.
- (2) In giving his or her approval, the Chief Officer may impose in relation to the approval any condition that is about the use of the overpack and is necessary for the safe use of the overpack to transport dangerous goods.
- (3) A person must not use an overpack to transport dangerous goods if the person knows, or ought reasonably to know, that —
- (a) a condition about the use of the overpack was imposed in relation to the approval of the method of preparing the overpack; and
- (b) the use is in contravention of the condition.

Penalty: a fine of \$10 000.

60. Authorised bodies may give approvals

- (1) The Chief Officer may, on an application made in accordance with regulation 194, authorise a body or any other person to give approvals under regulations 56 and 59.
- (2) In giving his or her authorisation, the Chief Officer may impose in relation to the authorisation any condition that the Chief Officer considers appropriate in relation to the giving of approvals by the body or other person.
- (3) In giving an approval, the body or other person must also, in addition to complying with any condition imposed under subregulation (2) —
- (a) comply with any relevant requirements imposed under the ADG Code Part 6 in relation to the giving of the approval; and

(b) give to the Chief Officer, in relation to the approval, all of the information required under regulation 203(a) and (b) to be included in the register of approvals.

(4) If a body or any other person is authorised under this regulation to give approvals —

(a) regulation 55 and regulations 56 and 59 (or regulation 56 or 59 as the case requires) apply, in relation to the giving of approvals by the body or other person, as if a reference in those regulations to the Chief Officer were a reference to the body or other person; and

(b) Part 16 Divisions 1 and 4, to the extent that they deal with approvals, apply, in relation to the giving of approvals by the body or other person, as if a reference in those Divisions to the Chief Officer were a reference to the body or other person; and

(c) a reference in these regulations to an approval given under regulation 56 or 59 includes a reference to an approval given by the body or other person under regulation 56 or 59 as applied under paragraph (a).

(5) The Chief Officer may at any time withdraw an authorisation given under this regulation.

(6) The withdrawal of an authorisation does not affect any approval given by the body or other person before the withdrawal.

Division 3 — Prohibition on the sale or supply of non-compliant packaging

61. Offence to sell or supply non-compliant packaging

(1) A person must not sell, supply or offer to sell or supply any packaging for use in the transport of dangerous goods if it does not comply with the requirements of the ADG Code Parts 4 and 6 or Chapter 3.4.

(2) A person must not sell, supply or offer to sell or supply any packaging for use in the transport of dangerous goods that is

marked in accordance with the ADG Code Part 6 unless the packaging conforms with a design that is approved under regulation 56.

Penalty: a fine of \$10 000.

Division 4 — Offences relating to general packaging

[Heading inserted in Gazette 22 Jun 2010 p. 2724.]

62. Term used: general packaging

In this Division —

general packaging means all packaging other than demountable tanks, portable tanks, MEGCs, bulk containers, freight containers, tanks on tank vehicles and overpacks.

[Regulation 62 inserted in Gazette 22 Jun 2010 p. 2724.]

63. Duty on consignors

A person must not consign dangerous goods for transport in any general packaging if the person knows, or ought reasonably to know, that —

- (a) the packaging is unsuitable for the transport of the goods; or
- (b) the goods have not been packed in the packaging in accordance with any relevant provision of the ADG Code Part 4.

Penalty: a fine of \$10 000.

[Regulation 63 inserted in Gazette 22 Jun 2010 p. 2724.]

64. Duty on packers

- (1) A person must not pack dangerous goods for transport in any general packaging if the person knows, or ought reasonably to know, that the packaging is unsuitable for the transport of the goods.
- (2) A person must not pack dangerous goods for transport in any general packaging in a way that the person knows, or ought

reasonably to know, does not comply with any relevant provision of the ADG Code Part 4.

Penalty: a fine of \$5 000.

[Regulation 64 inserted in Gazette 22 Jun 2010 p. 2724.]

65. Duty on loaders

A person must not load dangerous goods that are in any general packaging on to a vehicle for transport if the person knows, or ought reasonably to know, that the packaging is damaged or defective to the extent that it is not safe to use to transport the goods.

Penalty: a fine of \$5 000.

[Regulation 65 inserted in Gazette 22 Jun 2010 p. 2725.]

66. Duty on prime contractors and rail operators

A prime contractor or rail operator must not transport dangerous goods in any general packaging if the prime contractor or rail operator knows, or ought reasonably to know, that the packaging is damaged or defective to the extent that it is not safe to use to transport the goods.

Penalty: a fine of \$10 000.

[Regulation 66 inserted in Gazette 22 Jun 2010 p. 2725.]

67. Duty on drivers

A person must not drive a road vehicle transporting dangerous goods in any general packaging if the person knows, or ought reasonably to know, that the packaging is damaged or defective to the extent that it is not safe to use to transport the goods by road.

Penalty: a fine of \$5 000.

[Regulation 67 inserted in Gazette 22 Jun 2010 p. 2725.]

Division 5 — Offences relating to other packaging

[Heading inserted in Gazette 22 Jun 2010 p. 2725.]

68. Term used: other packaging

In this Division —

other packaging means demountable tanks, portable tanks, MEGCs, bulk containers, freight containers and tanks on tank vehicles.

[Regulation 68 inserted in Gazette 22 Jun 2010 p. 2725.]

69. Duty on manufacturers of portable tanks, MEGCs or tank vehicles

(1) A person who manufactures a portable tank or an MEGC for use in the transport of dangerous goods must attach a compliance plate to the tank or MEGC in accordance with the ADG Code Chapter 6.7.

(2) Subregulation (1) does not apply to a person in relation to a portable tank if the ADG Code Chapter 6.7 permits the marking of the tank instead of the attachment of a compliance plate, and if the tank is marked as required by that Chapter.

(3) A person who manufactures a tank vehicle for use in the transport of dangerous goods must attach a compliance plate to the vehicle in accordance with the ADG Code section 6.9.2.2.

Penalty: a fine of \$10 000.

[Regulation 69 inserted in Gazette 22 Jun 2010 p. 2726.]

70. Duty on owners of demountable tanks, portable tanks and MEGCs

The owner of a demountable tank, a portable tank or an MEGC must not use the tank or MEGC, or permit the tank or MEGC to be used, to transport dangerous goods if the tank or MEGC is unsuitable for the transport of the goods.

Penalty: a fine of \$10 000.

[Regulation 70 inserted in Gazette 22 Jun 2010 p. 2726.]

71. Duty on consignors

(1) A person must not consign dangerous goods for transport in any other packaging provided by the person if —

(a) the packaging is unsuitable for the transport of the goods; or

(b) the goods have not been packed in the packaging in accordance with any relevant provision in the ADG Code Part 4.

(2) A person must not consign dangerous goods for transport in any other packaging that was provided by any other person if —

(a) the packaging is unsuitable for the transport of the goods; or

(b) the goods have not been packed in the packaging in accordance with any relevant provision in the ADG Code Part 4.

Penalty: a fine of \$10 000.

[Regulation 71 inserted in Gazette 22 Jun 2010 p. 2726-7.]

72. Duty on packers

(1) A person must not pack dangerous goods for transport in any other packaging if the person knows, or ought reasonably to know, that the packaging is unsuitable for the transport of the goods.

(2) A person must not pack dangerous goods for transport in any other packaging in a way that the person knows, or ought reasonably to know, does not comply with any relevant provision in the ADG Code Part 4.

Penalty: a fine of \$5 000.

[Regulation 72 inserted in Gazette 22 Jun 2010 p. 2727.]

73. Duty on loaders

A person must not load dangerous goods that are in any other packaging on to a vehicle for transport if the person knows, or

ought reasonably to know, that the packaging is unsuitable for the transport of the goods.

Penalty: a fine of \$5 000.

[Regulation 73 inserted in Gazette 22 Jun 2010 p. 2727.]

74. Duty on prime contractors and rail operators

(1) A prime contractor or rail operator must not transport dangerous goods in any other packaging provided by the prime contractor or rail operator if —

(a) the packaging is unsuitable for the transport of the goods; or

(b) the goods have not been packed in the packaging in accordance with any relevant provision of the ADG Code Part 4.

(2) A prime contractor or rail operator must not transport dangerous goods in any other packaging provided by any other person if the prime contractor or rail operator knows, or ought reasonably to know, that —

(a) the packaging is unsuitable for the transport of the goods; or

(b) the goods have not been packed in the packaging in accordance with any relevant provision of the ADG Code Part 4.

Penalty: a fine of \$10 000.

[Regulation 74 inserted in Gazette 22 Jun 2010 p. 2728.]

75. Duty on drivers

A person must not drive a road vehicle transporting dangerous goods in any other packaging if the person knows, or ought reasonably to know, that —

(a) the packaging is unsuitable for the transport of the goods; or

- (b) the goods have not been packed in the packaging in accordance with any relevant provision of the ADG Code Part 4.

Penalty: a fine of \$5 000.

[Regulation 75 inserted in Gazette 22 Jun 2010 p. 2728.]

[76-82. Deleted in Gazette 22 Jun 2010 p. 2724.]

[Divisions 6-8 (r. 83-100) deleted in Gazette 22 Jun 2010 p. 2724.]

Division 9 — Offences relating to overpacks

101. Duty on consignors

A person must not consign dangerous goods for transport in an overpack if —

- (a) the packages to be included in the overpack cannot be transported safely in the overpack; or
- (b) the preparation of the overpack does not comply with either —
- (i) the ADG Code section 5.1.2; or
- (ii) an approval given under regulation 59.

Penalty: a fine of \$5 000.

102. Duty on packers

A person must not pack dangerous goods for transport in an overpack if the person knows, or ought reasonably to know, that —

- (a) the packages to be included in the overpack cannot be transported safely in the overpack; or
- (b) the preparation of the overpack does not comply with either —
- (i) the ADG Code section 5.1.2; or
- (ii) an approval given under regulation 59.

Penalty: a fine of \$5 000.

103. Duty on loaders

A person must not load dangerous goods in an overpack for transport if the person knows, or ought reasonably to know, that —

(a) the packages within the overpack cannot be transported safely in the overpack; or

(b) the preparation of the overpack does not comply with either —

(i) the ADG Code section 5.1.2; or

(ii) an approval given under regulation 59.

Penalty: a fine of \$5 000.

104. Duty on prime contractors and rail operators

A prime contractor or rail operator must not transport dangerous goods in an overpack if the prime contractor or rail operator knows, or ought reasonably to know, that —

(a) the packages within the overpack cannot be transported safely in the overpack; or

(b) the preparation of the overpack does not comply with either —

(i) the ADG Code section 5.1.2; or

(ii) an approval given under regulation 59.

Penalty: a fine of \$5 000.

105. Duty on drivers

A person must not drive a road vehicle transporting dangerous goods in an overpack if the person knows, or ought reasonably to know, that the packages within the overpack cannot be transported safely in the overpack.

Penalty: a fine of \$5 000.

Part 5 — Consignment procedures

Division 1 — Marking and labelling

106. Term used: appropriately marked

- (1) A receptacle (other than a cargo transport unit or an overpack) that contains dangerous goods and —
- (a) has a capacity of more than 500 L; or
- (b) contains more than 500 kg of dangerous goods,
- is ***appropriately marked*** if it is marked and labelled in accordance with the ADG Code Chapters 5.2 and 5.3.3.
- (2) A receptacle (other than an overpack) to which subregulation (1) does not apply that contains dangerous goods is ***appropriately marked*** if —
- (a) it is marked and labelled in accordance with the ADG Code Chapter 5.2; and
- (b) it is placarded in accordance with the ADG Code section 5.3.3.
- (3) An overpack is ***appropriately marked*** if it is marked and labelled in accordance with the ADG Code section 5.1.2.
- (4) A package of dangerous goods packed in limited quantities is also ***appropriately marked*** if it is marked and labelled in accordance with the ADG Code Chapter 3.4.
- ~~[(5) deleted]~~
- ~~[Regulation 106 amended in Gazette 22 Jun 2010 p. 2729; 13 Jun 2014 p. 1933; 11 Jul 2017 p. 3824.]~~

107. Duty on consignors

- (1) A person must not consign dangerous goods for transport in a package if the package is not appropriately marked.

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Division 1 Marking and labelling

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(2) A person must not consign dangerous goods for transport in a package if a marking or label on the package about its contents is false or misleading in a material particular.

(3) A person must not consign goods for transport in a package that does not contain dangerous goods but is marked or labelled as if it contained dangerous goods.

(3A) Subregulation (3) does not apply if the marking or labelling of the package complies with the requirements of the ICAO Technical Instructions or the IMDG Code with respect to the contents of the package.

(3B) A reference to a label in this regulation includes a reference to a placard.

Penalty for an offence under this regulation:

(a) for large packaging or overpack — a fine of \$5 000;

(b) in any other case — a fine of \$1 500.

[Regulation 107 amended in Gazette 13 Jun 2014 p. 1933-4.]

108. Duty on packers

(1) A person must not pack dangerous goods for transport if the person knows, or ought reasonably to know, that any of the packaging to be used to transport the goods is not appropriately marked.

(2) A person who packs dangerous goods for transport in a package must not mark or label the package with a marking or label about its contents that the person knows, or ought reasonably to know, is false or misleading in a material particular.

(3) A person who packs goods for transport in a package must not mark or label the package as if it contained dangerous goods if the person knows, or ought reasonably to know, that it does not contain dangerous goods.

(4) Subregulation (3) does not apply if the marking or labelling of the package complies with the requirements of the ICAO

Technical Instructions or the IMDG Code with respect to the contents of the package.

- (5) A reference to a label in this regulation includes a reference to a placard.

Penalty for an offence under this regulation:

(a) for large packaging or overpack — a fine of \$5 000;

(b) in any other case — a fine of \$1 500.

[Regulation 108 amended in Gazette 13 Jun 2014 p. 1934.]

109. Duty on prime contractors and rail operators

- (1) A prime contractor or rail operator must not transport goods in a package if the prime contractor or rail operator knows, or ought reasonably to know, that —

(a) the goods are dangerous goods; and

(b) the package is not appropriately marked.

- (2) A prime contractor or rail operator must not transport dangerous goods in a package if the prime contractor or rail operator knows, or ought reasonably to know, that a marking or label on the package about its contents is false or misleading in a material particular.

- (3) A prime contractor or rail operator must not transport goods in a package that is marked or labelled as if it contained dangerous goods if the prime contractor or rail operator knows, or ought reasonably to know, that the package does not contain dangerous goods.

- (4) Subregulation (3) does not apply if the marking or labelling of the package complies with the requirements of the ICAO Technical Instructions or the IMDG Code with respect to the contents of the package.

- (5) A reference to a label in this regulation includes a reference to a placard.

Penalty for an offence under this regulation:

(a) for large packaging or overpack — a fine of \$5 000;

(b) in any other case — a fine of \$1 500.

[Regulation 109 amended in Gazette 13 Jun 2014 p. 1934-5.]

Division 2 — Placarding

110. When loads must be placarded

(1) Except as provided in subregulation (2), a load that contains dangerous goods must be placarded if —

(a) it contains —

(i) dangerous goods in a receptacle, other than an article, with a capacity of more than 500 L; or

(ii) more than 500 kg of dangerous goods in a receptacle, other than an article;

or

(b) it contains an aggregate quantity of dangerous goods of 250 or more and those goods include —

(i) dangerous goods of UN Division 2.1 (other than aerosols); or

(ii) dangerous goods of UN Division 2.3; or

(iii) dangerous goods of Packing Group I;

or

(c) it contains an aggregate quantity of dangerous goods of 1000 or more.

(2) However, a load containing an aggregate quantity of dangerous goods of less than 2 000 that consists only of the following dangerous goods is not a load that must be placarded —

(a) dangerous goods that are packed in limited quantities;

(b) dangerous goods that are —

(i) fireworks that are bon bons, party poppers or sparklers with a classification code of 1.4S;

(ii) domestic smoke detectors containing radioactive material;

(iii) lighters or lighter refills containing flammable gas;

(iv) fire extinguishers with compressed or liquefied gas, up to a net mass of 23 kg;

(c) a combination of the dangerous goods referred to in paragraphs (a) and (b).—

(3) In subregulation (2)(b)(i) —

classification code has the meaning given in the *Dangerous Goods Safety (Explosives) Regulations 2007* regulation 3.

[Regulation 110 amended in Gazette 22 Jun 2010 p. 2729;
13 Jun 2014 p. 1935; 11 Jul 2017 p. 3824-5.]

111. Terms used: placard, appropriately placarded

(1) A person *placards* a load that contains dangerous goods if the person affixes, stencils, prints or places a label (as defined in the ADG Code) or an emergency information panel (as defined in the ADG Code section 5.3.1.3) in relation to the load on anything that is being, or that is to be, used to transport the load.

(2) A placard load is *appropriately placarded* if it is placarded in accordance with the ADG Code Chapter 5.3.

[Regulation 111 amended in Gazette 13 Jun 2014 p. 1935.]

112. Duty on consignors

(1) A person must not consign a placard load for transport if the load is not appropriately placarded.

Penalty for this subregulation: a fine of \$10 000.

(2) A person must not consign a placard load for transport if the placarding of the load is false or misleading in a material particular.

Penalty for this subregulation: a fine of \$10 000.

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Division 2 Placarding

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- (3) A person must not consign goods for transport in or on a cargo transport unit that does not contain dangerous goods but is placarded as if it were a placard load.

Penalty for this subregulation: a fine of \$10 000.

- (4) Subregulation (3) does not apply if the placarding of the cargo transport unit complies with the requirements of the ICAO Technical Instructions or the IMDG Code with respect to the contents of the cargo transport unit.

- (5) A person must not consign a load of dangerous goods (other than a placard load) for transport in or on a cargo transport unit if —

(a) the load is placarded; and

(b) the placarding is false or misleading in a material particular.

Penalty for this subregulation: a fine of \$10 000.

[Regulation 112 amended in Gazette 13 Jun 2014 p. 1935-6;
17 Nov 2015 p. 4696-7.]

113. Duty on loaders

- (1) A person who loads dangerous goods on to a vehicle for transport must ensure that the load is appropriately placarded if the person knows, or ought reasonably to know, that the goods are a placard load.

Penalty for this subregulation: a fine of \$10 000.

- (2) A person who loads a placard load on to a vehicle for transport must not placard the load with placarding that the person knows, or ought reasonably to know, is false or misleading in a material particular.

Penalty for this subregulation: a fine of \$10 000.

- (3) A person who loads goods on to a vehicle for transport must not placard the load as if it were a placard load if the person knows,

or ought reasonably to know, that the load does not contain dangerous goods.

Penalty for this subregulation: a fine of \$10 000.

- (4) Subregulation (3) does not apply if the placarding of the load complies with the requirements of the ICAO Technical Instructions or the IMDG Code with respect to the contents of the load.

- (5) A person who loads dangerous goods (other than a placard load) into or on to a cargo transport unit for transport in or on the unit must not placard the load with placarding that the person knows, or ought reasonably to know, is false or misleading in a material particular.

Penalty for this subregulation: a fine of \$10 000.

[Regulation 113 amended in Gazette 22 Jun 2010 p. 2730;
13 Jun 2014 p. 1936; 17 Nov 2015 p. 4697.]

114. Duty on prime contractors and rail operators

- (1) A prime contractor or rail operator must not transport dangerous goods if the prime contractor or rail operator knows, or ought reasonably to know, that —

(a) the goods are a placard load; and

(b) the load is not appropriately placarded.

Penalty for this subregulation: a fine of \$10 000.

- (2) A prime contractor or rail operator must not transport a placard load if the prime contractor or rail operator knows, or ought reasonably to know, that the placarding of the load is false or misleading in a material particular.

Penalty for this subregulation: a fine of \$10 000.

- (3) A prime contractor or rail operator must not use, or permit to be used, a cargo transport unit that is placarded as if it were a placard load if the prime contractor or rail operator knows, or

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ought reasonably to know, that the cargo transport unit does not contain dangerous goods.

Penalty for this subregulation: a fine of \$10 000.

(4) Subregulation (3) does not apply if the placarding of the cargo transport unit complies with the requirements of the ICAO Technical Instructions or the IMDG Code with respect to the contents of the cargo transport unit.

(5) A prime contractor or rail operator must not transport a load of dangerous goods (other than a placard load) in or on a cargo transport unit if —

(a) the load is placarded; and

(b) the person knows, or ought reasonably to know, that the placarding is false or misleading in a material particular.

Penalty for this subregulation: a fine of \$10 000.

[Regulation 114 amended in Gazette 13 Jun 2014 p. 1936-7;
17 Nov 2015 p. 4698.]

115. Duty on drivers

(1) A person must not drive a road vehicle transporting dangerous goods if the person knows, or ought reasonably to know, that —

(a) the goods are a placard load; and

(b) the load is not appropriately placarded.

Penalty for this subregulation: a fine of \$10 000.

(2) A person must not drive a road vehicle transporting a placard load if the person knows, or ought reasonably to know, that the placarding of the load is false or misleading in a material particular.

Penalty for this subregulation: a fine of \$10 000.

(3) A person must not drive a road vehicle that is, or that incorporates, a cargo transport unit that is placarded as if it were a placard load if the person knows, or ought reasonably to know, that the vehicle does not contain dangerous goods.

Penalty for this subregulation: a fine of \$10 000.

(4) A person must not drive a road vehicle that is, or that incorporates, a cargo transport unit if —

(a) the unit is transporting a load of dangerous goods (other than a placard load); and

(b) the load is placarded; and

(c) the person knows, or ought reasonably to know, that the placarding is false or misleading in a material particular.

Penalty for this subregulation: a fine of \$10 000.

[Regulation 115 amended in Gazette 13 Jun 2014 p. 1937;
17 Nov 2015 p. 4698-9.]

Part 6 — Safety standards for vehicles and equipment

116. Duty on owners

The owner of a vehicle must not use the vehicle, or permit it to be used, to transport dangerous goods if the vehicle or its equipment does not comply with the ADG Code Chapters 4.4 and 6.9.

Penalty: a fine of \$10 000.

117. Duty on consignors

A person must not consign dangerous goods for transport in or on a vehicle if the person knows, or ought reasonably to know, that the vehicle or its equipment does not comply with the ADG Code Chapters 4.4 and 6.9.

Penalty: a fine of \$10 000.

118. Duty on loaders

A person must not load dangerous goods for transport in or onto a vehicle if the person knows, or ought reasonably to know, that the vehicle or its equipment does not comply with the ADG Code Chapters 4.4 and 6.9.

Penalty: a fine of \$10 000.

119. Duties on prime contractors and rail operators

A prime contractor or rail operator must not use a vehicle to transport dangerous goods if the vehicle or its equipment does not comply with the ADG Code Chapters 4.4 and 6.9.

Penalty: a fine of \$10 000.

120. Duty on drivers

A person must not drive a road vehicle transporting dangerous goods if the person knows, or ought reasonably to know, that the road vehicle or its equipment does not comply with the ADG Code Chapters 4.4 and 6.9.

Penalty: a fine of \$10 000.

**Part 7 — Transport operations relating to certain
dangerous goods and empty packaging**

- ~~———— (e) — to inquire into and report to the Ministers regarding any matter referred to it by the Ministers relating to occupational safety and health in the mining industry;~~
- ~~———— (d) — to make recommendations to the Minister for Mines regarding the formulation, amendment, or repeal of laws relating to occupational safety and health for which that Minister is responsible;~~
- ~~———— (e) — to prepare or recommend the adoption of codes of practice, guidelines, standards, specifications or other forms of guidance for the purpose of assisting employers, self-employed persons, employees, manufacturers or other persons to maintain appropriate standards of occupational safety and health in the mining industry; and~~
- ~~———— (f) — to provide advice on —~~
 - ~~———— (i) — education and publications; and~~
 - ~~———— (ii) — training and training courses,~~
- ~~———— with respect to occupational safety and health in the mining industry.~~
- ~~———— (4) — The chairperson of the committee is to be the member of the Commission nominated under section 6(2)(c)(ii).~~
- ~~———— (5) — Subject to subsection (4), the Ministers —~~
 - ~~———— (a) — are to appoint the members of; and~~
 - ~~———— (b) — may alter or reconstitute,~~
- ~~———— the committee.~~
- ~~———— (6) — The members of the committee are entitled to be paid such remuneration and travelling and other allowances as may be determined by the Ministers on the recommendation of the Minister for Public Sector Management.~~

**Dangerous Goods Safety (Road and Rail Transport of Non-explosives)
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Part 7 Transport operations relating to certain dangerous goods and empty packaging

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~~— (7) Subject to any direction given to it by the Commission, the committee is to determine its own procedures.~~

~~———— [Section 14A inserted by No. 51 of 2004 s. 106.]~~

15. Advisory committees

~~— (1) The Commission may at any time and when so requested by the Minister shall appoint advisory committees to assist it in the performance of its functions and duties.~~

~~— (2) Subject to this section, an advisory committee shall consist of such number of persons as are appointed by the Commission.~~

~~— (3) Subject to the direction of the Commission an advisory committee may determine its own procedures.~~

~~— (4) The members of advisory committees are entitled to be paid such remuneration and travelling and other allowances as may be determined by the Minister on the recommendation of the Minister for Public Sector Management².~~

~~— (5) In appointing persons to be members of advisory committees under this section the Commission —~~

~~———— (a) shall, as far as is practicable, appoint persons who represent employers, employees and persons having knowledge of or experience in occupational safety and health; and~~

~~———— (b) shall have regard to the desirability of having a reasonable number of men and women, including persons of differing ethnic backgrounds and other groups with special needs.~~

~~———— [Section 15 amended by No. 30 of 1995 s. 47.]~~

16. Annual report

~~— (1) The Commission shall on or before 31 October in each year prepare and submit to the Minister a report of its operations and~~

~~the operation of this Act and any prescribed law during the year
ending on the preceding 30 June.~~

- ~~— (2) The Minister shall cause a report submitted under this section to
be laid before each House of Parliament within 12 sitting days
of such House of its receipt by him or her.~~

~~———— [Section 16 amended by No. 51 of 2004 s. 102(3).]~~

17. — Staff to assist the Commission

~~———— There shall be appointed under and subject to Part 3 of the
Public Sector Management Act 1994 such officers and
employees as are necessary to assist the Commission in the
performance of its functions and duties.~~

~~———— [Section 17 amended by No. 32 of 1994 s. 19; No. 30 of 1995
s. 47.]~~

18. — The Commissioner and the department

- ~~— (1) The Commissioner is subject to the control and direction of the
Minister, and is responsible to the Minister for the
administration of this Act and any other law relating to
occupational safety and health administered by the Minister.~~

- ~~— (2) There shall be appointed under and subject to Part 3 of the
Public Sector Management Act 1994 such officers as are
necessary for the administration of this Act and any law relating
to occupational safety and health administered by the Minister.~~

- ~~— (3) The offices of Commissioner and chief executive officer of the
department may be held by the same person.~~

- ~~— (4) The Commissioner may, either generally or as provided by the
instrument of delegation, by writing signed by him or her,
delegate to any officer of the department any of his or her
functions under this Act other than this power of delegation, and
a function performed in accordance with a delegation under this
subsection is deemed to be performed by the Commissioner.~~

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Part 7 Transport operations relating to certain dangerous goods and
empty packaging

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*[Section 18 amended by No. 43 of 1987 s. 12; No. 55 of 1987
s. 5; No. 32 of 1994 s. 19; No. 30 of 1995 s. 47; No. 51 of 2004
s. 102(2) and (3).]*

**~~Part III — General provisions relating to occupational
safety and health~~**

*[Heading inserted in Gazette 11 Jul 2017 p. 3825.] by No. 43 of
1987 s. 13; amended by No. 30 of 1995 s. 47.]*

120A. Term used: empty dangerous goods packaging

In this Part —

empty dangerous goods packaging means —

- (a) unused pre-labelled packaging intended for use with
dangerous goods; and
- (b) packaging that has been used for dangerous goods and is
nominally empty.

[Regulation 120A inserted in Gazette 11 Jul 2017 p. 3825.]

121. Application of Part

- (1) This Part applies to the transport of the following dangerous
goods —

- (a) gases of UN Class 2;
- (b) self-reactive substances of UN Division 4.1;
- (c) organic peroxides of UN Division 5.2;
- (d) other substances for which —
 - (i) the proper shipping name contains the word
“STABILIZED”; and
 - (ii) the self-accelerating decomposition temperature,
as presented for transport in a packaging is 50°C
or lower;
- (e) toxic substances of UN Division 6.1 or that have a
Subsidiary Risk of 6.1;
- (f) dangerous when wet substances of UN Division 4.3.

- (2) This Part also applies to the transport of empty dangerous goods
containers.

[Regulation 121 amended in Gazette 11 Jul 2017 p. 3825-6.]

122. Duty on consignors

- (1) A person must not consign dangerous goods to which this Part applies for transport if the person knows, or ought reasonably to know, that the goods are not loaded or stowed, or cannot be transported or unloaded, in accordance with the ADG Code Chapter 7.1.

Penalty for this subregulation: a fine of \$5 000.

- (2) A person must not consign empty dangerous goods packaging for transport if the person knows, or ought reasonably to know, that the goods are not loaded or stowed, or cannot be transported or unloaded, in accordance with the ADG Code Chapter 7.2.

Penalty for this subregulation: a fine of \$5 000.

[Regulation 122 amended in Gazette 11 Jul 2017 p. 3826.]

123. Duty on loaders

- (1) A person must not load dangerous goods to which this Part applies on to a vehicle for transport otherwise than in accordance with the ADG Code Chapter 7.1.

Penalty for this subregulation: a fine of \$5 000.

- (2) A person must not load empty dangerous goods packaging on to a vehicle for transport otherwise than in accordance with the ADG Code Chapter 7.2.

Penalty for this subregulation: a fine of \$5 000.

[Regulation 123 amended in Gazette 22 Jun 2010 p. 2730;
11 Jul 2017 p. 3826.]

124. Duty on prime contractors and rail operators

- (1) A prime contractor or rail operator must not transport dangerous goods to which this Part applies if the prime contractor or rail operator knows, or ought reasonably to know, that the transport does not comply with the ADG Code Chapter 7.1.

Penalty for this subregulation: a fine of \$5 000.

-
- (2) A prime contractor or rail operator must not transport empty dangerous goods packaging if the prime contractor or rail operator knows, or ought reasonably to know, that the transport does not comply with the ADG Code Chapter 7.2.

Penalty for this subregulation: a fine of \$5 000.

[Regulation 124 amended in Gazette 11 Jul 2017 p. 3827.]

125. Duty on drivers

- (1) A person must not drive a road vehicle transporting dangerous goods to which this Part applies if the person knows, or ought reasonably to know, that the dangerous goods are not being transported in accordance with the ADG Code Chapter 7.1.

Penalty for this subregulation: a fine of \$3 000.

- (2) A person must not drive a road vehicle transporting empty dangerous goods packaging if the person knows, or ought reasonably to know, that the dangerous goods are not being transported in accordance with the ADG Code Chapter 7.2.

Penalty for this subregulation: a fine of \$3 000.

[Regulation 125 amended in Gazette 11 Jul 2017 p. 3827.]

Part 8 — Stowage and restraint

[Heading inserted in Gazette 22 Jun 2010 p. 2730.]

126. Duty on consignors

- (1) A person must not consign for transport in or on a vehicle a load that contains dangerous goods and that is a placard load if the person knows, or ought reasonably to know, that the goods or their packaging are not, or will not be, stowed, loaded and restrained in accordance with the ADG Code Chapter 8.1.

- (2) A person must not consign a load that contains dangerous goods for transport in or on a cargo transport unit if the person knows, or ought reasonably to know, that the cargo transport unit is not, or will not be, restrained in accordance with the ADG Code Chapter 8.2.

Penalty: a fine of \$5 000.

*[Regulation 126 inserted in Gazette 22 Jun 2010 p. 2730-1;
amended in Gazette 13 Jun 2014 p. 1937.]*

127. Duty on loaders

- (1) A person who loads a load that contains dangerous goods and that is a placard load on to a vehicle for transport must ensure that the load is stowed, loaded and restrained in accordance with the ADG Code Chapter 8.1.

- (2) A person who loads for transport in or on a vehicle dangerous goods that are in a cargo transport unit must ensure that the cargo transport unit is restrained in accordance with the ADG Code Chapter 8.2.

Penalty: a fine of \$3 000.

*[Regulation 127 inserted in Gazette 22 Jun 2010 p. 2731;
amended in Gazette 13 Jun 2014 p. 1938.]*

128. Duty on prime contractors and rail operators

- (1) A prime contractor or rail operator must not transport in or on a vehicle a load that contains dangerous goods and that is a

placard load if the prime contractor or rail operator knows, or ought reasonably to know, that the goods or their packaging have not been stowed or loaded, or are not restrained, in accordance with the ADG Code Chapter 8.1.

- (2) A prime contractor or rail operator must not transport dangerous goods in or on a cargo transport unit if the prime contractor or rail operator knows, or ought reasonably to know, that the goods or their packaging are not restrained in accordance with the ADG Code Chapter 8.2.

Penalty: a fine of \$5 000.

[Regulation 128 inserted in Gazette 22 Jun 2010 p. 2731-2; amended in Gazette 13 Jun 2014 p. 1938.]

129. Duty on drivers

- (1) A person must not drive a road vehicle transporting a load that contains dangerous goods and that is a placard load if the person knows, or ought reasonably to know, that the goods or their packaging have not been stowed or loaded, or are not restrained, in accordance with the ADG Code Chapter 8.1.

- (2) A person must not drive a road vehicle transporting dangerous goods in a cargo transport unit if the person knows, or ought reasonably to know, that the goods or their packaging are not restrained in accordance with the ADG Code Chapter 8.2.

Penalty: a fine of \$3 000.

[Regulation 129 inserted in Gazette 22 Jun 2010 p. 2732; amended in Gazette 13 Jun 2014 p. 1938.]

Part 9 — Segregation

130. Application of Part

- (1) This Part applies to —
- (a) the transport of a placard load; or
 - (b) the transport of a load that contains dangerous goods but that is not a placard load if the load contains dangerous goods of UN Division 2.3 or UN Class 6 or 8, or dangerous goods that have a Subsidiary Risk of 6.1 or 8, that are being, or are to be, transported with food or food packaging.
- (2) This Part does not apply to the transport of dangerous goods packed in limited quantities.

*[Regulation 130 amended in Gazette 22 Jun 2010 p. 2732;
13 Jun 2014 p. 1939.]*

131. Exception for certain goods for driver's personal use

Despite regulations 132 to 136, food and food packaging may be transported in or on a road vehicle with dangerous goods if the food or packaging is in the road vehicle's cabin and is for the driver's personal use.

132. Duty on consignors

A person must not consign dangerous goods for transport in or on a vehicle if the person knows, or ought reasonably to know, that —

- (a) the vehicle is, in the same journey, transporting incompatible goods; and
- (b) the dangerous goods will not be segregated from the incompatible goods in accordance with —
 - (i) the ADG Code Part 9; or
 - (ii) any determination made under regulation 18(a);
or

(iii) any approval given under regulation 138.

Penalty: a fine of \$10 000.

133. Duty on loaders

A person must not load dangerous goods for transport in or on a vehicle if the person knows, or ought reasonably to know, that —

(a) the vehicle is, in the same journey, transporting incompatible goods; and

(b) the dangerous goods will not be segregated from the incompatible goods in accordance with —

(i) the ADG Code Part 9; or

(ii) any determination made under regulation 18(a);
or

(iii) any approval given under regulation 138.

Penalty: a fine of \$10 000.

134. Duty on prime contractors

A prime contractor must not use a road vehicle to transport dangerous goods if the prime contractor knows, or ought reasonably to know, that —

(a) the vehicle is, in the same journey, transporting incompatible goods; and

(b) the dangerous goods are not segregated from the incompatible goods in accordance with —

(i) the ADG Code Part 9; or

(ii) any determination made under regulation 18(a);
or

(iii) any approval given under regulation 138.

Penalty: a fine of \$10 000.

135. Duty on rail operators

A rail operator must not use a train to transport dangerous goods if the rail operator knows, or ought reasonably to know, that —

- (a) the train is, in the same journey, transporting incompatible goods; and
- (b) the dangerous goods are not segregated from the incompatible goods in accordance with —
 - (i) the ADG Code Part 9; or
 - (ii) any determination made under regulation 18(a);
or
 - (iii) any approval given under regulation 138.

Penalty: a fine of \$10 000.

136. Duty on drivers

A person must not drive a road vehicle transporting dangerous goods if the person knows, or ought reasonably to know, that —

- (a) the road vehicle is, in the same journey, transporting incompatible goods; and
- (b) the dangerous goods are not segregated from the incompatible goods in accordance with —
 - (i) the ADG Code Part 9; or
 - (ii) any determination made under regulation 18(a);
or
 - (iii) any approval given under regulation 138.

Penalty: a fine of \$3 000.

137. Approvals — Type II segregation devices

- (1) An application for approval of a design for a Type II segregation device for use in the transport of dangerous goods must include any information required under the ADG Code Chapter 6.11.
- (2) The Chief Officer may, on an application made in accordance with subregulation (1) and regulation 194, approve a design for

a Type II segregation device if the design complies with the
ADG Code Chapter 6.11.

138. Approvals — methods of segregation

(1) The Chief Officer may, on an application made in accordance
with regulation 194, approve a method of segregation not
complying with the ADG Code Part 9 for transporting
dangerous goods and incompatible goods by road, if the Chief
Officer considers that —

(a) it is impracticable to segregate the goods by a
segregation device, or method of segregation, complying
with that Part; and

(b) the risk involved in using the method to transport the
goods by road is not greater than the risk involved in
using a device or method complying with that Part to
transport the goods by road.

(2) In giving his or her approval, the Chief Officer may impose in
relation to the approval any condition that is necessary for the
safe transport of dangerous goods.

(3) A person to whom an approval has been given under this
regulation must not contravene a condition of the approval.

Penalty: a fine of \$5 000.

Part 10 — Bulk transfer of dangerous goods

Division 1 — General

139. Term used: bulk transfer

In this Part —

bulk transfer, in relation to dangerous goods, means the transfer by gravity, pump or pressure differential of the liquid, solid or gaseous dangerous goods, by the use of pipe work or hose, into or out of a tank vehicle, or into or out of a portable tank, demountable tank, bulk container, pressure drum, tube, MEGC or IBC that is on a vehicle.

Division 2 — Equipment and transfer

140. Duty on transferors — hose assemblies

- (1) A person must not use a hose assembly for the bulk transfer of dangerous goods if the person knows, or ought reasonably to know, that the hose assembly is damaged or defective to the extent that it is not safe to use to transfer the goods.

Penalty: a fine of \$10 000.

- (2) A person must not use a hose assembly for the bulk transfer of dangerous goods if the person knows, or ought reasonably to know, that the hose assembly —

- (a) has not been constructed, assembled or maintained in accordance with the ADG Code Chapter 10.1; or
- (b) has not been inspected or tested at the intervals, or in the way, required under that Chapter; or
- (c) has not satisfied a test required under that Chapter.

Penalty: a fine of \$5 000.

[Regulation 140 amended in Gazette 22 Jun 2010 p. 2733.]

141. Duty on transferors — general

- (1) A person who transfers dangerous goods by bulk transfer must ensure that the goods are transferred in accordance with the ADG Code Chapter 10.2.
- (2) A person must not transfer dangerous goods by bulk transfer if the person knows, or ought reasonably to know, that —
- _____ (a) the receiving receptacle or the transfer equipment is incompatible with the dangerous goods; or
- _____ (b) the receiving receptacle contains incompatible goods.
- (3) If, during a bulk transfer of dangerous goods, the goods leak, spill or accidentally escape, the person transferring the goods —
- _____ (a) must immediately stop transferring the goods; and
- _____ (b) must not resume transferring the goods until the conditions that caused the leak, spill or escape have been rectified.

Penalty: a fine of \$5 000.

142. Duty on occupiers

- (1) The occupier of premises where a bulk transfer of dangerous goods occurs must ensure that any hose assembly on the premises that is used, or intended to be used, for the transfer (other than a hose assembly brought onto the premises on a vehicle involved in the transfer) —
- _____ (a) has been constructed, assembled and maintained in accordance with the ADG Code Chapter 10.1; and
- _____ (b) has been inspected and tested at the intervals, and in the way, required under that Chapter; and
- _____ (c) satisfies each test required under that Chapter.

Penalty: a fine of \$5 000.

- (2) The occupier of premises where a bulk transfer of dangerous goods occurs must ensure that the goods are transferred in accordance with the ADG Code Chapter 10.2.

Penalty: a fine of \$10 000.

- (3) The occupier must keep, in accordance with the ADG Code section 10.1.3.4, accurate records of all maintenance work, and each inspection and test, carried out on the hose assembly.

Penalty: a fine of \$1 500.

143. Duty on prime contractors

- (1) A prime contractor engaged in a bulk transfer of dangerous goods must ensure that any hose assembly that is used, or intended to be used, for the transfer of the goods (other than a hose assembly for which the prime contractor is not responsible) —

(a) has been constructed, assembled and maintained in accordance with the ADG Code Chapter 10.1; and

(b) has been inspected and tested at the intervals, and in the way, required under that Chapter; and

(c) satisfies each test required under that Chapter.

Penalty: a fine of \$5 000.

- (2) A prime contractor engaged in a bulk transfer of dangerous goods must ensure that the goods are transferred in accordance with the ADG Code Chapter 10.2.

Penalty: a fine of \$10 000.

- (3) The prime contractor must keep, in accordance with the ADG Code section 10.1.3.4, accurate records of all maintenance work, and each inspection and test, carried out on the hose assembly.

Penalty: a fine of \$1 500.

144. Duty on rail operators

A rail operator engaged in a bulk transfer of dangerous goods must ensure that any hose assembly that is used, or intended to be used, for the transfer of the goods (other than a hose assembly for which the rail operator is not responsible) —

(a) has been constructed, assembled and maintained in accordance with the ADG Code Chapter 10.1; and

(b) has been inspected and tested at the intervals, and in the way, required under that Chapter; and

(c) satisfies each test required under that Chapter.

Penalty: a fine of \$5 000.

Division 3 — Filling ratio and ullage for tank vehicles

145. Application of Division

This Division applies to and in relation to bulk transfer into a tank vehicle.

146. Duty on transferors

(1) A person who transfers dangerous goods by bulk transfer must ensure that —

(a) for dangerous goods of UN Class 2 that are not in the form of a refrigerated liquid, the quantity of the goods in the tank to which the goods are transferred does not exceed the maximum permitted filling ratio set out in the ADG Code section 10.3.2;

(b) in any other case, the ullage in the tank complies with the ADG Code section 10.3.1.

(1A) If —

(a) a person is engaged in the bulk transfer of goods that are not dangerous goods to a tank (*tank A*); and

(b) tank A is on, or part of, a vehicle; and

(c) the person knows, or reasonably ought to know, that the vehicle —

(i) is carrying dangerous goods in another tank or in another compartment of tank A; or

(ii) is likely to carry dangerous goods in another tank, or in another compartment of tank A,

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Division 3 Filling ratio and ullage for tank vehicles

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before tank A is emptied of the non-dangerous
goods —

the person must ensure that the ullage in tank A in respect of the
non-dangerous goods complies with the ADG Code
section 10.3.1 as if the goods were dangerous goods.

Penalty for an offence under this regulation: a fine of \$5 000.

[Regulation 146 inserted in Gazette 13 Jun 2014 p. 1939-40.]

147. Duty on prime contractors and rail operators

(1) A prime contractor or rail operator must not transport dangerous
goods in a tank if —

(a) for dangerous goods of UN Class 2 that are not in the
form of a refrigerated liquid, the quantity of the goods in
the tank exceeds the maximum permitted filling ratio set
out in the ADG Code section 10.3.2;

(b) in any other case, the ullage in the tank does not comply
with the ADG Code section 10.3.1.

(1A) If —

(a) a prime contractor or rail operator uses a vehicle to
transport a tank (*tank A*) containing goods that are not
dangerous goods; and

(b) at the same time uses the vehicle to also transport
dangerous goods in another tank or in another
compartment of tank A —

the prime contractor or rail operator must ensure that the ullage
in tank A in respect of the non-dangerous goods complies with
the ADG Code section 10.3.1 as if the goods were dangerous
goods.

Penalty for an offence under this regulation: a fine of \$5 000.

[Regulation 147 inserted in Gazette 13 Jun 2014 p. 1940.]

148. Duty on drivers

(1) A person must not drive a road tank vehicle transporting dangerous goods if the person knows, or ought reasonably to know, that —

(a) for dangerous goods of UN Class 2 that are not in the form of a refrigerated liquid, the quantity of the goods in the tank exceeds the maximum permitted filling ratio set out in the ADG Code section 10.3.2;

(b) in any other case, the ullage in the tank does not comply with the ADG Code section 10.3.1.

(2) If —

(a) a road vehicle contains in a tank (*tank A*) goods that are not dangerous goods; and

(b) at the same time the vehicle contains dangerous goods in another tank or in another compartment of tank A —

a person must not drive the vehicle if the person knows, or reasonably ought to know, that the ullage in tank A in respect of the non-dangerous goods would not comply with the ADG Code section 10.3.1 if the goods in it were dangerous goods.

Penalty for an offence under this regulation: a fine of \$5 000.

[Regulation 148 inserted in Gazette 13 Jun 2014 p. 1941.]

Part 11 — Documentation

Division 1 — Transport documentation

149. False or misleading information

A person must not include information in transport documentation for dangerous goods that the person knows, or ought reasonably to know, is false or misleading in a material particular.

Penalty: a fine of \$10 000.

150. Duty on consignors — transport by road

(1) A person must not consign dangerous goods for transport in or on a road vehicle if the prime contractor or the driver of the road vehicle does not have transport documentation that complies with the ADG Code Chapter 11.1 for the goods.

(2) A person must not consign dangerous goods for transport by road if —

(a) the person knows, or ought reasonably to know, that the goods will be divided into, and transported in, separate loads; and

(b) the prime contractor, or the driver of each road vehicle transporting the goods, does not have separate transport documentation that complies with the ADG Code Chapter 11.1 for each load.

Penalty: a fine of \$3 000.

151. Duty on consignors — transport by rail

(1) A person must not consign dangerous goods for transport in or on a unit of rolling stock if the rail operator does not have transport documentation that complies with the ADG Code Chapter 11.1 for the goods.

Penalty: a fine of \$3 000.

- (2) For the purposes of subregulation (1), a rail operator is to be taken to have the transport documentation if the contents of the transport documentation have been communicated to the rail operator by means of electronic data processing or electronic data interchange.

152. Duty on prime contractors

A prime contractor must ensure that a person does not drive a road vehicle used by the prime contractor to transport dangerous goods if —

- (a) the person has not been given transport documentation that complies with the ADG Code Chapter 11.1 for the goods; and
- (b) the documentation is not readily able to be located in the vehicle in accordance with the ADG Code Chapter 11.1.

Penalty: a fine of \$5 000.

[Regulation 152 inserted in Gazette 13 Jun 2014 p. 1942;
amended in Gazette 11 Jul 2017 p. 3827.]

153. Duty on rail operators

A rail operator must not transport dangerous goods by rail unless the driver of the train transporting the goods has been given transport documentation that complies with the ADG Code Chapter 11.1 for the goods.

Penalty: a fine of \$5 000.

154. Duty on drivers

- (1) The driver of a road vehicle transporting dangerous goods —
- (a) must carry transport documentation for the goods; and
- (b) must ensure that the documentation is located in the vehicle in accordance with the ADG Code Chapter 11.1.
- (2) The driver of a road vehicle transporting dangerous goods must produce the transport documentation for the goods for

inspection by a DGO, a police officer or an emergency service officer, if the officer asks the driver to produce the documentation for inspection.

Penalty: a fine of \$3 000.

[Regulation 154 amended in Gazette 13 Jun 2014 p. 1942.]

155. Duty on train drivers

- (1) A person must not drive a train that the person knows, or ought reasonably to know, is transporting dangerous goods, if the person does not have transport documentation that complies with the ADG Code Chapter 11.1 for the goods.

Penalty: a fine of \$3 000.

- (2) The driver of a train transporting dangerous goods must produce the transport documentation for the goods for inspection by a DGO, a police officer or an emergency service officer, if the officer asks the driver to produce the documentation for inspection.

Penalty: a fine of \$3 000.

- (3) Subregulations (1) and (2) do not apply if the train driver transporting dangerous goods is in a depot or yard, or is engaged in shunting operations, and the transport documentation for the goods is readily available elsewhere in the immediate vicinity of the depot, yard or operations.

[Regulation 155 amended in Gazette 22 Jun 2010 p. 2733.]

156A. Prime contactor's duties: retention of documents

- (1) This regulation applies if these regulations or the ADG Code require a prime contractor to create or use a document in relation to the transport of dangerous goods.

- (2) The prime contractor must retain the document, or a copy of the document, for at least 3 months after the transport of the dangerous goods by the prime contractor finishes.

Penalty: a fine of \$5 000.

(3) It is not a failure to comply with subregulation (2) if —

(a) a document, or a copy of a document, is retained in a form other than paper; and

(b) a readily legible paper copy of the document or copy can be readily created at any time during the 3 months at the request of a DGO.

[Regulation 156A inserted in Gazette 13 Jun 2014 p. 1943.]

Division 2 — Emergency information

156. Term used: required emergency information

In this Division —

required emergency information means —

(a) emergency information that complies with the ADG Code Chapter 11.2; or

(b) emergency information that is approved under regulation 162.

157. Duty on consignors

A person must not consign a placard load for transport in or on a vehicle if the person knows, or ought reasonably to know, that the required emergency information is not on the vehicle.

Penalty: a fine of \$3 000.

158. Duty on prime contractors

A prime contractor must not use a road vehicle to transport a placard load if —

(a) the road vehicle is not equipped with an emergency information holder that complies with the ADG Code Chapter 11.2; or

(b) the required emergency information is not in the holder.

Penalty: a fine of \$5 000.

159. Duty on rail operators

- (1) A rail operator must not transport a placard load in a cargo transport unit on a train if the required emergency information is not in the train driver's cab.

Penalty: a fine of \$5 000.

- (2) Subregulation (1) does not apply when a train transporting a placard load is involved in shunting operations and the required emergency information is readily available elsewhere in the immediate vicinity of those operations.

[Regulation 159 amended in Gazette 13 Jun 2014 p. 1943.]

160. Duty on drivers

- (1) A person must not drive a road vehicle transporting a placard load if —

(a) the road vehicle is not equipped with an emergency information holder that complies with the ADG Code Chapter 11.2; or

(b) the required emergency information provided by the consignor of the goods, or by the prime contractor for the transport of the goods, is not in the holder.

Penalty: a fine of \$3 000.

- (2) The driver of a road vehicle transporting a placard load must ensure that the road vehicle's emergency information holder contains only —

(a) the required emergency information; and

(b) the transport documentation for the goods.

Penalty: a fine of \$1 500.

- (3) The driver of a road vehicle transporting a placard load must produce the required emergency information for inspection by a DGO, a police officer or an emergency service officer, if the officer asks the driver to produce the information for inspection.

Penalty: a fine of \$3 000.

161. Duty on train drivers

- (1) A person must not drive a train that is transporting a placard load if the required emergency information is not in the train driver's cab.

Penalty: a fine of \$3 000.

- (2) The driver of a train transporting a placard load must produce the required emergency information for inspection by a DGO, a police officer or an emergency service officer, if the officer asks the driver to produce the information for inspection.

Penalty: a fine of \$3 000.

- (3) Subregulations (1) and (2) do not apply if the train driver transporting dangerous goods is in a depot or yard, or is engaged in shunting operations, and the required emergency information for the goods is readily available elsewhere in the immediate vicinity of the depot, yard or operations.

[Regulation 161 amended in Gazette 22 Jun 2010 p. 2734.]

162. Approvals — emergency information

The Chief Officer may, on an application made in accordance with regulation 194, or on the Chief Officer's own initiative, approve emergency information that does not comply with the ADG Code Chapter 11.2, if the Chief Officer considers that use of the information would be as accurate, and at least as convenient and efficient, as information that complies with that Chapter.

Part 12 — Safety equipment

163. Duty on owners

The owner of a road vehicle must not use the road vehicle, or allow the road vehicle to be used, to transport a placard load if the road vehicle is not equipped with —

- (a) fire extinguishers and portable warning devices that comply with the ADG Code Part 12; and
- (b) any other equipment required under that Part.

Penalty: a fine of \$10 000.

164. Duty on prime contractors

- (1) A prime contractor must not use a road vehicle to transport a placard load if the road vehicle is not equipped with —

- (a) fire extinguishers and portable warning devices that comply with the ADG Code Part 12; and
- (b) any other equipment required under that Part.

- (2) A prime contractor must not use a road vehicle to transport a placard load if the prime contractor knows, or ought reasonably to know —

- (a) that a fire extinguisher with which the vehicle is equipped under subregulation (1) has not been inspected or tested in accordance with —

(i) the ADG Code Part 12; and

(ii) AS 1851—2005, *Maintenance of fire protection systems and equipment*;

or

- (b) that a portable warning device with which the vehicle is equipped under subregulation (1) has not been inspected or tested in accordance with the ADG Code Part 12; or
- (c) that any fire extinguisher, portable warning device, or other equipment, with which the vehicle is equipped

under subregulation (1) is not in good repair or proper working order.

Penalty: a fine of \$10 000.

[Regulation 164 amended in Gazette 22 Jun 2010 p. 2734-5.]

165. Duty on drivers

(1) A person must not drive a road vehicle transporting a placard load if the road vehicle is not equipped with —

(a) fire extinguishers and portable warning devices that comply with the ADG Code Part 12; and

(b) any other equipment required under that Part.

(2) A person must not drive a road vehicle transporting a placard load if the person knows, or ought reasonably to know —

(a) that a fire extinguisher with which the vehicle is equipped under subregulation (1) has not been inspected or tested in accordance with —

(i) the ADG Code Part 12; and

(ii) AS 1851—2005, *Maintenance of fire protection systems and equipment*;

or

(b) that a portable warning device with which the vehicle is equipped under subregulation (1) has not been inspected or tested in accordance with the ADG Code Part 12; or

(c) that any fire extinguisher, portable warning device, or other equipment, with which the vehicle is equipped under subregulation (1) is not in good repair or proper working order; or

(d) that any fire extinguisher, portable warning device, or other equipment, with which the vehicle is equipped under subregulation (1) is not stowed in accordance with the ADG Code Part 12.

Penalty: a fine of \$3 000.

[Regulation 165 amended in Gazette 22 Jun 2010 p. 2735.]

Part 13 — Procedures during transport

Division 1 — Immobilised and stopped vehicles

166. Duty on drivers

(1) This regulation applies if a road vehicle transporting a placard load —

- (a) is broken down or otherwise immobilised, or has stopped, on a road; and
- (b) is a traffic hazard.

(2) The driver must alert other road users of the hazard in accordance with —

- (a) the ADG Code Part 13; or
- (b) subregulations (3) and (4).

Penalty for this subregulation: a fine of \$1 500.

(3) For the purposes of subregulation (2)(b), the driver may alert other road users of the hazard by immediately placing and leaving on the road, in accordance with subregulation (4), 3 portable warning signs that comply with AS 3790-1992 (Portable Warning Triangles for Motor Vehicles) published by Standards Australia and that are in good order.

(4) The portable warning signs must be placed as follows —

- (a) one sign must be placed in advance of the vehicle, one to the rear of the vehicle and one beside the vehicle on the side nearer to the centre of the road;
- (b) wherever practicable, the signs must be placed so that at least one sign is visible to an approaching driver at a distance of not less than 200 m;
- (c) if the speed limit on the road is lower than 80 km/h, the signs placed in advance and to the rear of the vehicle must be placed at a distance of between 50 m and 150 m from the vehicle and the third sign must be placed at the side of the vehicle in such a position as to give

reasonable warning to drivers approaching from either direction;

- (d) if the speed limit on the road is 80 km/h or higher, the signs placed in advance and to the rear of the vehicle must be placed at a distance of between 200 m and 250 m from the vehicle and the third sign must be placed at the side of the vehicle in such a position as to give reasonable warning to drivers approaching from either direction.

[Regulation 166 amended in Gazette 17 Nov 2015 p. 4699-700.]

167. Duty on prime contractors

- (1) If a prime contractor knows, or ought reasonably to know, that a road vehicle transporting a placard load has broken down or is otherwise immobilised on a road, the prime contractor must, as soon as practicable, ensure that the road vehicle —

- (a) is repaired so that it can be driven safely off the road; or
(b) is towed to a place where it can be repaired.

- (2) The prime contractor must —

- (a) remove the dangerous goods from the road vehicle before the road vehicle is repaired or towed; and
(b) transport the dangerous goods from the place of the breakdown or immobilisation,

if the risk involved in complying with paragraphs (a) and (b) is not greater than the risk involved in not complying with the paragraphs.

- (3) If the road vehicle is towed while still carrying dangerous goods that would require the driver of the vehicle to hold a dangerous goods driver licence, the prime contractor must ensure that the driver of the tow truck towing the vehicle —

- (a) holds a dangerous goods driver licence that would authorise him or her to drive a vehicle with those dangerous goods; or

(b) is accompanied in the cabin of the tow truck by a person who holds a dangerous goods driver licence that would authorise him or her to drive a vehicle with those dangerous goods.

Penalty for an offence under this regulation: a fine of \$5 000.

[Regulation 167 amended in Gazette 13 Jun 2014 p. 1943-4.]

168. Duty on rail operators

If a train transporting a placard load fails or is otherwise immobilised, the rail operator must, as soon as practicable, take all appropriate steps to ensure that a dangerous situation does not arise.

Penalty: a fine of \$5 000.

Division 2 — Road vehicle driver's duties

169. Driving

The driver of a road vehicle transporting a placard load must not allow anyone else to ride in the road vehicle except in accordance with the ADG Code Part 13.

Penalty: a fine of \$1 500.

170. Parking

The driver of a road vehicle transporting a placard load must not park the road vehicle, or leave the road vehicle standing, in a public or private place except in accordance with the ADG Code Part 13.

Penalty: a fine of \$3 000.

171. Control of ignition sources

(1) This regulation applies to a road vehicle transporting a load of dangerous goods if —

(a) the load contains —

(i) dangerous goods in a receptacle with a capacity of more than 500 L; or

(ii) more than 500 kg of dangerous goods in a receptacle;

and

(b) the load contains dangerous goods of UN Division 2.1 or UN Class 3, 4 or 5 or that have a Subsidiary Risk of 2.1, 3, 4 or 5.1.

(2) The driver of the road vehicle must not —

(a) have matches or a cigarette lighter in his or her possession in the road vehicle; or

(b) smoke in the road vehicle.

Penalty: a fine of \$10 000.

(3) The driver must do everything practicable to ensure that anyone else in the road vehicle does not —

(a) have matches or a cigarette lighter in his or her possession; or

(b) smoke.

Penalty: a fine of \$10 000.

[Regulation 171 amended in Gazette 22 Jun 2010 p. 2736.]

172. Unloading

The driver of a road vehicle transporting a placard load must not permit the dangerous goods to be unloaded from the road vehicle except in accordance with the ADG Code Part 13.

Penalty: a fine of \$10 000.

173. Detaching trailer

The driver of a road vehicle that has attached to it a trailer transporting a placard load must not detach the trailer or permit it to be detached from the road vehicle except in accordance with the ADG Code Part 13.

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Penalty: a fine of \$10 000.

174. Road tank vehicle equipped with burner

The driver of a road tank vehicle that is transporting a placard load and is equipped with a burner to heat the load must not operate the burner or permit it to be operated except in accordance with the ADG Code Part 13.

Penalty: a fine of \$10 000.

Part 14 — Emergencies

Division 1 — Emergencies generally

175. Duty on drivers

(1) This regulation applies if a road vehicle transporting dangerous goods is involved in an incident resulting in a dangerous situation.

(2) The driver of the road vehicle must —

(a) notify the prime contractor, and the police or the FES Department, of the incident as soon as practicable; and

(b) provide any reasonable assistance required by a DGO, a police officer or an emergency service officer to deal with the situation.

Penalty: a fine of \$3 000.

[Regulation 175 amended in Gazette 19 Feb 2013 p. 989.]

176. Duty on train drivers and rail operators

(1) This regulation applies if a train transporting dangerous goods is involved in an incident resulting in a dangerous situation.

(2) The driver of the train must —

(a) notify the rail operator or rail authority of the incident as soon as practicable; and

(b) provide any reasonable assistance required by a DGO, a police officer or an emergency service officer to deal with the situation.

Penalty: a fine of \$3 000.

(3) On becoming aware of the incident, the rail operator must —

(a) notify the rail authority, and the police or the FES Department, of the incident as soon as practicable; and

(b) provide any reasonable assistance required by a DGO, a police officer or an emergency service officer to deal with the situation.

Penalty: a fine of \$3 000.

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Part 14 Emergencies

Division 1 Emergencies generally

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(4) On becoming aware of the incident, the rail authority must —

(a) notify the police or the FES Department of the incident
as soon as practicable; and

(b) provide any reasonable assistance required by a DGO, a
police officer or an emergency service officer to deal
with the situation.

Penalty: a fine of \$3 000.

[Regulation 176 amended in Gazette 19 Feb 2013 p. 989.]

**177. Duty on prime contractors and rail operators — food or
food packaging**

(1) This regulation applies if —

(a) an incident involving a vehicle transporting dangerous
goods results in the leakage, spillage or accidental
escape of the dangerous goods, or in a fire or explosion;
and

(b) there is food or food packaging in the vicinity of the
incident that is within the control of a prime contractor
or rail operator.

(2) In the case of a prime contractor, the prime contractor must
ensure that the food or food packaging is not transported from
the site of the incident unless the Chief Officer has given
permission to the prime contractor to transport the food or food
packaging from the site.

Penalty: a fine of \$10 000.

(3) In the case of a rail operator, the rail operator must ensure that
the food or food packaging is not removed from rail premises
unless the Chief Officer has given permission to the rail
operator to remove the food or food packaging.

Penalty: a fine of \$10 000.

(4) Permission given under subregulation (2) or (3) —

(a) must be in writing; and

- (b) must state the name of the person to whom it is given; and
- (c) must identify the relevant incident; and
- (d) must identify the food or food packaging to which it relates; and
- (e) must take into consideration any requirements of the appropriate food and health authorities; and
- (f) may contain any other information that the Chief Officer considers necessary.

178. Prime contractors, rail operators and drivers to inform Chief Officer

- (1) This regulation applies if a vehicle transporting dangerous goods is involved in an incident resulting in a dangerous situation.
- (2) As soon as practicable after the incident, the driver must notify the prime contractor or rail operator and the Chief Officer about the incident, and provide the following details —
 - (a) where the incident happened;
 - (b) the date and time of the incident;
 - (c) the nature of the incident;
 - (d) the dangerous goods being transported when the incident happened;
 - (e) any other details that the Chief Officer may require.Penalty: a fine of \$5 000.
- (3) As soon as practicable after becoming aware of the incident, the prime contractor or rail operator must provide to the Chief Officer the details mentioned in subregulation (2).
Penalty: a fine of \$5 000.
- (4) Not later than 21 days after the day on which the incident happens, the prime contractor or rail operator must give the

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Chief Officer a written report about the incident stating the following —

_____ (a) where the incident happened;

_____ (b) the date and time of the incident;

_____ (c) the nature of the incident;

_____ (d) the dangerous goods being transported when the incident happened;

_____ (e) what the driver believes to be the likely cause of the incident;

_____ (f) what the prime contractor or rail operator believes to be the likely cause of the incident;

_____ (g) the measures taken to control any leak, spill or accidental escape of the dangerous goods, and any fire or explosion, resulting from the incident;

_____ (h) the measures taken after the incident in relation to the dangerous goods involved in the incident.

_____ Penalty: a fine of \$5 000.

_____ *[Regulation 178 amended in Gazette 22 Jun 2010 p. 2736.]*

Division 2 — Emergencies involving placard loads

179. Telephone advisory service

_____ (1) In this regulation —

_____ ***telephone advisory service***, in relation to the transport of dangerous goods, means a service providing access by a continuously monitored telephone not located on the carrying vehicle to a person competent to give advice about the following —

_____ (a) the construction and properties of the receptacles in which the dangerous goods are being transported;

_____ (b) the use of equipment on vehicles in or on which the dangerous goods are being transported;

_____ (c) the properties of the dangerous goods;

(d) methods of safely handling the dangerous goods;

(e) methods of safely containing and controlling the dangerous goods in a dangerous situation.

(2) A prime contractor or rail operator must not transport a load of dangerous goods that contains —

(a) dangerous goods in a receptacle with a capacity of more than 500 L; or

(b) more than 500 kg of dangerous goods in a receptacle,

if a telephone advisory service is not available during the journey.

Penalty: a fine of \$10 000.

[(3) *deleted*]

(4) A telephone advisory service may be provided by the prime contractor, rail operator or consignor, or someone else for the prime contractor, rail operator or consignor.

[Regulation 179 amended in Gazette 22 Jun 2010 p. 2737.]

180. Emergency plans

(1) Before a prime contractor or rail operator transports a placard load, the prime contractor or rail operator must prepare and have an emergency plan for the transport of the goods.

(2) An emergency plan for the transport of a placard load must —

(a) be in writing; and

(b) be a plan that deals with any dangerous situation arising from the transport of the goods; and

(c) be prepared having regard to any guidelines approved by the Transport and Infrastructure Council.

(3) An emergency plan is prescribed to be a safety management document for the purposes of the definition of *safety management document* in the Act section 3(1).

[Regulation 180 amended in Gazette 13 Jun 2014 p. 1944;
11 Jul 2017 p. 3828.]

181. Duty on consignors — information

(1) This regulation applies if a vehicle transporting a placard load is
involved in an incident resulting in a dangerous situation.

(2) As soon as practicable after being asked by a DGO, a police
officer or an emergency service officer, the consignor of the
goods must give the officer the information that the officer
requires about —

(a) the properties of the dangerous goods being transported;
and

(b) safe methods of handling the goods; and

(c) safe methods of containing and controlling the goods in
a dangerous situation.

Penalty: a fine of \$5 000.

(3) If the prime contractor and the consignor, or the rail operator
and the consignor, of the goods are asked to give the same
information, the consignor is taken to have complied with
subregulation (2) to the extent that the prime contractor or rail
operator has given the information.

**182. Duty on prime contractors and rail operators —
information**

(1) This regulation applies if a vehicle transporting a placard load is
involved in an incident resulting in a dangerous situation.

(2) As soon as practicable after being asked by a DGO, a police
officer or an emergency service officer, the prime contractor or
rail operator must give the officer the information that the
officer requires about the vehicle's construction, properties and
equipment.

Penalty: a fine of \$5 000.

- (3) If the prime contractor and the consignor, or the rail operator and the consignor, of the goods are asked to give the same information, the prime contractor or rail operator is taken to have complied with subregulation (2) to the extent that the consignor has given the information.

Division 3 — Dealing with emergencies involving placard loads

183. Terms used

In this Division —

approved responder, in relation to a class of dangerous goods, means a person who is approved by the Chief Officer under regulation 184 in relation to the class of dangerous goods;

emergency response contract, with a person, means a contract under which the person agrees —

- (a) to provide the resources to eliminate or reduce to an acceptable level the risk associated with a dangerous situation involving dangerous goods being transported;
and
(b) to do so as soon as practicable after being asked to do so by the other party to the contract.

[Regulation 183 amended in Gazette 11 Jul 2017 p. 3828.]

184. Approvals — responders to emergencies

- (1) The Chief Officer may approve a person to deal with any dangerous situation that might result while dangerous goods of a specified class are being transported if the Chief Officer is satisfied that the person —

- (a) is competent; and
(b) has the equipment and other resources that would be needed,

to eliminate or reduce to an acceptable level the risk associated with the dangerous situation.

- (2) Any such approval must be in writing and must specify the class of the dangerous goods to which it relates.

[Regulation 184 amended in Gazette 11 Jul 2017 p. 3828.]

185. Duties as to ensure adequate resources available to deal with emergencies

- (1) A person who is a prime contractor or rail operator, as the case requires, must not transport a placard load unless the person complies with subregulation (2).

Penalty: a fine of \$10 000.

- (2) To comply with this subregulation, a person must —

- (a) be an approved responder in relation to all the dangerous goods that comprise the load; or
- (b) be an approved responder in relation to the dangerous goods that comprise part of the load and have an emergency response contract with another person who is an approved responder in relation to the dangerous goods that comprise the remainder of the load; or
- (c) have an emergency response contract with another person who is an approved responder in relation to the dangerous goods that comprise the load.

[(3) deleted]

[Regulation 185 amended in Gazette 11 Jul 2017 p. 3828.]

186. Duties to provide resources to deal with emergency

- (1) In this regulation —

deal with a dangerous situation, means —

- (a) to provide the equipment and other resources needed to eliminate or reduce to an acceptable level the risk associated with the dangerous situation; and
- (b) to eliminate or reduce to an acceptable level the risk associated with the dangerous situation.

(2) This regulation applies if a vehicle transporting a placard load is involved in an incident resulting in a dangerous situation.

(3) The prime contractor, or the rail operator, as the case requires, must —

(a) if the prime contractor or rail operator is an approved responder in relation to all the dangerous goods that are giving rise to the dangerous situation — deal with the dangerous situation as soon as practicable after it arises;

(b) if the prime contractor or rail operator is an approved responder in relation to some of the dangerous goods that are giving rise to the dangerous situation —

(i) deal with the dangerous situation, in so far as it arises from those dangerous goods, as soon as practicable after it arises; and

(ii) ensure that an approved responder in relation to the remaining dangerous goods that are giving rise to the dangerous situation deals with the dangerous situation, insofar as it arises from those dangerous goods, as soon as practicable after it arises;

(c) if the prime contractor or rail operator is not an approved responder in relation to any of the dangerous goods that are giving rise to the dangerous situation —

(i) ensure that an approved responder in relation to the dangerous goods that are giving rise to the dangerous situation deals with the dangerous situation as soon as practicable after it arises; and

(ii) provide to the approved responder any assistance that is reasonably required for the approved responder to deal with the dangerous situation.

Penalty for this subregulation: a fine of \$10 000.

[(4) *deleted*]

[Regulation 186 amended in Gazette 11 Jul 2017 p. 3829.]

Part 15 — Exemption

Division 1 — General

Note for this Division:

As to applications for, register and records of, exemptions under the
Act Part 4, see the *Dangerous Goods Safety (General)
Regulations 2007*.

187. Register of corresponding exemptions

- (1) The Chief Officer must keep a register of corresponding exemptions.
- (2) The register may have separate divisions for different kinds of corresponding exemptions.
- (3) The Chief Officer must record in the register each corresponding exemption.
- (4) The Chief Officer must note in the register any decision of CAP reversing a decision that a corresponding exemption should have effect in all participating jurisdictions or participating jurisdictions including this State.

188. Records of corresponding exemptions

The record of a corresponding exemption in the register must include —

- (a) the terms of the exemption; or
- (b) the following information —
 - (i) if the exemption was notified in the *Government Gazette* of the other participating jurisdiction — details of where in the *Gazette* the exemption was notified or published;
 - (ii) the name of the person to whom, or the name, or a description, of the class of persons to which, the exemption applies;

- (iii) the provision of these regulations to which the exemption relates;
- (iv) the date when the exemption was granted;
- (v) the period for which the exemption has effect;
- (vi) the dangerous goods, equipment, packaging, vehicle or other thing to which the exemption relates.

Division 2 — References of matters to CAP

189. Term used: exemption

In this Division —

exemption does not include an exemption granted by the Minister.

190. References to CAP

- (1) The Chief Officer must refer an application for an exemption, or an exemption that the Chief Officer has granted, to CAP if the Chief Officer considers that the exemption should have effect in all participating jurisdictions or participating jurisdictions including this State.
- (2) The Chief Officer must refer to CAP an exemption having effect in this State and one or more other participating jurisdictions, if —
 - (a) the Chief Officer considers that the exemption should be cancelled or varied; or
 - (b) a corresponding authority recommends to the Chief Officer in writing that the exemption should be cancelled or varied.

[Regulation 190 amended in Gazette 13 Jun 2014 p. 1944.]

191. Effect of CAP decisions about exemptions

- (1) This regulation applies if —

(a) an application for an exemption, or an exemption, is referred to CAP under regulation 190(1); and

(b) CAP decides —

(i) that the exemption should be granted, what the terms of the exemption should be, and that the exemption should have effect in all participating jurisdictions or participating jurisdictions including this State; or

(ii) that the exemption should not have effect in this State.

(2) The Chief Officer must have regard to CAP's decision.

[Regulation 191 amended in Gazette 13 Jun 2014 p. 1945.]

192. Effect of CAP decisions about cancelling or varying exemptions

(1) This regulation applies if —

(a) an exemption is referred to CAP under regulation 190(2); and

(b) CAP decides that the exemption —

(i) should, or should not, be cancelled; or

(ii) should be varied (whether or not CAP's decision is the same as the variation proposed by the Chief Officer), and should have effect as varied in all participating jurisdictions or participating jurisdictions including this State; or

(iii) should not be varied.

(2) The Chief Officer must have regard to CAP's decision.

Part 16 — Approvals

Division 1 — General

193. Term used: approval

In this Division —

approval includes an authorisation by the Chief Officer under regulation 60.

194. Applications

(1) An application for an approval, or for variation of an approval, must —

(a) be made to the Chief Officer in writing; and

(b) if a fee is prescribed for the application — be accompanied by the prescribed fee.

(2) An application for variation of an approval must have the approval with it.

(3) The Chief Officer may, by written notice, require an applicant to give to the Chief Officer any additional information necessary for a proper consideration of the application.

(4) An applicant who does not obey such a request within 21 days after the date on which it is made, or any longer period permitted by the Chief Officer, is to be taken to have withdrawn the application and is entitled to a refund of the fee.

[Regulation 194 amended in Gazette 22 Jun 2010 p. 2737.]

195. Form of approvals

An approval must be in writing.

196. When approvals not to be made

The Chief Officer must not give an approval to a person who is prohibited by a court order from involvement in the transport of dangerous goods.

197. Reasons for refusal of applications

- (1) This regulation applies if the Chief Officer refuses an application to give or vary an approval.
- (2) The Chief Officer must inform the applicant in writing of the refusal and of the reasons for the refusal.

198. Periods and conditions

- (1) An approval has effect for the period specified in the approval.
- (2) A condition to which an approval is subject must be specified in the approval.

199. Replacement approvals

The Chief Officer must issue to a person to whom an approval is given a replacement approval if —

- (a) the approval is varied; or
- (b) the Chief Officer is satisfied that the approval has been defaced, destroyed, lost or stolen.

200. Grounds for cancelling approvals

- (1) In this regulation —
relevant change means a change about something that the Chief Officer may or must consider in deciding whether to give the approval.
- (2) The Chief Officer may cancel an approval if the application for the approval —
 - (a) did not comply with these regulations; or
 - (b) was false or misleading in a material respect.
- (3) The Chief Officer may cancel an approval if —
 - (a) a relevant change has happened since the approval was given; and

(b) if the change had happened earlier the approval would not have been given.

(4) The Chief Officer may cancel an approval if the person to whom the approval is given is unsuitable to continue to be a person to whom the approval is given, because the person has contravened —

(a) a provision of the Act or these regulations; or

(b) a provision of the law in force in another participating jurisdiction corresponding to a provision referred to in paragraph (a).

201. Grounds for varying approvals

(1) In this regulation —

relevant change means a change about something that the Chief Officer may or must consider in deciding whether to give the approval.

(2) The Chief Officer may vary an approval if the application for the approval —

(a) did not comply with these regulations; or

(b) was false or misleading in a material respect.

(3) The Chief Officer may vary an approval if —

(a) a relevant change has happened since the approval was given; and

(b) if the change had happened earlier the approval would have been given in the way in which it is proposed to be varied.

(4) The Chief Officer may vary an approval if the person to whom the approval is given is unsuitable to continue to be a person to whom the approval is given without variation because the person has contravened —

(a) a provision of the Act or these regulations; or

- _____ (b) a provision of the law in force in another participating jurisdiction corresponding to a provision referred to in paragraph (a).

Division 2 — Register of approvals

202. Register of approvals

- _____ (1) The Chief Officer must keep a register of approvals.
- _____ (2) The register may have separate divisions for different kinds of approvals.
- _____ (3) The Chief Officer must record in the register —
_____ (a) each approval; and
_____ (b) each corresponding approval.
- _____ (4) The Chief Officer must note in the register —
_____ (a) any cancellation or variation of an approval; and
_____ (b) any decision of CAP reversing a decision that a corresponding approval should have effect in all participating jurisdictions or participating jurisdictions including this State.

203. Records of approvals

_____ The record of an approval in the register must include —

- _____ (a) the terms of the approval; or
- _____ (b) the following information —
_____ (i) the name of the person to whom the approval was given;
_____ (ii) the date when the approval was given;
_____ (iii) the period for which the approval has effect;
_____ (iv) the provisions of these regulations, and of the ADG Code, to which the approval relates;
_____ (v) the dangerous goods, equipment, packaging, vehicle or other thing to which the approval relates.

Division 3 — Reference of approval matters to CAP

204. References to CAP

- (1) The Chief Officer must refer an application for an approval, or an approval that the Chief Officer has given, to CAP if the Chief Officer considers that the approval should have effect in all participating jurisdictions or participating jurisdictions including this State.
- (2) The Chief Officer must refer to CAP an approval having effect in this jurisdiction and one or more other participating jurisdictions, if —
- (a) the Chief Officer considers that the approval should be cancelled or varied; or
- (b) a corresponding authority recommends to the Chief Officer in writing that the approval should be cancelled or varied.

[Regulation 204 amended in Gazette 13 Jun 2014 p. 1945.]

205. Effect of CAP decisions about approvals

- (1) This regulation applies if —
- (a) an application for an approval, or an approval, is referred to CAP under regulation 204(1); and
- (b) CAP decides —
- (i) that the approval should be given, what the terms of the approval should be, and that the approval should have effect in all participating jurisdictions or participating jurisdictions including this State; or
- (ii) that the approval should not have effect in this State.

- (2) The Chief Officer must have regard to CAP's decision.

[Regulation 205 amended in Gazette 13 Jun 2014 p. 1945.]

206. Effect of CAP decisions about cancelling or varying approvals

- (1) This regulation applies if —
- (a) an approval is referred to CAP under regulation 204(2);
and
 - (b) CAP decides that the approval —
 - (i) should, or should not, be cancelled; or
 - (ii) should be varied (whether or not CAP's decision is the same as the variation proposed by the Chief Officer), and should have effect as varied in all participating jurisdictions or participating jurisdictions including this State; or
 - (iii) should not be varied.
- (2) The Chief Officer must have regard to the CAP's decision.

Division 4 — Cancellation and variation

207. Term used: approval

In this Division —

approval includes an authorisation by the Chief Officer under regulation 60.

208. Cancellation and variation in dangerous situations

The Chief Officer must cancel or vary an approval if the Chief Officer reasonably believes that —

- (a) a ground exists to cancel or vary the approval; and
- (b) it is necessary to do so to reduce, eliminate or avert any risk to people, property or the environment from dangerous goods in a dangerous situation.

209. Cancellation giving effect to court orders

- (1) The Chief Officer must cancel an approval if the person to whom the approval is given is prohibited by a court order from involvement in the transport of dangerous goods.

- (2) If an approval applies to more than one person, subregulation (1) only requires the Chief Officer to ensure that the approval no longer applies to the person who is the subject of the prohibition.

210. Variation of approvals on application

- (1) This regulation applies if —
- (a) an application is made to vary an approval; and
 - (b) the application is made in accordance with regulation 194 by the person to whom the approval is given.
- (2) The Chief Officer may vary the approval in accordance with the application.

211. Cancellation and variation in other circumstances

- (1) This regulation applies if —
- (a) the Chief Officer considers that a ground exists to cancel or vary an approval (the *proposed action*); and
 - (b) none of regulations 208, 209 and 210 applies to the proposed action.
- (2) The Chief Officer must give to the person to whom the approval is given a written notice that —
- (a) states what the proposed action is; and
 - (b) if the proposed action is to vary the approval — sets out the proposed variation; and
 - (c) sets out the ground for the proposed action; and
 - (d) outlines the facts and other circumstances forming the basis for the ground; and
 - (e) invites the person to state in writing, within a specified period of at least 28 days after the day on which the notice is given to the person, why the proposed action should not be taken.

(3) If, after considering any written statement made within the specified period, the Chief Officer reasonably believes that a ground exists to take the proposed action, the Chief Officer may —

(a) cancel or vary the approval; or

(b) if the proposed action is to vary the approval in a specified way — vary the approval in that way.

212. When cancellation and variation take effect

The cancellation or variation of an approval by the Chief Officer takes effect on —

(a) the day on which the person to whom the approval is given is given written notice by the Chief Officer of the cancellation or variation and of the reasons for the cancellation or variation; or

(b) a later day specified in the notice.

art 17A — Determinations

[Heading inserted in Gazette 13 Jun 2014 p. 1945.]

213A. Reference of determinations to CAP

(1) The Chief Officer must refer an application for a determination, or a determination that the Chief Officer has made, to CAP if the Chief Officer considers that the determination should have effect in all participating jurisdictions or participating jurisdictions including this State.

(2) The Chief Officer must refer to CAP a determination having effect in this jurisdiction and one or more other participating jurisdictions, if —

(a) the Chief Officer considers that the determination should be revoked or varied; or

(b) a corresponding authority recommends to the Chief Officer in writing that the determination should be revoked or varied.

[Regulation 213A inserted in Gazette 13 Jun 2014 p. 1945-6.]

213B. Effect of CAP decisions about determinations

(1) This regulation applies if —

(a) an application for a determination, or a determination, is referred to CAP under regulation 213A(1); and

(b) CAP decides —

(i) that the determination should be made, what the terms of the determination should be, and that the determination should have effect in all participating jurisdictions or participating jurisdictions including this State; or

(ii) that the determination should not have effect in this State.

(2) The Chief Officer must have regard to CAP's decision.

[Regulation 213B inserted in Gazette 13 Jun 2014 p. 1946.]

**213C. Effect of CAP decisions about revoking or varying
determinations**

(1) This regulation applies if —

(a) a determination is referred to CAP under
regulation 213A(2); and

(b) CAP decides that the determination —

(i) should, or should not, be revoked; or

(ii) should be varied (whether or not CAP's decision
is the same as the variation proposed by the
Chief Officer), and should have effect as varied
in all participating jurisdictions or participating
jurisdictions including this State; or

(iii) should not be varied.

(2) The Chief Officer must have regard to CAP's decision.

[Regulation 213C inserted in Gazette 13 Jun 2014 p. 1947.]

Part 17 — Licences

Division 1 — Preliminary

213. Term used: licensing authority

In this Part —

licensing authority means —

- (a) the Chief Officer; or
- (b) a person authorised by the Chief Officer to grant and renew licences under this Part.

214. Part additional to other laws

This Part is in addition to any other law in force in this State about —

- (a) the licensing of drivers; or
- (b) the employment or engaging of drivers; or
- (c) the registration of vehicles; or
- (d) the transport of goods by road.

Division 2 — Principal duties under this Part

215. Vehicles to be licensed (Act s. 14)

(1) In this regulation —

road tank vehicle means a tank vehicle —

- (a) that is a road vehicle; and
- (b) with a tank or demountable tank with a capacity of more than 500 L that is filled or emptied while attached to the vehicle.

(2) Except as provided in subregulation (5), a road tank vehicle used to transport dangerous goods on a road must be licensed under this Part to transport the goods.

[(3), (4) deleted]

- (5) A road tank vehicle used to transport dangerous goods need not be licensed under this Part if a determination made under regulation 19 permits the vehicle that is not licensed under this Part to be used to transport the particular dangerous goods.

[Regulation 215 amended in Gazette 22 Jun 2010 p. 2737-8;
3 Aug 2012 p. 3757; 13 Jun 2014 p. 1947; 8 Jan 2015 p. 132;
11 Jul 2017 p. 3830.]

216A. Some vehicles may be licensed even though not required to be licensed under this Part

- (1) Even if a vehicle used to transport dangerous goods on a road is not required to be licensed under this Part, a licensing authority may grant or renew a dangerous goods vehicle licence for the vehicle if satisfied —

(a) the vehicle transports dangerous goods in another State or a Territory; and

(b) the vehicle is required to be licensed under the law of that place to transport the goods in that place; and

(c) a licence under the law of that place to transport the goods in that place would not be granted because the vehicle operates principally in this State.

- (2) A licensing authority must not grant or renew a dangerous goods vehicle licence for a vehicle referred to in subregulation (1) unless satisfied a licence under the law of the other State or the Territory to transport the goods in that place would be granted if the vehicle were operating principally in that place.

[Regulation 216A inserted in Gazette 3 Aug 2012 p. 3758.]

216. Drivers to be licensed (Act s. 15)

- (1) Except as provided in subregulation (2), a person who drives a road vehicle transporting —

(a) dangerous goods in a receptacle with a capacity of more than 500 L; or

(b) more than 500 kg of dangerous goods in a receptacle,
must be licensed under this Part to drive the vehicle.

(2) A person who drives a road vehicle transporting dangerous
goods need not be licensed under this Part if —

(a) the goods are transported in an IBC; and

(b) the IBC is not filled or emptied on the vehicle; and

(c) the total capacity of IBCs containing dangerous goods
on the vehicle is not more than 3 000 L.

[Regulation 216 amended in Gazette 22 Jun 2010 p. 2738.]

217. Duty on consignors

A person must not consign dangerous goods for transport in or
on a road vehicle if —

(a) the vehicle is required to be licensed under this Part to
transport the goods; and

(b) the person knows, or ought reasonably to know, that the
vehicle is not so licensed.

Penalty: a fine of \$10 000.

Division 3 — Dangerous goods driver licences

218. Applications for licences

(1) A person resident in this State who is not the holder of a
dangerous goods driver licence or a corresponding dangerous
goods driver licence may apply to a licensing authority for a
dangerous goods driver licence if the person holds a driver
licence (other than a provisional licence).

(2) The application must be accompanied by the following —

(a) the driver licence evidence required by regulation 219;

(b) the competency evidence required by regulation 220;

(c) the medical fitness evidence required by regulation 221;

(d) 1 recent photograph of the applicant's face and shoulders;

(e) if a fee is prescribed for the application — the prescribed fee.

*[Regulation 218 amended in Gazette 17 Nov 2015 p. 4700:
11 Jul 2017 p. 3830.]*

219. Required driver licence evidence

(1) The following documents are required as driver licence evidence for an application for a dangerous goods driver licence or for renewal of a dangerous goods driver licence —

(a) an extract of entries about the applicant in the driving licences register kept by the driver licensing authority in each State and Territory where the applicant has held a licence to drive, certified by the authority not more than 6 months before the day on which the application is made; and

(b) either —

(i) the document mentioned in subregulation (2); or

(ii) the authorisation mentioned in subregulation (3).

(2) For subregulation (1)(b)(i), the document is a copy of the records of any conviction of the applicant for a driving offence, certified by the appropriate authority of the State or Territory where the applicant was convicted.

(3) For subregulation (1)(b)(ii), the authorisation is the authorisation by the applicant for the licensing authority to have access to —

(a) entries about the applicant in the driving licences register kept by the driver licensing authority of any State or Territory; and

(b) records of any conviction of the applicant for a driving offence in any State or Territory.

[Regulation 219 amended in Gazette 17 Nov 2015 p. 4700.]

220. Required competency evidence

The document required as competency evidence for an application for a dangerous goods driver licence or for renewal of a dangerous goods driver licence is —

- (a) a certificate issued by a person who conducted an approved test or approved training course, stating that the applicant passed the test or completed the course not more than 6 months before the day on which the application is made; or
- (b) other written evidence that the applicant passed an approved test or completed an approved training course not more than 6 months before the day on which the application is made.

221. Required medical fitness evidence

The document required as medical fitness evidence for an application for a dangerous goods driver licence or for renewal of a dangerous goods driver licence is a certificate that —

- (a) is about the applicant's medical fitness to drive a road vehicle; and
- (b) is issued by a registered medical practitioner who examined the applicant not more than 6 months before the day on which the application is made; and
- (c) states that the medical practitioner examined and passed the applicant in accordance with the set of medical standards described as the commercial standards in *Assessing Fitness to Drive for commercial and private vehicle drivers*, Fifth Edition 2016, published by Austroads Ltd (ISBN 987-1-925451-10-8).

[Regulation 221 amended in Gazette 3 Aug 2012 p. 3758;
11 Jul 2017 p. 3830.]

222. Grant of dangerous goods driver licences

- (1) Subject to subregulation (2), a licensing authority must grant a dangerous goods driver licence if an application for the licence is made to the authority in accordance with regulation 218.
- (2) The licensing authority must not grant the licence if —
- (a) in the 5 years before the day on which the application is made —
- (i) the applicant has been found guilty by a court in Australia of an offence that makes the applicant unsuitable to be the driver of a vehicle transporting dangerous goods; or
- (ii) the applicant's driver licence has been cancelled or suspended on a ground that makes the applicant unsuitable to be the driver of a vehicle transporting dangerous goods;
- or
- (b) the applicant is prohibited by a court order from involvement in the transport of dangerous goods by road.
- (3) If the licensing authority refuses to grant a dangerous goods driver licence, it must inform the applicant in writing of the refusal and of the reasons for the refusal.

223. Applications for renewal of licences

- (1) A person who holds a dangerous goods driver licence may apply to the licensing authority for renewal of the licence.
- (2) The application must be accompanied by the following —
- (a) the driver licence evidence required by regulation 219;
- (b) the competency evidence required by regulation 220;
- (c) the medical fitness evidence required by regulation 221;

(d) 2 photographs of the applicant of a size suitable for passports that were taken in the 6 months before the day on which the application is made;

(e) if a fee is prescribed for the application — the prescribed fee.

(3) The application must be made within 3 months before the licence expires.

224. Renewal of licences

(1) Subject to subregulation (2), a licensing authority must renew a dangerous goods driver licence if an application for renewal of the licence is made to the licensing authority in accordance with regulation 223.

(2) The licensing authority must not renew the licence if —

(a) while the licence had effect —

(i) the applicant was found guilty by a court in Australia of an offence that makes the applicant unsuitable to be the driver of a vehicle transporting dangerous goods; or

(ii) the applicant's driver licence was cancelled or suspended on a ground that makes the applicant unsuitable to be the driver of a vehicle transporting dangerous goods;

or

(b) the applicant is prohibited by a court order from involvement in the transport of dangerous goods by road.

(3) If the licensing authority refuses to renew a dangerous goods driver licence, the authority must inform the applicant in writing of the refusal and of the reasons for the refusal.

225. Licence periods

- (1) A dangerous goods driver licence takes effect on the day on which the licence is granted or a later day specified in the licence.
- (2) A dangerous goods driver licence is granted for the period specified in the licence, being a period of not longer than 5 years.
- (3) If an application for a renewal of the licence is not decided on or before the date on which the licence expires under subregulation (2) or (5) (the *expiry date*), the licence has effect after the expiry date until the licensing authority renews, or refuses to renew, the licence, unless in the meantime the licence is cancelled or the application is withdrawn.
- (4) A renewal of a licence takes effect on the day after the expiry date.
- (5) A dangerous goods driver licence is renewed for the period specified in the renewed licence, being a period of not longer than 5 years.

[Regulation 225 amended in Gazette 3 Aug 2012 p. 3758.]

226. Licence conditions

- (1) A licensing authority may grant or renew a dangerous goods driver licence subject to any of the conditions mentioned in subregulations (3) and (4).
- (2) A condition to which the licence is subject must be stated in the licence.
- (3) The licence may include conditions about —

 - (a) the dangerous goods that may or may not be transported in or on a road vehicle driven by the licensee; and
 - (b) the containers that may or may not be used to transport dangerous goods in or on a road vehicle driven by the licensee; and

- (c) the road vehicles that may be driven by the licensee in transporting dangerous goods; and
 - (d) the areas where the licensee may or may not drive a road vehicle transporting dangerous goods or particular dangerous goods; and
 - (e) the supervision of the licensee when driving a road vehicle transporting dangerous goods.
- (4) The licence may include any other condition necessary for the safe transport of dangerous goods by road.

227. Additional condition

- (1) It is a condition of a dangerous goods driver licence that a licensing authority may, by written notice given to the licensee, require the licensee to produce to the authority a certificate that —
- (a) is about the licensee's medical fitness to drive a road vehicle; and
 - (b) is issued by a registered medical practitioner who examined the licensee not more than 6 months before the day on which the certificate is given to the authority; and
 - (c) states that the medical practitioner examined and passed the applicant in accordance with the set of medical standards described as the commercial standards in *Assessing Fitness to Drive for commercial and private vehicle drivers*, Fifth Edition 2016, published by Austroads Ltd (ISBN 987-1-925451-10-8).
- (2) The written notice must specify a period of at least 2 months after the day on which the notice is received by the licensee within which the licensee must produce the certificate.
- (3) A licensing authority must not give written notice under this regulation if the dangerous goods driver licence is due to expire in less than 4 months.

*[Regulation 227 amended in Gazette 3 Aug 2012 p. 3759;
11 Jul 2017 p. 3831.]*

228. Grounds for cancelling, suspending or varying licences

(1) A licensing authority may cancel, suspend or vary a dangerous goods driver licence if the application for the licence or for renewal of the licence —

(a) did not comply with these regulations; or

(b) was false or misleading in a material respect.

(2) A licensing authority may cancel, suspend or vary a dangerous goods driver licence if the licensee is unsuitable to continue to be the driver of a road vehicle transporting dangerous goods because —

(a) the licensee has contravened —

(i) a provision of the Act or these regulations; or

(ii) a provision of the law in force in another participating jurisdiction corresponding to a provision referred to in subparagraph (i);

or

(b) the licensee has been found guilty by a court in Australia of an offence; or

(c) the licensee's driver licence is cancelled or suspended; or

(d) the licensee is suffering from a medical condition or has a physical or mental disability.

Division 4 — Dangerous goods vehicle licences

229. Terms used

In this Division —

converter dolly has the meaning given in the *Road Traffic (Vehicles) Regulations 2014* regulation 3;

vehicle does not include —

- (a) a prime mover; or
- (b) a converter dolly.

[Regulation 229 amended in Gazette 11 Jul 2017 p. 3831.]

230. Applications for licences

(1) A person may apply to a licensing authority for a dangerous goods vehicle licence for a road vehicle —

- (a) used, or intended to be used, in transporting dangerous goods; and
- (b) for which the person does not hold a dangerous goods vehicle licence; and
- (c) in respect of which the person has been granted a vehicle licence under the *Road Traffic (Vehicles) Act 2012* Part 2.

(2) The application must include the following information —

- (a) the registration number, make and type of the road vehicle;
- (b) the type of dangerous goods intended to be transported in or on the road vehicle;
- (c) if the applicant holds a dangerous goods vehicle licence for another vehicle — the number of the other dangerous goods vehicle licence.

(3) The application must be accompanied by a copy of the vehicle licence granted under the *Road Traffic (Vehicles) Act 2012* Part 2 for the road vehicle.

(4) If a fee is prescribed for the application, the application must be accompanied by the prescribed fee.

(5) An application may be made for licences for 2 or more road vehicles in the same form.

[Regulation 230 amended in Gazette 8 Jan 2015 p. 132.]

231. Additional information and inspections

(1) A licensing authority may, by written notice, require an applicant for a dangerous goods vehicle licence, or for renewal of a dangerous goods vehicle licence, for a road vehicle —

(a) to give to the authority, or to someone nominated by the authority, any additional information necessary for a proper consideration of the application; and

(b) to make the road vehicle available for inspection by the authority, or by someone nominated by the authority, at a specified place and time.

(2) A person who inspects a road vehicle for the licensing authority must give a report of the inspection to the authority as soon as practicable after the inspection.

(3) The licensing authority must give a copy of any report of an inspection to the applicant if the applicant asks for it.

232. Grant of dangerous goods vehicle licences

(1) Subject to subregulation (3), a licensing authority must grant a dangerous goods vehicle licence for a road vehicle if —

(a) an application for the licence is made to the authority in accordance with regulation 230; and

(b) the applicant has complied with any requirement made under regulation 231 in relation to the application; and

(c) the road vehicle is suitable to transport each type of dangerous goods intended to be transported in or on the road vehicle.

(2) Without limiting subregulation (1)(c), if a road vehicle is intended for use in the transport of dangerous goods in the form of a liquid or gas using a tank that forms part of the vehicle or is attached to the vehicle, the vehicle is suitable only if —

(a) the tank is an approved tank; and

(b) the vehicle complies with the requirements of the ADG Code Chapters 4.4 and 6.9 applying to road vehicles for use in transporting dangerous goods in the form of a liquid or gas.

(3) The licensing authority must not grant a licence if the applicant is prohibited by a court order from involvement in the transport of dangerous goods by road.

(4) The licensing authority may issue a single dangerous goods vehicle licence for more than one road vehicle.

(5) If the licensing authority refuses to grant a dangerous goods vehicle licence, the authority must inform the applicant in writing of the refusal and of the reasons for the refusal.

233. Applications for renewal of licences

(1) A person who holds a dangerous goods vehicle licence for a road vehicle may apply to the licensing authority for renewal of the licence.

(2) The application must include the information required under subregulation 230(2) for an application for a dangerous goods vehicle licence for the road vehicle.

(3) If a fee is prescribed for the application, the application must be accompanied by the prescribed fee.

(4) The application must be made within 3 months before the licence expires.

234. Renewal of licences

(1) Subject to subregulation (3), a licensing authority must renew a dangerous goods vehicle licence for a road vehicle if —

- (a) an application for renewal of the licence is made to the authority in accordance with regulation 233; and
 - (b) the applicant has complied with any requirement made under regulation 231 in relation to the application; and
 - (c) the road vehicle is suitable to transport each type of dangerous goods intended to be transported in or on the road vehicle.
- (2) Without limiting subregulation (1)(c), if a road vehicle is intended for use in the transport of dangerous goods in the form of a liquid or gas using a tank that forms part of the vehicle or is attached to the vehicle, the vehicle is suitable only if —
- (a) the tank is an approved tank; and
 - (b) the vehicle complies with the requirements of the ADG Code Chapters 4.4 and 6.9 applying to road vehicles for use in transporting dangerous goods in the form of a liquid or gas.
- (3) The licensing authority must not renew the licence if the applicant is prohibited by a court order from involvement in the transport of dangerous goods by road.
- (4) The licensing authority may issue a single dangerous goods vehicle licence for more than one road vehicle.
- (5) If the licensing authority refuses to renew a dangerous goods vehicle licence, the authority must inform the applicant in writing of the refusal and of the reasons for the refusal.

235. Licence periods

- (1) A dangerous goods vehicle licence takes effect on the day on which the licence is granted or a later day specified in the licence.
- (2) A dangerous goods vehicle licence is granted for the period specified in the licence, being a period of not longer than 5 years.

(3) If an application for a renewal of the licence is not decided on or before the date on which the licence expires under subregulation (2) or (5) (the *expiry date*), the licence has effect after the expiry date until the licensing authority renews, or refuses to renew, the licence, unless in the meantime the licence is cancelled or the application is withdrawn.

(4) A renewal of a licence takes effect on the day after the expiry date.

(5) A dangerous goods vehicle licence is renewed for the period specified in the renewed licence, being a period of not longer than 5 years.

[Regulation 235 amended in Gazette 3 Aug 2012 p. 3759.]

236. Licence conditions

(1) A licensing authority may grant or renew a dangerous goods vehicle licence subject to any of the conditions mentioned in subregulations (3) and (4).

(2) A condition to which the licence is subject must be stated in the licence.

(3) The licence may include conditions about —

(a) the dangerous goods that may or may not be transported in or on the road vehicle; and

(b) the areas where the road vehicle may or may not be used to transport dangerous goods or particular dangerous goods; and

(c) the inspections of the road vehicle (if any) that are required.

(4) The licence may include any other condition necessary for the safe transport of dangerous goods by road.

237. Disposal and transfer of licensed vehicles

(1) In this regulation —

business transfer, in respect of a vehicle, means a transfer of the title to the vehicle as part of a transfer in ownership of the business in which the vehicle is used and is to continue to be used;

licensed vehicle means a vehicle for which a dangerous goods vehicle licence is in force.

- (2) Within 21 days after transferring possession or otherwise disposing of a licensed vehicle (otherwise than by way of a business transfer) (the **disposed vehicle**), the person who holds the licence for the vehicle must give, to the licensing authority, notice of the disposal.

Penalty: a fine of \$1 500.

- (3) If the licence for the disposed vehicle also relates to another vehicle, the person who holds the licence for the vehicle must attach the licence to the notice of the disposal.

Penalty: a fine of \$1 500.

- (4) If the licence for the vehicle does not relate to another vehicle, the person who holds the licence for the vehicle must —

(a) attach the licence to the notice of the disposal; or

(b) destroy it and, if required by the licensing authority, provide sufficient evidence to show that this has been done.

Penalty: a fine of \$1 500.

- (5) On receipt of a licence for a disposed vehicle, the licensing authority must —

(a) if the licence also relates to another vehicle —

(i) amend the licence by omitting reference to the disposed vehicle; and

(ii) return the licence to the person who gave the licence to the authority;

or

(b) if paragraph (a) does not apply — cancel the licence.

- (6) Within 21 days after the transfer by business transfer of a licensed vehicle, the person to whom the vehicle has been transferred must make an application to the licensing authority, accompanied by the licence, for the transfer of the licence to that person.

Penalty: a fine of \$1 500.

- (7) On receipt of the application and licence, the licensing authority must amend the licence to record the change in ownership and return the licence.

238. Grounds for cancelling, suspending or varying licences

- (1) A licensing authority may cancel, suspend or vary a dangerous goods vehicle licence if the application for the licence or for renewal of the licence —

(a) did not comply with these regulations; or

(b) was false or misleading in a material respect.

- (2) A licensing authority may also cancel, suspend or vary a dangerous goods vehicle licence for a road vehicle if the road vehicle does not comply with the Act or these regulations.

Division 5 — Requirements relating to dangerous goods driver licences

239. When licences to be carried

The driver of a road vehicle that is transporting dangerous goods who is required to be licensed under this Part to drive the vehicle must carry his or her dangerous goods driver licence while driving the vehicle.

Penalty: a fine of \$1 500.

[Regulation 239 inserted in Gazette 2 Dec 2013 p. 5497-8.]

240. Licences to be produced for inspection

The driver of a road vehicle that is transporting dangerous goods who is required to be licensed under this Part to drive the

vehicle must produce his or her dangerous goods driver licence for inspection by a DGO or a police officer, if the officer asks the driver to produce the licence for inspection.

Penalty: a fine of \$1 500.

Division 6 — Licences generally

241. Terms used

In this Division —

licence means a dangerous goods driver licence or dangerous goods vehicle licence;

licensee means the holder of a licence.

242. Replacement licences

(1) A licensing authority may issue a replacement licence to a licensee if —

(a) the licence is renewed; or

(b) the licence is varied; or

(c) a suspension of the licence has ended.

(2) The licensing authority must issue a replacement licence to a licensee if the authority is satisfied that the licence has been defaced, destroyed, lost or stolen.

243. Failure to comply with licence conditions

A licensee must not contravene a condition of his or her licence.

Penalty: a fine of \$10 000.

244. Surrender of licences

(1) A licensee may surrender his or her licence by giving notice of surrender to the licensing authority.

(2) A licence ceases to have effect on its surrender.

- (3) A person must not produce for inspection a licence that has been surrendered.

Penalty for this subregulation: a fine of \$10 000.

[Regulation 244 amended in Gazette 11 Jul 2017 p. 3831.]

245. Registers of licences

- (1) A licensing authority must keep a register of dangerous goods driver licences.

- (2) A licensing authority must keep a register of dangerous goods vehicle licences.

- (3) A register may have separate divisions for different kinds of licences.

- (4) A licensing authority must —

(a) record each licence granted by the authority in the appropriate register; and

(b) note in the register any cancellation, surrender, suspension or variation of a licence.

246. Records of licences

The record of a licence in the register must include the following information —

(a) the name of the licensee;

(b) the date when the licence was granted or renewed;

(c) either —

(i) the period for which the licence was granted or renewed; or

(ii) the expiry date of the licence;

(d) for a dangerous goods driver licence — the licensee's date of birth;

- (e) for a dangerous goods vehicle licence — the registration number, make and type of each road vehicle to which the licence relates;
- (f) the UN Classes or UN Divisions of dangerous goods for which the licence is valid;
- (g) any condition to which the licence is subject.

247. Change of information given in licence applications

- (1) This regulation applies if a licensee becomes aware that information given by the licensee to a licensing authority in, or in relation to, an application for a licence or for renewal of a licence is, or has become, incorrect in a material respect.
 - (2) Within 14 days after becoming aware of the matter, the licensee must inform the licensing authority about the matter and give the correct information to the authority.
- Penalty: a fine of \$1 500.

248. Production of licences to licensing authority

- (1) A licensing authority may, by written notice, require a person to whom a licence has been granted to produce the licence to the authority.
 - (2) The person must produce the licence to the licensing authority within 14 days after the day on which the notice is given to the person.
- Penalty: a fine of \$1 500.

249. Return of licences

- (1) This regulation applies if a licence is produced to a licensing authority or given to the authority by a DGO or a police officer.
- (2) If the licence has not been cancelled, is not suspended and has not been varied, the licensing authority must return the licence to the licensee.

- (3) If the licence has been suspended, the suspension has ended and a replacement licence is not issued, the licensing authority must return the licence to the licensee.
- (4) If the licence has been varied, the variation is recorded on the licence and a replacement licence is not issued, the licensing authority must return the licence to the licensee.
- (5) However, if the licence period has ended, the licensing authority is not required to return the licence to the licensee.

Division 7 — Cancellation, suspension and variation

250. Terms used

In this Division —

licence means a dangerous goods driver licence or dangerous goods vehicle licence;

licensee means the holder of a licence.

251. Cancellation, suspension and variation in dangerous situations

A licensing authority must cancel, suspend or vary a licence granted by it if the authority reasonably believes that —

(a) a ground exists to cancel, suspend or vary the licence;
and

(b) it is necessary to do so to reduce, eliminate or avert any risk to people, property or the environment from dangerous goods in a dangerous situation.

252. Cancellation and suspension giving effect to court orders

A licensing authority must cancel or suspend a licence granted by it if the licensee is prohibited by a court order from involvement in the transport of dangerous goods by road.

253. Variation of licences on application

- (1) This regulation applies if —
- (a) an application is made to vary a licence; and
 - (b) the application is made by the licensee and has the licence with it.
- (2) A licensing authority may vary the licence in accordance with the application.

254. Cancellation, suspension and variation in other circumstances

- (1) This regulation applies if —
- (a) a licensing authority considers that a ground exists to cancel, suspend or vary a licence granted by it (the ***proposed action***); and
 - (b) none of regulations 251, 252 and 253 applies to the proposed action.
- (2) The licensing authority must give to the licensee a written notice that —
- (a) states what the proposed action is; and
 - (b) if the proposed action is to suspend the licence — states the proposed suspension period (either as a period of time or by reference to a future event); and
 - (c) if the proposed action is to vary the licence — sets out the proposed variation; and
 - (d) sets out the ground for the proposed action; and
 - (e) outlines the facts and other circumstances forming the basis for the ground; and
 - (f) invites the licensee to state in writing, within a specified period of at least 28 days after the day on which the notice is given to the licensee, why the proposed action should not be taken.

- (3) If, after considering any written statement made within the specified period, the licensing authority reasonably believes that a ground exists to take the proposed action, the authority may —
- (a) cancel or vary the licence; or
 - (b) suspend the licence for not longer than the suspension period stated in the notice; or
 - (c) if the proposed action is to vary the licence in a specified way — vary the licence in that way.
- (4) The licensing authority may withdraw a suspension before the suspension is due to expire if it reasonably believes that it is appropriate to do so.

[Regulation 254 amended in Gazette 11 Jul 2017 p. 3831-2.]

255. When cancellation, suspension and variation take effect

The cancellation, suspension or variation of a licence by a licensing authority takes effect on —

- (a) the day on which the licensee is given written notice by the licensing authority of the cancellation, suspension or variation and of the reasons for the cancellation, suspension or variation; or
- (b) a later day specified in the notice.

256. When licences taken to be suspended

- (1) A person's dangerous goods driver licence is taken to be suspended if the person's driver licence has no effect.
- (2) A person's dangerous goods vehicle licence for a road vehicle is taken to be suspended if the road vehicle is not registered.

Part 18 — Insurance

257. Duty on owners

(1) The owner of a road vehicle must not use the vehicle, or permit it to be used, to transport a placard load unless —

(a) the use of the vehicle is covered by a policy of insurance, or other form of indemnity, for a sum that is at least \$5 000 000, in respect of —

(i) personal injury, death, property damage and other damage (except consequential economic loss) arising out of fire, explosion, leakage or spillage of dangerous goods in, on or from the vehicle or any packaging transported in or on the vehicle; and

(ii) costs incurred by or on behalf of a Commonwealth, State or Territory government authority in a clean-up resulting from such fire, explosion, leakage or spillage;

or

(b) the owner has an approval given under regulation 260 in relation to the use of the vehicle and is complying with all relevant conditions to which the approval is subject.

Penalty: a fine of \$10 000.

(2) Each load bearing vehicle, whether or not a motor vehicle and whether or not it is being used in combination with another vehicle, is a vehicle for the purposes of subregulation (1).

Note for this regulation:

Under regulation 4, vehicle is defined as including a combination. It is not the purpose of subregulation (2) to require insurance in respect of each individual component of a combination being used in a combination. In the case of a combination, subregulation (1) only requires that there be insurance for the combination as a whole.

[Regulation 257 amended in Gazette 22 Jun 2010 p. 2738; 13 Jun 2014 p. 1948.]

258. Duty on prime contractors

(1) A prime contractor must not use a road vehicle to transport a placard load unless —

(a) the use of the vehicle is covered by a policy of insurance, or other form of indemnity, for a sum that is at least \$5 000 000, in respect of —

(i) personal injury, death, property damage and other damage (except consequential economic loss) arising out of fire, explosion, leakage or spillage of dangerous goods in, on or from the vehicle or any packaging transported in or on the vehicle; and

(ii) costs incurred by or on behalf of a Commonwealth, State or Territory government authority in a clean-up resulting from such fire, explosion, leakage or spillage;

or

(b) the prime contractor has an approval given under regulation 260 in relation to the use of the vehicle and is complying with all relevant conditions to which the approval is subject.

Penalty: a fine of \$10 000.

(2) Each load bearing vehicle, whether or not a motor vehicle and whether or not it is being used in combination with another vehicle, is a vehicle for the purposes of subregulation (1).

Note for this regulation:

Under regulation 4, vehicle is defined as including a combination. It is not the purpose of subregulation (2) to require insurance in respect of each individual component of a combination being used in a combination. In the case of a combination, subregulation (1) only requires that there be insurance for the combination as a whole.

[Regulation 258 amended in Gazette 22 Jun 2010 p. 2739; 13 Jun 2014 p. 1948.]

259. Requiring evidence of insurance etc.

(1) The Chief Officer may, by written notice, require the owner of a road vehicle used to transport a placard load, or a prime contractor responsible for the condition of the road vehicle, to produce —

(a) written evidence that the vehicle is covered by a policy of insurance or other form of indemnity in accordance with regulation 257(1)(a) or 258(1)(a); or

(b) an approval given under regulation 260 in relation to the road vehicle.

(2) The owner or prime contractor must produce the evidence or approval to the Chief Officer within 14 days after the day on which the notice is given to the owner or prime contractor.

Penalty: a fine of \$3 000.

260. Approvals — insurance

(1) The owner of a road vehicle used to transport a placard load, or a prime contractor responsible for the condition of the road vehicle, may make an application in accordance with regulation 194 to use the vehicle even if the vehicle is not covered by a policy of insurance or other form of indemnity in accordance with regulation 257(1)(a) or 258(1)(a).

(2) If the Chief Officer is satisfied that the owner or prime contractor is adequately capable of self-insurance for the purposes of regulation 257(1)(a) or 258(1)(a), the Chief Officer may give written approval for the use of the road vehicle.

(3) An approval given under subregulation (2) may be given by the Chief Officer —

(a) for a single use or for a period of not longer than 3 years; and

(b) subject to any other condition for the purposes of regulation 257(1)(a) or 258(1)(a).

Part 19 — Mutual recognition

Division 1 — Recommendations by Chief Officer and corresponding authorities

261. Recommendations by Chief Officer

- (1) This regulation applies if the Chief Officer considers that a ground exists for a corresponding authority to do any of the following (the *proposed action*) —
- (a) revoke or vary a corresponding determination;
 - (b) cancel or vary a corresponding exemption or corresponding approval;
 - (c) cancel, suspend or vary a corresponding dangerous goods driver licence or corresponding dangerous goods vehicle licence.
- (2) The Chief Officer may recommend, in writing, that the corresponding authority take the proposed action.
- (3) The Chief Officer must provide written reasons to the corresponding authority for the recommendation.
- (4) If the recommendation is about a determination, exemption or approval that has effect in one or more other participating jurisdictions, the Chief Officer must also refer the recommendation to CAP.

262. Recommendations by corresponding authorities

- (1) In this regulation —
exemption does not include an exemption granted by the Minister.
- (2) This regulation applies if a corresponding authority recommends to the Chief Officer in writing that the Chief Officer do any of the following —
- (a) revoke or vary a determination;

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(b) cancel or vary an exemption or approval;

(c) cancel, suspend or vary a dangerous goods driver licence
or dangerous goods vehicle licence.

(3) If the recommendation is about a determination, exemption or
approval that has effect in one or more other participating
jurisdictions, the Chief Officer need not take any action on the
recommendation until CAP has considered the recommendation.

(4) In any other case, the Chief Officer must have regard to the
recommendation.

**Division 2 — Mutual recognition of determinations,
exemptions, approvals and licences**

263. Corresponding determinations

(1) This regulation applies to a determination made by a
corresponding authority if —

(a) the determination is made under a provision of the law
of the other jurisdiction corresponding to a provision
(the *relevant provision*) of any of the following
regulations —

(i) regulation 17 (Determinations — dangerous
goods);

(ii) regulation 18 (Determinations — packagings);

(iii) regulation 19 (Determinations — vehicles,
routes, areas, times etc.);

and

(b) the determination has effect in the other jurisdiction; and

(c) CAP has decided that the determination should have
effect in all participating jurisdictions or participating
jurisdictions including this State, and CAP has not
reversed the decision.

(2) The determination has effect in this State as if it were a
determination made by the Chief Officer under the relevant
provision.

264. Corresponding exemptions

- (1) This regulation applies to an exemption granted by a corresponding authority if —
- (a) the exemption is granted from compliance with a provision of the law of the other jurisdiction corresponding to a provision (the ***relevant provision***) of these regulations; and
 - (b) the exemption has effect in the other jurisdiction; and
 - (c) CAP has decided that the exemption should have effect in all participating jurisdictions or participating jurisdictions including this State, and CAP has not reversed the decision.
- (2) The exemption has effect in this State as if it were an exemption granted by the Chief Officer from compliance with the relevant provision.
- (3) Despite subregulation (2), an exemption that has effect under that subregulation ceases to have effect 10 years after the day on which CAP decided that the exemption should have effect in all participating jurisdictions or participating jurisdictions including this State.

265. Corresponding approvals

- (1) This regulation applies to an approval given in another participating jurisdiction if —
- (a) the approval is given under a provision of the law of the other jurisdiction corresponding to a provision (the ***relevant provision***) of any one of the following regulations —
 - (i) regulation 15 (Approvals — tests and training courses for drivers);
 - (ii) regulation 56 (Approvals — packaging designs);
 - (iii) regulation 59 (Approvals — overpacks);

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Part 19 Mutual recognition

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- (iv) regulation 137 (Approvals — Type II segregation devices);
 - (v) regulation 138 (Approvals — methods of segregation);
 - (vi) regulation 162 (Approvals — emergency information);
 - (vii) regulation 260 (Approvals — insurance);
 - and
 - (b) the approval has effect in the other jurisdiction; and
 - (c) CAP has decided that the approval should have effect in all participating jurisdictions or participating jurisdictions including this State, and CAP has not reversed the decision.
- (2) The approval has effect in this State as if it were an approval given by the Chief Officer under the relevant provision.

266. Corresponding licences

- (1) This regulation applies to a licence granted for road transport in another participating jurisdiction if —
- (a) the licence is granted under a provision of the law of the other jurisdiction corresponding to a provision (the ***relevant provision***) of either of the following regulations —
 - (i) regulation 222 (Grant of dangerous goods driver licences);
 - (ii) regulation 232 (Grant of dangerous goods vehicle licences);
 - and
 - (b) the licence has effect in the other jurisdiction.
- (2) Except for circumstances that do not exist in this State, the licence has effect in this State as if it were a licence granted by the Chief Officer under the relevant provision.

**267A. Reference of determination, exemption or approval to CAP
for the purposes of mutual recognition**

The Chief Officer may refer to CAP any determination,
exemption or approval that has been made by a corresponding
authority that the Chief Officer considers to be a determination,
exemption or approval that should be given effect in all
participating jurisdictions, or participating jurisdictions
including this State, for the purposes of regulation 263, 264 or
265.

[Regulation 267A inserted in Gazette 17 Nov 2015 p. 4700-1.]

Part 20 — Reconsideration and review of decisions

267. Application of Part

(1) This Part applies to the following decisions made by the Chief Officer —

- (a) a decision, under the Act Part 4, to refuse to grant an exemption from compliance with a provision of these regulations, to cancel such an exemption, to impose a new condition or to vary or cancel a condition of such an exemption;
- (b) a decision under regulation 15 to approve or not approve a test or training course for drivers of road vehicles transporting dangerous goods;
- (c) a decision under regulation 56 to approve or not approve a design for a packaging;
- (d) a decision under regulation 59 to approve or not approve a method of preparing an overpack;
- (e) a decision under regulation 60(1) to authorise or not authorise a body or any other person to give approvals under regulations 56 and 59;
- (f) a decision under regulation 60(5) to withdraw an authorisation given under regulation 60;
- (g) a decision under regulation 137 to approve or not approve a design for a segregation device;
- (h) a decision under regulation 138 to approve or not approve a method of segregation;
- (i) a decision under regulation 162 to approve or not approve emergency information;
- (j) a decision under regulation 184 to approve or not approve a person to be an approved responder to emergency;
- (k) a decision under regulation 208, 210 or 211 to cancel, vary or refuse to vary an approval;

-
- (l) a decision under regulation 222 or 232 to grant or refuse to grant a licence;
 - (m) a decision under regulation 224 or 234 to renew or refuse to renew a licence;
 - (n) a decision under regulation 242 to issue or refuse to issue a replacement licence;
 - (o) a decision under regulation 251, 253 or 254 to cancel, suspend, vary or refuse to vary a licence;
 - (p) a decision under regulation 260 to approve or not approve the use of a vehicle that is not covered by a policy of insurance or other form of indemnity.
- (2) This Part applies to the following decisions made by an authorised body —
- (a) a decision under regulation 56 to approve or not approve a design for a packaging;
 - (b) a decision under regulation 59 to approve or not approve a method of preparing an overpack.
- (3) This Part applies to the following decisions made by a licensing authority other than the Chief Officer —
- (a) a decision under regulation 222 or 232 to grant or refuse to grant a licence;
 - (b) a decision under regulation 224 or 234 to renew or refuse to renew a licence;
 - (c) a decision under regulation 242 to issue or refuse to issue a replacement licence;
 - (d) a decision under regulation 251, 253 or 254 to cancel, suspend, vary or refuse to vary a licence.

268. Who may apply for reconsideration of decisions

A person aggrieved by a decision may apply to the Chief Officer for reconsideration of the decision.

- ## 270. Chief Officer to reconsider decisions

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Part 21 — Infringement notices

271. Infringement notice offences and modified penalties

- (1) The offences created by the provisions of these regulations specified in Schedule 1 column 2 are prescribed for the purposes of the Act section 56(2).
- (2) For the purposes of the Act section 56(4), the modified penalty prescribed for the offence created by the provision of these regulations specified in column 2 of an item in Schedule 1 is —

 - (a) for an individual — the amount specified in column 3 of that item;
 - (b) for a body corporate — the amount specified in column 4 of that item.

Part 22 — Fees

272. Fees prescribed

The fees payable under these regulations are prescribed in the Table.

Table

<u>Item</u>	<u>Fee for</u>	<u>Fee (\$)</u>
<u>1.</u>	<u>Approval or variation of approval</u> <u>(r. 194(1)(b))</u>	<u>280.00</u>
<u>2.</u>	<u>Application for, or for renewal of, a</u> <u>licence, for the term of the licence per</u> <u>year or part of a year —</u>	
	<u>(a) dangerous goods driver licence</u> <u>(r. 218(2)(e) and 223(2)(e))</u>	<u>22.50</u>
	<u>(b) dangerous goods vehicle licence</u> <u>(r. 230(4) and 233(3))</u>	<u>141.00</u>

*[Regulation 272 inserted in Gazette 22 Jun 2010 p. 2739;
amended in Gazette 20 Aug 2010 p. 4071; 26 Jun 2015 p. 2265;
24 Jun 2016 p. 2328; 23 Jun 2017 p. 3288; 25 Jun 2018
p. 2303.]*

Part 23 — Transitional

Division 1 — Provisions for *Dangerous Goods (Transport)* *Act 1998*

*[Heading inserted in Gazette 3 Aug 2012 p. 3759 by No. 51 of
2004 s. 16.]*

273. Terms used

In this Division —

commencement day means the day on which the Act Part 3
comes into operation²;

repealed Act means the *Dangerous Goods (Transport) Act 1998*
repealed by the Act;

repealed regulations means the *Dangerous Goods
(Transport) (Road and Rail) Regulations 1999* repealed by
the Act.

[Regulation 273 amended in Gazette 3 Aug 2012 p. 3759.]

274. Lawful conduct under repealed regulations

(1) A person does not commit an offence against the Act or these
regulations^{18A}. — ~~Meaning of gross negligence~~ in relation to
the transport of dangerous goods by road or rail if —

(a) the transport takes place before 1 January 2010; and

(b) the person transports the goods in accordance with the
repealed Act and the repealed regulations.

(2) Where an exemption or approval that is continued in effect
under this Part does not have an expiry date, it expires
immediately before the fifth anniversary of the commencement
day.

[Regulation 274 amended in Gazette 23 Jan 2009 p. 157.]

275. Continuing effect of certain determinations~~breaches of this Part~~

(1) This ~~regulation~~~~section~~ applies to a determination that —

(a) was made under the repealed regulations; and

(b) was in force in this State immediately before the commencement day; and

(c) is a determination in respect of something that may be determined under a provision (the *relevant provision*) of any of the following regulations —

(i) regulation 17 (Determinations — dangerous goods);

(ii) regulation 18 (Determinations — packaging);

(iii) ~~regulation~~~~contravention of section 19~~ (Determinations — vehicles, routes, areas, times etc.).

(2) The determination has effect for these regulations as if it were a determination made by the Chief Officer under the relevant provision.

(3) Without limiting subregulation (2), the Chief Officer may record the determination in the register of determinations kept under regulation 23.

276. Continuing effect of certain corresponding determinations

~~(1), 20(1) or (3), 21(1)~~ This regulation applies to a determination (however described) that —

(a) was made under a law regulating the transport of dangerous goods by road ~~or (2), 21B(2), 22(1), 23(1), (2), (3) or (3a), 23A or rail made by another State or a Territory that has passed or has indicated that it intends to pass a corresponding law; and~~ 23G(2).

(b) was in force in the other State or the Territory immediately before the commencement day; and

(c) is a determination about something that may be determined under —(2)— ~~A contravention of a provision of the corresponding law of the other State or the Territory (the *corresponding provision*) that corresponds to a provision of a regulation mentioned in regulation 275~~ subsection (1)(c).

(2) ~~Except for) is committed in circumstances that do not exist in this State, the determination has effect for these regulations as of gross negligence if it were a determination made by a corresponding authority under the corresponding provision.~~

277. Continuing effect of certain exemptions

(1) This regulation applies to an exemption that —

(a) ~~was granted the offender —~~

(i) ~~knew that the contravention would be likely to cause the death of, or serious harm to, a person to whom a duty is owed under the repealed Act; and that provision; but~~

(ii) ~~acted or failed to act in disregard of that likelihood;~~

~~and~~

(b) was in force in this State immediately before the commencement day; and

(c) is an exemption from compliance with a provision of ~~contravention did in fact cause the repealed regulations~~ corresponding to a provision (the *relevant provision*) ~~death of these regulations.~~

(2) ~~Subject, or serious harm to regulation 274(2), the exemption has effect for these regulations as if it were an exemption granted by the Chief Officer from compliance with the relevant provision, such a person.~~

(3) Without limiting subregulation (2), the Chief Officer may record the exemption in the register of exemptions kept under the Act section 23(8).

278. Continuing effect of certain corresponding exemptions

(1) This regulation applies to an exemption (however described) that —

- (a) was granted under a law regulating the transport of dangerous goods by road or rail made by another State or a Territory that has passed or has indicated that it intends to pass a corresponding law; and
- (b) was in force in the other State or the Territory immediately before the commencement day; and
- (c) is an exemption from compliance with a provision of the law of the other State or the Territory that corresponds to a provision of the corresponding law (the ***corresponding provision***).

(2) Except for circumstances that do not exist in this State, the exemption has effect for these regulations as if it were an exemption granted by a corresponding authority from compliance with the corresponding provision.

279. Continuing effect of certain approvals

(1) This regulation applies to an approval that —

- (a) was given under the repealed regulations; and
- (b) was in force in this State immediately before the commencement day; and
- (c) is an approval of something that may be approved under a provision (the ***relevant provision***) of any of the following regulations —
 - (i) regulation 15 (Approvals — tests and training courses for drivers);
 - (ii) regulation 56 (Approvals — packaging designs);
 - (iii) regulation 59 (Approvals — overpacks);
 - (iv) regulation 137 (Approvals — Type II segregation devices);

(v) regulation 138 (Approvals — methods of segregation);

(vi) regulation 162 (Approvals — emergency information).

(2) Subject to regulation 274(2), the approval has effect for these regulations as if it were an approval given by the Chief Officer under the relevant provision.

(3) Without limiting subregulation (2), the Chief Officer may record the approval in the register of approvals kept under regulation 202.

280. Continuing effect of certain corresponding approvals

(1) This regulation applies to an approval (however described) that —

(a) was given under a law regulating the transport of dangerous goods by road or rail made by another State or a Territory that has passed or has indicated that it intends to pass a corresponding law; and

(b) was in force in the other State or the Territory immediately before the commencement day; and

(c) is an approval of something that may be approved under a provision of the corresponding law of the other State or the Territory (the *corresponding provision*) that corresponds to a provision of a regulation mentioned in regulation 279(1)(c).

(2) Except for circumstances that do not exist in this State, the approval has effect for these regulations as if it were an approval given by a corresponding authority under the corresponding provision.

281. Continuing effect of certain licences

(1) This regulation applies to a licence that —

(a) was granted under the repealed regulations; and

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- (b) was in force in this State immediately before the commencement day; and
- (c) is a licence that may be granted under either of the following provisions (the ***relevant provision***) —
 - (i) regulation 222 (Grant of dangerous goods driver licence);
 - (ii) regulation 232 (Grant of dangerous goods vehicle licence).
- (2) The licence has effect for these regulations as if it were a licence granted by the Chief Officer under the relevant provision.
- (3) Without limiting subregulation (2), the Chief Officer may record the licence in the relevant register of licences kept under regulation 245.
- (4) A licence that has effect under subregulation (2) expires when it would have expired under the repealed regulations.

282. Continuing effect of certain corresponding licences

- (1) This regulation applies to a licence (however described) that —
 - (a) was granted under a law regulating the transport of dangerous goods by road made by another State or a Territory that has passed or has indicated that it intends to pass a corresponding law; and
 - (b) was in force in the other State or the Territory immediately before the commencement day; and
 - (c) is a licence that may be granted under a provision of the corresponding law of the other jurisdiction (the ***corresponding provision***) that corresponds to a provision mentioned in regulation 281(1)(c).
- (2) Except for circumstances that do not exist in this State, the licence has effect for these regulations as if it were a licence granted by a corresponding authority under the corresponding provision.

[Section 18A inserted by No. 51 of 2004 s. 16.]

Division 2 — Other provisions~~General workplace duties~~

[Heading inserted in Gazette 3 Aug 2012 p. 3759 by No. 51 of 2004 s. 4.]

283. Assessing fitness to drive

- (1) If a certificate that complies with regulation 221(c) as in force immediately before the date on which the *Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations 2012* regulation 7 commences¹ is issued within one year after that date, it is taken to be a certificate that complies with regulation 221(c) as in force after that date.
- (2) If a certificate that complies with regulation 227(1)(c) as in force immediately before the date on which the *Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations 2012* regulation 9 commences¹ is issued within one year after that date, it is taken to be a certificate that complies with regulation 227(1)(c) as in force after that date.

[Regulation 283 inserted in Gazette 3 Aug 2012 p. 3759-60.]

Division 3 — Provision for *Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations 2014*

[Heading inserted in Gazette 13 Jun 2014 p. 1949.]

284. Transitional provision for offence involving compliance with ADG Code

A person does not commit an offence against the Act or these regulations in relation to the transport of dangerous goods by road or rail if —

- (a) the offence relates to non-compliance with the ADG Code; and
- (b) the transport takes place before 1 July 2015; and

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- (c) the person transports the goods in accordance with the ADG Code as it was defined in regulation 4 immediately before the *Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations 2014* regulation 4 came into operation¹.

[Regulation 284 inserted in Gazette 13 Jun 2014 p. 1949.]

Division 4 — Provision for *Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations (No. 2) 2015*

[Heading inserted in Gazette 17 Nov 2015 p. 4701.]

285. Transitional provision for offence involving compliance with ADG Code

A person does not commit an offence against these regulations in relation to the transport of dangerous goods by road or rail if —

- (a) the offence relates to non-compliance with the ADG Code; and
- (b) the transport takes place during the period that begins on 1 January 2016 and ends on 31 December 2016; and
- (c) the person transports the goods in accordance with the ADG Code as it was defined in regulation 4 immediately before the *Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations (No. 2) 2015* regulation 4 came into operation.

[Regulation 285 inserted in Gazette 17 Nov 2015 p. 4701.]

Division 5 — Provisions for *Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations 2017*

[Heading inserted in Gazette 11 Jul 2017 p. 3832.]

286. Term used: commencement day

In this Division —

commencement day means the day on which the *Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations 2017* regulation 3 comes into operation.

[Regulation 286 inserted in Gazette 11 Jul 2017 p. 3832.]

287. Assessing fitness to drive

(1) In this regulation —

previous regulation 221(c) means regulation 221(c) as in force immediately before commencement day.

(2) A certificate that complies with previous regulation 221(c) and issued within 1 year after commencement day is taken to be a certificate that complies with regulation 221(c).

[Regulation 287 inserted in Gazette 11 Jul 2017 p. 3832.]

288. Transitional provision for offence involving compliance with ADG Code

A person does not commit an offence against these regulations in relation to the transport of dangerous goods by road or rail if —

(a) the offence relates to non-compliance with the ADG Code; and

(b) the transport takes place during the period that begins on commencement day and ends on 1 March 2018; and

(c) the person transports the goods in accordance with the ADG Code as it was defined in regulation 4 immediately before commencement day.

[Regulation 28819. Duties of employers

- ~~— (1) An employer shall, so far as is practicable, provide and maintain a working environment in which the employees of the employer (the **employees**) are not exposed to hazards and in particular, but without limiting the generality of the foregoing, an employer shall —~~
- ~~— (a) provide and maintain workplaces, plant, and systems of work such that, so far as is practicable, the employees are not exposed to hazards;~~
- ~~— (b) provide such information, instruction, and training to, and supervision of, the employees as is necessary to enable them to perform their work in such a manner that they are not exposed to hazards;~~
- ~~— (c) consult and cooperate with safety and health representatives, if any, and other employees at the workplace, regarding occupational safety and health at the workplace;~~
- ~~— (d) where it is not practicable to avoid the presence of hazards at the workplace, provide the employees with, or otherwise provide for the employees to have, such adequate personal protective clothing and equipment as is practicable to protect them against those hazards, without any cost to the employees; and~~
- ~~— (e) make arrangements for ensuring, so far as is practicable, that —~~
- ~~— (i) the use, cleaning, maintenance, transportation and disposal of plant; and~~
- ~~— (ii) the use, handling, processing, storage, transportation and disposal of substances,~~
- ~~— at the workplace is carried out in a manner such that the employees are not exposed to hazards.~~
- ~~— (2) In determining the training required to be provided in accordance with subsection (1)(b) regard shall be had to the~~

functions performed by employees and the capacities in which they are employed.

~~[Section 19 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 13 and 47; No. 51 of 2004 s. 5, 17 and 78.]~~

19A. Breaches of section 19(1)

~~(1) If an employer contravenes section 19(1) in circumstances of gross negligence, the employer commits an offence and is liable to a level 4 penalty.~~

~~(2) If~~

~~(a) an employer~~

~~(i) contravenes section 19(1); and~~

~~(ii) by the contravention causes the death of, or serious harm to, an employee;~~

~~and~~

~~(b) subsection (1) does not apply,~~

~~the employer commits an offence and is liable to a level 3 penalty.~~

~~(3) If~~

~~(a) an employer contravenes section 19(1); and~~

~~(b) neither subsection (1) nor subsection (2) applies,~~

~~the employer commits an offence and is liable to a level 2 penalty.~~

~~(4) An employer charged with an offence under~~

~~(a) subsection (1) may, instead of being convicted of that offence, be convicted of an offence under subsection (2) or (3); or~~

~~(b) subsection (2) may, instead of being convicted of that offence, be convicted of an offence under subsection (3).~~

~~[Section 19A inserted by No. 51 of 2004 s. 18.]~~

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20. — Duties of employees

~~— (1) An employee shall take reasonable care —~~

~~— (a) to ensure his or her own safety and health at work; and~~

~~— (b) to avoid adversely affecting the safety or health of any
other person through any act or omission at work.~~

~~— (2) Without limiting the generality of subsection (1), an employee
contravenes that subsection if the employee —~~

~~— (a) fails to comply, so far as the employee is reasonably
able, with instructions given by the employee's
employer for the safety or health of the employee or for
the safety or health of other persons;~~

~~— (b) fails to use such protective clothing and equipment as is
provided, or provided for, by his or her employer as
mentioned in section 19(1)(d) in a manner in which he
or she has been properly instructed to use it;~~

~~— (c) misuses or damages any equipment provided in the
interests of safety or health; or~~

~~— (d) fails to report forthwith to the employee's employer —~~

~~— (i) any situation at the workplace that the employee
has reason to believe could constitute a hazard to
any person that the employee cannot correct; or~~

~~— (ii) any injury or harm to health of which he or she is
aware that arises in the course of, or in
connection with, his or her work.~~

~~— (3) An employee shall cooperate with the employee's employer in
the carrying out by the employer of the obligations imposed on
the employer under this Act.~~

~~— [Section 20 inserted by No. 43 of 1987 s. 13; amended by
No. 30 of 1995 s. 14 and 47; No. 51 of 2004 s. 19, 79, 102(1)
and (2).]~~

20A. Breaches of section 20(1) or (3)

- ~~(1) If an employee contravenes section 20(1) or (3) in circumstances of gross negligence, the employee commits an offence and is liable—~~
- ~~(a) for a first offence, to a fine of \$25 000; and~~
- ~~(b) for a subsequent offence, to a fine of \$31 250.~~
- ~~(2) If—~~
- ~~(a) an employee—~~
- ~~(i) contravenes section 20(1) or (3); and~~
- ~~(ii) by the contravention causes the death of, or serious harm to, a person;~~
- ~~and~~
- ~~(b) subsection (1) does not apply,~~
- ~~the employee commits an offence and is liable—~~
- ~~(c) for a first offence, to a fine of \$20 000; and~~
- ~~(d) for a subsequent offence, to a fine of \$25 000.~~
- ~~(3) If—~~
- ~~(a) an employee contravenes section 20(1) or (3); and~~
- ~~(b) neither subsection (1) nor subsection (2) applies,~~
- ~~the employee commits an offence and is liable—~~
- ~~(c) for a first offence, to a fine of \$10 000; and~~
- ~~(d) for a subsequent offence, to a fine of \$12 500.~~
- ~~(4) An employee charged with an offence under—~~
- ~~(a) subsection (1) may, instead of being convicted of that offence, be convicted of an offence under subsection (2) or (3); or~~
- ~~(b) subsection (2) may, instead of being convicted of that offence, be convicted of an offence under subsection (3).~~
- ~~[Section 20A inserted by No. 51 of 2004 s. 20.]~~

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21. — Duties of employers and self-employed persons

- ~~— (1) A self-employed person shall take reasonable care to ensure his or her own safety and health at work.~~
- ~~— (2) An employer or self-employed person shall, so far as is practicable, ensure that the safety or health of a person, not being (in the case of an employer) an employee of the employer, is not adversely affected wholly or in part as a result of —~~
- ~~— (a) work that has been or is being undertaken by —~~
- ~~— (i) the employer or any employee of the employer;~~
~~or~~
- ~~— (ii) the self-employed person;~~
- ~~— or~~
- ~~— (b) any hazard that arises from or is increased by —~~
- ~~— (i) the work referred to in paragraph (a); or~~
- ~~— (ii) the system of work that has been or is being operated by the employer or the self-employed person.~~

~~— [Section 21 inserted by No. 43 of 1987 s. 13; amended by
No. 30 of 1995 s. 15 and 47; No. 51 of 2004 s. 6 and 21.]~~

21A. — Breaches of section 21

- ~~— (1) If an employer or a self-employed person contravenes section 21(1) or (2) in circumstances of gross negligence, the employer or a self-employed person commits an offence and is liable to a level 4 penalty.~~
- ~~— (2) If —~~
- ~~— (a) an employer or self-employed person —~~
- ~~— (i) contravenes section 21(1) or (2); and~~
- ~~— (ii) by the contravention causes the death of, or serious harm to, a person;~~
- ~~— and~~

- ~~———— (b) — subsection (1) does not apply,~~
~~———— the employer or self-employed person commits an offence and~~
~~is liable to a level 3 penalty.~~
- ~~———— (3) — If —~~
- ~~———— (a) — an employer or self-employed person contravenes~~
~~section 21(1) or (2); and~~
- ~~———— (b) — neither subsection (1) nor subsection (2) applies,~~
~~———— the employer or self-employed person commits an offence and~~
~~is liable to a level 2 penalty.~~
- ~~———— (4) — An employer or self-employed person charged with an offence~~
~~under —~~
- ~~———— (a) — subsection (1) may, instead of being convicted of that~~
~~offence, be convicted of an offence under subsection (2)~~
~~or (3); or~~
- ~~———— (b) — subsection (2) may, instead of being convicted of that~~
~~offence, be convicted of an offence under subsection (3).~~
- ~~———— [Section 21A inserted by No. 51 of 2004 s. 22.]~~

21B. ~~Duty placed on body corporate to which section 23D, 23E~~
~~or 23F applies~~

- ~~———— (1) — If section 23D, 23E or 23F makes any other provision of this~~
~~Act apply to a body corporate as if it were the employer of a~~
~~particular person, this section and section 21C apply to the body~~
~~corporate at such times as the other provision is made to apply.~~
- ~~———— (2) — A body corporate to which this section applies shall, so far as is~~
~~practicable, ensure that the safety or health of a person is not~~
~~adversely affected wholly or in part as a result of —~~
- ~~———— (a) — work that has been or is being undertaken by —~~
- ~~———— (i) — the body corporate; or~~
- ~~———— (ii) — a person carrying out work under the direction of~~
~~the body corporate;~~

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~~_____ or~~
~~_____ (b) any hazard that arises from or is increased by _____~~
~~_____ (i) the work referred to in paragraph (a); or~~
~~_____ (ii) the system of work that has been or is being~~
~~operated by the body corporate.~~
~~_____ [Section 21B inserted by No. 51 of 2004 s. 7.]~~

21C. Breaches of section 21B

~~_____ (1) If a body corporate contravenes section 21B(2) in circumstances~~
~~of gross negligence, the body corporate commits an offence and~~
~~is liable to a level 4 penalty.~~

~~_____ (2) If _____~~
~~_____ (a) a body corporate _____~~
~~_____ (i) contravenes section 21B(2); and~~
~~_____ (ii) by the contravention causes the death of, or~~
~~serious harm to, a person;~~

~~_____ and~~
~~_____ (b) subsection (1) does not apply,~~
~~_____ the body corporate commits an offence and is liable to a level 3~~
~~penalty.~~

~~_____ (3) If _____~~
~~_____ (a) a body corporate contravenes section 21B(2); and~~
~~_____ (b) neither subsection (1) nor subsection (2) applies,~~
~~_____ the body corporate commits an offence and is liable to a level 2~~
~~penalty.~~

~~_____ (4) A body corporate charged with an offence under _____~~
~~_____ (a) subsection (1) may, instead of being convicted of that~~
~~offence, be convicted of an offence under subsection (2)~~
~~or (3); or~~

~~———— (b) subsection (2) may, instead of being convicted of that offence, be convicted of an offence under subsection (3).~~

~~———— [Section 21C inserted by No. 51 of 2004 s. 7.]~~

22. Duties of persons who have control of workplaces

~~———— (1) A person that has, to any extent, control of ———~~

~~———— (a) a workplace where persons who are not employees of that person work or are likely to be in the course of their work; or~~

~~———— (b) the means of access to and egress from a workplace;~~

~~———— shall take such measures as are practicable to ensure that the workplace, or the means of access to or egress from the workplace, as the case may be, are such that persons who are at the workplace or use the means of access to and egress from the workplace are not exposed to hazards.~~

~~———— (2) Where a person has, by virtue of a contract or lease, an obligation of any extent in relation to the maintenance or repair of a workplace or the means of access to and egress from the workplace, the person shall be treated for the purposes of subsection (1) as being a person that has control of that workplace or that means of access or egress.~~

~~———— (3) A reference in this section to a person having control of any workplace or means of access to or egress from a workplace is a reference to a person having control of that workplace or that means of access or egress in connection with the carrying on by that person of a trade, business or undertaking (whether for profit or not).~~

~~———— [(4)-(6) deleted]~~

~~———— (7) This section does not apply to a person whose duties are set out in section 20.~~

~~———— [Section 22 inserted by No. 30 of 1995 s. 16; amended by No. 51 of 2004 s. 23, 80 and 103.]~~

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22A. Breaches of section 22(1)

- ~~(1) If a person contravenes section 22(1) in circumstances of gross negligence, the person commits an offence and is liable to a level 4 penalty.~~
- ~~(2) If~~
- ~~(a) a person~~
- ~~(i) contravenes section 22(1); and~~
- ~~(ii) by the contravention causes the death of, or serious harm to, a person~~
- ~~(I) who is at; or~~
- ~~(II) who is using the means of access to or egress from,~~
- ~~the workplace;~~
- ~~and~~
- ~~(b) subsection (1) does not apply,~~
- ~~the person commits an offence and is liable to a level 3 penalty.~~
- ~~(3) If~~
- ~~(a) a person contravenes section 22(1); and~~
- ~~(b) neither subsection (1) nor subsection (2) applies,~~
- ~~the person commits an offence and is liable to a level 2 penalty.~~
- ~~(4) A person charged with an offence under~~
- ~~(a) subsection (1) may, instead of being convicted of that offence, be convicted of an offence under subsection (2) or (3); or~~
- ~~(b) subsection (2) may, instead of being convicted of that offence, be convicted of an offence under subsection (3).~~
- ~~[Section 22A inserted by No. 51 of 2004 s. 24.]~~

23. — Duties of manufacturers etc.

- ~~— (1) A person that designs, manufactures, imports or supplies any plant for use at a workplace shall, so far as is practicable —~~
- ~~— (a) ensure that the design and construction of the plant is such that persons who properly install, maintain or use the plant are not in doing so, exposed to hazards;~~
- ~~— (b) test and examine, or arrange for the testing and examination of, the plant so as to ensure that its design and construction are as mentioned in paragraph (a); and~~
- ~~— (c) ensure that adequate information in respect of —~~
- ~~— (i) any dangers associated with the plant;~~
- ~~— (ii) the specifications of the plant and the data obtained on the testing of the plant as mentioned in paragraph (b);~~
- ~~— (iii) the conditions necessary to ensure that persons properly using the plant are not, in so doing, exposed to hazards; and~~
- ~~— (iv) the proper maintenance of the plant,~~
- ~~— is provided when the plant is supplied and thereafter whenever requested.~~
- ~~— (2) A person that erects or installs any plant for use at a workplace shall, so far as is practicable, ensure that it is so erected or installed that persons who properly use the plant are not subjected to any hazard that arises from, or is increased by, the way in which the plant is erected or installed.~~
- ~~— (3) A person that manufactures, imports or supplies any substance for use at a workplace shall, so far as is practicable, ensure that adequate toxicological data in respect of the substance and such other data as is relevant to the safe use, handling, processing, storage, transportation and disposal of the substance is provided —~~
- ~~— (a) when the substance is supplied; and~~

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~~———— (b) — thereafter whenever requested.~~

~~— (3a) — A person that designs or constructs any building or structure,
including a temporary structure, for use at a workplace shall, so
far as is practicable ensure that the design and construction of
the building or structure is such that —~~

~~———— (a) — persons who properly construct, maintain, repair or
service the building or structure; and~~

~~———— (b) — persons who properly use the building or structure,~~

~~———— are not, in doing so, exposed to hazards.~~

~~———— [Section 23 inserted by No. 43 of 1987 s. 13; amended by
No. 30 of 1995 s. 17; No. 51 of 2004 s. 25, 81 and 103.]~~

~~23AA. Breaches of section 23~~

~~— (1) — If a person contravenes section 23(1), (2), (3) or (3a) in
circumstances of gross negligence, the person commits an
offence and is liable to a level 4 penalty.~~

~~— (2) — If —~~

~~———— (a) — a person —~~

~~———— (i) — contravenes section 23(1), (2), (3) or (3a); and~~

~~———— (ii) — by the contravention causes the death of, or
serious harm to, a person to whom a duty is owed
under that subsection;~~

~~———— and~~

~~———— (b) — subsection (1) does not apply;~~

~~———— the person commits an offence and is liable to a level 3 penalty.~~

~~— (3) — If —~~

~~———— (a) — a person contravenes section 23(1), (2), (3) or (3a); and~~

~~———— (b) — neither subsection (1) nor subsection (2) applies;~~

~~———— the person commits an offence and is liable to a level 2 penalty.~~

- ~~— (4) — A person charged with an offence under —~~
~~— (a) — subsection (1) may, instead of being convicted of that offence, be convicted of an offence under subsection (2) or (3); or~~
~~— (b) — subsection (2) may, instead of being convicted of that offence, be convicted of an offence under subsection (3).~~
~~— [Section 23AA inserted in Gazette 11 Jul 2017 p. 3832 by No. 51 of 2004 s. 26.]~~

23A. — Prohibited activities in prescribed areas

- ~~— (1) — A person shall not —~~
~~— (a) — engage in any activity, other than a prescribed activity; or~~
~~— (b) — engage in a prescribed activity, other than in a prescribed manner;~~
~~— at a workplace in an area of the State prescribed for the purposes of this section.~~

~~[(2) (4) deleted]~~

~~— [Section 23A inserted by No. 30 of 1995 s. 18; amended by No. 51 of 2004 s. 27.]~~

23B. — Breaches of section 23A

- ~~— (1) — If a person contravenes section 23A in circumstances of gross negligence, the person commits an offence and is liable to a level 4 penalty.~~
~~— (2) — If —~~
~~— (a) — a person —~~
~~— (i) — contravenes section 23A; and~~
~~— (ii) — by the contravention causes the death of, or serious harm to, a person;~~
~~— and~~

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~~———— (b) — subsection (1) does not apply,~~

~~———— the person commits an offence and is liable to a level 3 penalty.~~

~~———— (3) — If —~~

~~———— (a) — a person contravenes section 23A; and~~

~~———— (b) — neither subsection (1) nor subsection (2) applies,~~

~~———— the person commits an offence and is liable to a level 2 penalty.~~

~~———— (4) — A person charged with an offence under —~~

~~———— (a) — subsection (1) may, instead of being convicted of that
offence, be convicted of an offence under subsection (2)
or (3); or~~

~~———— (b) — subsection (2) may, instead of being convicted of that
offence, be convicted of an offence under subsection (3).~~

~~———— [Section 23B inserted by No. 51 of 2004 s. 28.]~~

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employment~~**

~~———— [Heading inserted by No. 51 of 2004 s. 8.]~~

~~23C. — Terms used~~

~~———— In this Division —~~

~~———— ***business*** includes the operations of a public authority;~~

~~———— ***public authority*** means —~~

~~———— (a) — a Minister of the Crown acting in the Minister's official
capacity;~~

~~———— (b) — a State Government department, State trading concern,
State instrumentality or State agency; or~~

~~———— (c) — any other body or person, whether corporate or not and
including a local government, that under a written law
administers or carries on a social service or public utility
for the benefit of the State or a part of the State.~~

~~———— [Section 23C inserted by No. 51 of 2004 s. 8.]~~

23D. — ~~Contract work arrangements~~

~~(1) This section applies where a person (the *principal*) in the course of trade or business engages a contractor (the *contractor*) to carry out work for the principal.~~

~~(2) Where this section applies, sections 19 and 19A have effect —~~

~~(a) as if the principal were the employer of —~~

~~(i) the contractor; and~~

~~(ii) any person employed or engaged by the contractor to carry out or assist in carrying out the work concerned,~~

~~in relation to matters over which the principal has the capacity to exercise control; and~~

~~(b) as if —~~

~~(i) the contractor; and~~

~~(ii) any person referred to in paragraph (a)(ii),~~

~~were employees of the principal in relation to matters over which the principal has the capacity to exercise control.~~

~~(3) Where this section applies, the further duties referred to in subsection (4) apply and sections 20A, 23H and 23J have effect —~~

~~(a) as if the principal were the employer of —~~

~~(i) the contractor; and~~

~~(ii) any person employed or engaged by the contractor to carry out or assist in carrying out the work concerned;~~

~~and~~

~~(b) as if —~~

~~(i) the contractor; and~~

~~(ii) any person referred to in paragraph (a)(ii),~~

~~were employees of the principal.~~

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- ~~— (4) The further duties mentioned in subsection (3) are —~~
- ~~— (a) the duties of an employee under section 20; and~~
- ~~— (b) the duties of an employer under sections 23G(2) and 23I(3).~~
- ~~— (5) An agreement or arrangement is void for the purposes of this section if it purports to give control to —~~
- ~~— (a) a contractor; or~~
- ~~— (b) a person referred to in subsection (2)(a)(ii),~~
- ~~— of any matter that —~~
- ~~— (c) comes within section 19 or 23G(2); and~~
- ~~— (d) is a matter over which the principal has the capacity to exercise control,~~
- ~~— but this subsection does not prevent the making of a written agreement as mentioned in section 23G(3).~~
- ~~— (6) A purported waiver by a contractor of a right that arises directly or indirectly under this section is void.~~
- ~~— (7) Nothing in this section derogates from —~~
- ~~— (a) the duties of the principal to the contractor; or~~
- ~~— (b) the duties of the contractor to any person employed or engaged by the contractor.~~
- ~~— [Section 23D inserted by No. 51 of 2004 s. 8; amended by No. 36 of 2009 s. 5.]~~

23E. — Labour arrangements in general

- ~~— (1) This section applies where —~~
- ~~— (a) a person (the *worker*) for remuneration carries out work for another person (the *person mentioned in subsection (1)(a)*) in the course of trade or business;~~
- ~~— (b) that person has the power of direction and control in respect of the work in a similar manner to the power of an employer under a contract of employment;~~

-
- ~~———— (c) — there is no contract of employment between the worker and that person; and~~
- ~~———— (d) — neither section 23D nor section 23F applies.~~
- ~~— (2) — Where this section applies, sections 19 and 19A have effect as if —~~
- ~~———— (a) — the person mentioned in subsection (1)(a) were the employer of the worker; and~~
- ~~———— (b) — the worker were the employee of that person,~~
- ~~———— in relation to any matter that —~~
- ~~———— (c) — comes within section 19; and~~
- ~~———— (d) — is a matter over which that person has the capacity to exercise control.~~
- ~~— (3) — Where this section applies, the further duties referred to in subsection (4) apply, and sections 20A and 23J have effect, as if —~~
- ~~———— (a) — the person mentioned in subsection (1)(a) were the employer of the worker; and~~
- ~~———— (b) — the worker were the employee of that person.~~
- ~~— (4) — The further duties mentioned in subsection (3) are —~~
- ~~———— (a) — the duties of an employee under section 20; and~~
- ~~———— (b) — the duties of an employer under section 23I(3).~~
- ~~— (5) — An agreement or arrangement is void for the purposes of this section to the extent that it purports to give control to the worker of any matter that —~~
- ~~———— (a) — comes within section 19; and~~
- ~~———— (b) — is a matter over which the person mentioned in subsection (1)(a) has the capacity to exercise control.~~
- ~~— (6) — This section applies despite anything to the contrary in, or any inconsistent provision of, an agreement, whether made orally or in writing.~~
-

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~~— (7) A purported waiver by a worker of a right that arises directly or indirectly under this section is void.~~

~~— [Section 23E inserted by No. 51 of 2004 s. 8; amended by No. 36 of 2009 s. 6.]~~

23F. Labour hire arrangements

~~— (1) In this section —~~

~~— **agent** —~~

~~— (a) means a person that carries on a business of providing workers to carry out work for clients of the person; and~~

~~— (b) includes a group training organisation as defined in section 7(1) of the *Industrial Relations Act 1979*;~~

~~— **worker** includes an employee or a contractor.~~

~~— (2) This section applies where, under a labour hire arrangement, work is carried out for remuneration by a worker for a client of an agent (the **client**) in the course of the client's trade or business.~~

~~— (3) A labour hire arrangement exists where —~~

~~— (a) an agent has for remuneration agreed with the client to provide a worker to carry out work for the client;~~

~~— (b) there is no contract of employment between the worker and the client in relation to the work;~~

~~— (c) there is an agreement (which may be a contract of employment) between the worker and the agent as to the carrying out of work including in respect of remuneration and other entitlements; and~~

~~— (d) that agreement applies to the carrying out of the work by the worker for the client.~~

~~— (4) Where this section applies, sections 19 and 19A have effect as if —~~

~~— (a) each of the agent and the client were the employer of the worker; and~~

- ~~———— (b) the worker were an employee of each of the agent and the client,~~
- ~~———— in relation to any matter that —~~
- ~~———— (c) comes within section 19; and~~
- ~~———— (d) as regards —~~
- ~~———— (i) the agent, is a matter over which the agent has the capacity to exercise control; or~~
- ~~———— (ii) the client, is a matter over which the client has the capacity to exercise control.~~
- ~~———— (5) Where this section applies, the further duties referred to in subsection (6) apply, and sections 20A and 23J have effect, as if —~~
- ~~———— (a) each of the agent and the client were the employer of the worker; and~~
- ~~———— (b) the worker were an employee of each of the agent and the client.~~
- ~~———— (6) The further duties mentioned in subsection (5) are —~~
- ~~———— (a) the duties of an employee under section 20; and~~
- ~~———— (b) the duties of an employer under section 23I(3).~~
- ~~———— (7) This section applies despite anything to the contrary in, or any inconsistent provision of, an agreement, whether made orally or in writing.~~
- ~~———— (8) A purported waiver by a worker of a right that arises directly or indirectly under this section is void.~~
- ~~———— [Section 23F inserted by No. 51 of 2004 s. 8; amended by No. 36 of 2009 s. 7.]~~

**~~Division 4 — Duty relating to certain
employment accommodation~~**

~~———— [Heading inserted by No. 51 of 2004 s. 8.]~~

23G. — Duty of employer to maintain safe premises

~~— (1) In this section —~~

~~— *residential premises* —~~

~~— (a) means residential premises that are situated outside —~~

~~— (i) a townsite within the meaning in section 26(1) of
the *Land Administration Act 1997*; and~~

~~— (ii) the metropolitan region as defined in the
Planning and Development Act 2005;~~

~~— and~~

~~— (b) includes land and outbuildings that are intended to be
used in connection with the occupation of the premises.~~

~~— (2) Where —~~

~~— (a) an employee occupies residential premises that are
owned by or under the control of the employee's
employer; and~~

~~— (b) the occupancy is necessary for the purposes of the
employment because other accommodation is not
reasonably available in the area concerned;~~

~~— the employer must, so far as is practicable, maintain the
premises so that the employee occupying the premises is not
exposed to hazards at the premises.~~

~~— (3) Subsection (2) does not apply if the occupancy is pursuant to a
written agreement containing terms that might reasonably be
expected to apply to a letting of the residential premises to a
tenant.~~

~~— (4) This section does not apply to the occupation of residential
premises by an employee who is employed at a workplace
referred to in section 4(2).~~

~~— *[Section 23G inserted by No. 51 of 2004 s. 8; amended by
No. 38 of 2005 s. 15.]*~~

23H. Breaches of section 23G

- ~~(1) If an employer contravenes section 23G(2) in circumstances of gross negligence, the employer commits an offence and is liable to a level 4 penalty.~~
- ~~(2) If~~
 - ~~(a) an employer~~
 - ~~(i) contravenes section 23G(2); and~~
 - ~~(ii) by the contravention causes the death of, or serious harm to, an employee occupying premises as mentioned in that section;~~
 - ~~and~~
 - ~~(b) subsection (1) does not apply;~~~~the employer commits an offence and is liable to a level 3 penalty.~~
- ~~(3) If~~
 - ~~(a) an employer contravenes section 23G(2); and~~
 - ~~(b) neither subsection (1) nor subsection (2) applies;~~~~the employer commits an offence and is liable to a level 2 penalty.~~
- ~~(4) In proceedings against a person for an offence under subsection (1) or (2) it is a defence if the person proves that the death or serious harm, as the case may be, would not have occurred if the employee had taken reasonable care to ensure the employee's own safety and health at the premises concerned.~~
- ~~(5) An employer charged with an offence under~~
 - ~~(a) subsection (1) may, instead of being convicted of that offence, be convicted of an offence under subsection (2) or (3); or~~
 - ~~(b) subsection (2) may, instead of being convicted of that offence, be convicted of an offence under subsection (3).~~

~~[Section 23H inserted by No. 51 of 2004 s. 8.]~~

Division 5—Other duties

~~[Heading inserted by No. 51 of 2004 s. 8.]~~

23I. Notification of deaths, injuries and diseases

~~(1) In this section—~~

~~**business of an employer** means—~~

~~(a) the conduct of the undertaking or operations of an employer; and~~

~~(b) work undertaken by an employer or any employee of an employer;~~

~~**business of a self-employed person** means—~~

~~(a) the conduct of the undertaking or operations of a self-employed person; and~~

~~(b) work undertaken by that person.~~

~~(2) This section applies where—~~

~~(a) at a workplace, or at residential premises to which section 23G(2) applies, an employee incurs an injury, or is affected by a disease, that—~~

~~(i) results in the death of the employee; or~~

~~(ii) is of a kind that is prescribed;~~

~~or~~

~~(b) at a workplace, a person who is not an employee incurs an injury in prescribed circumstances that—~~

~~(i) results in the death of the person; or~~

~~(ii) is of a kind that is prescribed;~~

~~in connection with—~~

~~(iii) the business of an employer; or~~

~~(iv) the business of a self-employed person.~~

~~(3) The relevant person must—~~

-
- ~~———— (a) — forthwith; or~~
~~———— (b) — as otherwise provided by the regulations;~~
~~———— notify the Commissioner in the prescribed form of the injury or
disease giving such particulars as may be prescribed.~~
~~———— (4) — The relevant person is the employer concerned where —~~
~~———— (a) — subsection (2)(a) applies; or~~
~~———— (b) — the person incurs the injury in connection with the
business of an employer.~~
~~———— (5) — The relevant person is the self-employed person concerned
where the person incurs the injury in connection with the
business of a self-employed person.~~
~~———— *[Section 23I inserted by No. 51 of 2004 s. 8.]*~~

23J. — Breaches of section 23I

- ~~———— (1) — If an employer or self-employed person contravenes
section 23I(3), the employer or self-employed person commits
an offence.~~
~~———— (2) — In proceedings for an offence under subsection (1) against a
person who is taken by section 23D(2) to be an employer it is a
defence if the person proves that subsection (4) applies.~~
~~———— (3) — In proceedings against a person for an offence under
subsection (1) that relates to an injury mentioned in
section 23I(2)(b) it is a defence if the person proves that
subsection (4) applies.~~
~~———— (4) — This subsection applies if the person did not know, and could
not reasonably be expected to have known, of the injury or
disease concerned.~~
~~———— *[Section 23J inserted by No. 51 of 2004 s. 8.]*~~

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~~23K. Duty to inform employee who reports a hazard or injury~~

- ~~(1) This section applies where an employer receives from an employee a report of a kind described in section 20(2)(d).~~
- ~~(2) The employer must, within a reasonable time after receiving the report —
 - ~~(a) investigate the matter that has been reported and determine the action, if any, that the employer intends to take in respect of the matter; and~~
 - ~~(b) notify the employee of the determination so made.~~~~
- ~~(3) If an employer contravenes subsection (2), the employer commits an offence.~~
- ~~[Section 23K inserted by No. 51 of 2004 s. 8.]~~

~~23L. Notification of hazard to person having control of workplace~~

- ~~(1) In this section —
 - ~~**workplace** includes the means of access to and egress from the workplace.~~~~
- ~~(2) If —
 - ~~(a) the employer of any employee; or~~
 - ~~(b) a self-employed person carrying out work,~~at a workplace becomes of the opinion that —
 - ~~(c) a situation exists at the workplace that could constitute a hazard to any person;~~
 - ~~(d) the hazard is one that a person having control of the relevant part of the workplace (the **responsible person**) has a duty to remedy under section 22; and~~
 - ~~(e) the situation has not come to the attention of that person,~~the employer or self-employed person must, so far as it is reasonably practicable to do so, give notice of the situation to the responsible person.~~

- ~~— (3) A notice under subsection (2) must be given as soon as is reasonably practicable after the employer or self-employed person becomes of the opinion mentioned in that subsection.~~
- ~~— (4) An employer or self-employed person that fails to comply with subsection (2) commits an offence.~~
- ~~— [Section 23L inserted by No. 51 of 2004 s. 8.]~~

Division 6 — Resolution of workplace issues, and refusal to work on grounds of risk

~~— [Heading inserted by No. 51 of 2004 s. 8.]~~

24. — Resolution of issues at the workplace

- ~~— (1) Where an issue relating to occupational safety or health arises at a workplace the employer shall, in accordance with the relevant procedure, attempt to resolve the issue with —~~
 - ~~— (a) the safety and health representative;~~
 - ~~— (b) the safety and health committee; or~~
 - ~~— (c) the employees;~~~~— whichever is specified in the relevant procedure.~~
- ~~— (2) For the purposes of subsection (1), **the relevant procedure** means the procedure agreed between the employer and the employees as applying in respect of the workplace concerned or, where no procedure is so agreed, the procedure prescribed for that purpose in the regulations.~~
- ~~— (3) Where attempts to resolve an issue as mentioned in subsection (1) do not succeed and there is both a safety and health representative and a safety and health committee in respect of the workplace concerned, the safety and health representative shall refer the issue to the safety and health committee for it to attempt to resolve the issue.~~
- ~~— (4) If a person contravenes subsection (1) or (3), the person commits an offence.~~

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~~[Section 24 inserted by No. 43 of 1987 s. 13; amended by
No. 30 of 1995 s. 47; No. 51 of 2004 s. 82.]~~

25. ~~Inspector may be notified where issues unresolved~~

~~(1) Where attempts to resolve an issue as mentioned in section 24 are unsuccessful, and where there is a risk of imminent and serious injury to, or imminent and serious harm to the health of any person, the employer, a safety and health representative or, if there is no safety and health representative, an employee may notify an inspector thereof.~~

~~(2) An inspector, upon being notified under subsection (1), shall attend forthwith at the workplace and either~~

~~(a) take such action under this Act as he or she considers appropriate; or~~

~~(b) determine that in the circumstances no action is required to be taken under this Act.~~

~~[Section 25 inserted by No. 43 of 1987 s. 13; amended by
No. 30 of 1995 s. 19; No. 51 of 2004 s. 102(1).]~~

26. ~~Refusal by employees to work in certain cases~~

~~(1) Nothing in section 25 prevents an employee from refusing to work where he or she has reasonable grounds to believe that to continue to work would expose him or her or any other person to a risk of imminent and serious injury or imminent and serious harm to his or her health.~~

~~(1a) In determining whether an employee has reasonable grounds for the belief referred to in subsection (1) it is relevant to consider whether an inspector has attended the workplace upon being notified under section 25(1) of the risk and whether~~

~~(a) the measures, if any, required by the inspector to be taken to remedy the matters giving rise to the risk have been taken;~~

~~(b) the requirements, if any, of the inspector to remedy the matters giving rise to the risk have ceased to have effect; or~~

-
- ~~— (c) — the inspector has determined that no action is required to be taken under this Act.~~
- ~~— (2) — An employee who refuses to work as mentioned in subsection (1) shall forthwith notify his or her employer and, if there is a safety and health representative for the workplace concerned, such safety and health representative, and the matter shall be regarded as an issue to which section 24(1) applies.~~
- ~~— (2a) — An employee who refuses to work as mentioned in subsection (1) shall not leave the workplace concerned until the employee has notified the employer under subsection (2) and that employer has authorised the employee to leave that workplace.~~
- ~~— (2b) — Subsection (2a) does not apply if the employee has reasonable grounds to believe that to remain at the workplace concerned would expose the employee to a risk of imminent and serious injury or imminent and serious harm to his or her health.~~
- ~~— (3) — An employee who contravenes subsection (2) or (2a) commits an offence.~~
- ~~— [Section 26 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 20 and 47; No. 51 of 2004 s. 102.]~~

27. — Assignment of other work

- ~~— An employee who refuses to work as mentioned in section 26(1) may be given reasonable alternative work to do until the employee resumes his or her usual work.~~
- ~~— [Section 27 inserted by No. 43 of 1987 s. 13; amended by No. 51 of 2004 s. 83 and 102(2).]~~

~~28. — Entitlements to continue~~

- ~~— (1) — An employee who refuses to work as mentioned in section 26(1) is entitled to the same pay and other benefits, if any, to which he or she would be entitled if the employee had continued to do his or her usual work.~~
- ~~— (1a) — Subsection (1) does not apply if —~~

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- ~~———— (a) the employee leaves the workplace without the authorisation of the employer as required under section 26(2a); or~~
- ~~———— (b) the employee refuses to do reasonable alternative work that the employee is given under section 27.~~
- ~~———— (2) A dispute arising as to ————~~
 - ~~———— (a) whether a person is entitled to any pay or benefit; or~~
 - ~~———— (b) the pay or benefit to which a person is entitled,~~
- ~~———— in accordance with subsection (1), may be referred by any party to the dispute to the Tribunal for determination.~~
- ~~———— [Section 28 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 21 and 47; No. 51 of 2004 s. 69(1), 84, 102(1) and (2).]~~

28A. — Offences — refusal to work

- ~~———— (1) In this section **disentitled employee** means an employee who refuses to work for any period ————~~
 - ~~———— (a) on the grounds that to do so would involve a risk of injury or harm to the health of any person; or~~
 - ~~———— (b) on the grounds that another employee refuses to work because to do so would involve a risk of injury or harm to the health of any person,~~
- ~~———— but does not include a person who has refused to work as mentioned in section 26(1) and who is entitled to pay and other benefits under section 28(1).~~
- ~~———— (2) An employee who accepts from his or her employer, in respect of any period during which that employee is a disentitled employee, any pay or other benefits to which the employee would have been entitled if he or she had continued to work commits an offence.~~
- ~~———— (3) An employer that pays or provides to an employee, in respect of any period during which the employee is a disentitled employee,~~

~~any pay or other benefits to which the employee would have been entitled if the employee had continued to work commits an offence.~~

~~— (4) In subsections (2) and (3) a reference to pay and other benefits does not include a reference to any payment or benefit prescribed for the purposes of this section.~~

~~— (5) This section has effect despite any provision of any other written law, including the *Industrial Relations Act 1979*, and any order, award or agreement made or registered under that Act.~~

~~— [Section 28A inserted by No. 30 of 1995 s. 22; amended by No. 51 of 2004 s. 103.]~~

**~~Part IV — Safety and health representatives and
committees~~**

~~*[Heading inserted by No. 43 of 1987 s. 13; amended by
No. 30 of 1995 s. 47.]*~~

~~Division 1 — Safety and health representatives~~

~~*[Heading inserted by No. 51 of 2004 s. 39.]*~~

~~29. — Notices requiring election of safety and health representatives~~

- ~~(1) An employee who works at a workplace may give notice to the employer requiring the election of a safety and health representative for the workplace.~~
- ~~(2) The fact that a notice under subsection (1) requires an election for the workplace at which the employee works does not prevent —~~
 - ~~(a) the establishment of a scheme under section 30A that extends beyond that workplace; or~~
 - ~~(b) the making of a determination under section 30(4a) for that purpose.~~

~~*[Section 29 inserted by No. 43 of 1987 s. 13; amended by
No. 30 of 1995 s. 47; No. 51 of 2004 s. 40.]*~~

~~30. — Consultation on matters relevant to elections~~

- ~~(1) An employer shall, within 21 days of being given notice under section 29 requiring the election of a safety and health representative, invite the employees who work at the workplace in respect of which the notice is given to appoint a delegate or delegates in accordance with subsection (3).~~
- ~~(2) An employer may, at any time the employer requires the election of a safety and health representative for a workplace of the employer, invite the employees who work at the workplace to appoint a delegate or delegates in accordance with subsection (3).~~

-
- ~~— (3) The employees who work at a workplace may, upon being invited under this section to do so, appoint a delegate or delegates from amongst their number to represent them.~~
- ~~— (3a) An employer shall consult with the delegate or delegates, as the case requires, appointed under this section as to the matters which are required to be determined under this section.~~
- ~~— (4) The matters requiring to be determined under this section in relation to an election are —~~
- ~~———— (a) the number of safety and health representatives to be elected;~~
- ~~———— (b) the matters, areas or kinds of work in respect of which each safety and health representative is to exercise functions, so far as those things are not to be dealt with by provision of a kind mentioned in section 30B(2) or (3);~~
- ~~———— (ba) how a vacancy in an office of safety and health representative that occurs in the circumstances mentioned in section 32(2)(b), (ba), (c) or (d) is to be dealt with; and~~
- ~~———— (c) the person by whom and the manner in which the election is to be conducted.~~
- ~~— (4a) The employer and the delegate or delegates consulting under subsection (3a) may determine that provision of a kind mentioned in section 30B(2) or (3) should be made.~~
- ~~— (5) For the purposes of subsection (4)(c), but without limiting the generality of that provision, the employer and the delegate or delegates consulting under subsection (3a) may determine that —~~
- ~~———— (a) the Electoral Commissioner appointed under the *Electoral Act 1907*; or~~
- ~~———— (b) an organisation registered under Part II Division 4 of the *Industrial Relations Act 1979*,~~
- ~~———— is to be requested to conduct an election.~~
-

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~~— (6) Any matter mentioned in subsection (4) that remains unresolved notwithstanding attempts to resolve it under subsection (3a) may be referred to the Commissioner who shall, if unable to resolve the matter to the satisfaction of each of the parties concerned, refer the matter to the Tribunal for determination.~~

~~— (7) If an employer contravenes subsection (1) or (3a), the employer commits an offence.~~

~~— [Section 30 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 23 and 47; No. 51 of 2004 s. 41, 69(1) and 85.]~~

30A. Election scheme may be established

~~— (1) In this section —~~

~~— *consulting parties* means the employer and the delegate or delegates consulting under section 30(3a) on matters relating to the election of a safety and health representative for a workplace, and includes any delegates or delegates appointed under section 30C.~~

~~— (2) If the consulting parties in respect of a workplace have made a determination referred to in section 30(4a), a written agreement may be made between the consulting parties establishing a scheme under this section.~~

~~— (3) If the consulting parties cannot reach agreement on any matter for the purposes of subsection (2) they may refer the matter to the Commissioner, who is to attempt to resolve it to the satisfaction of the consulting parties.~~

~~— (4) If the Commissioner is unable to resolve the matter, the Commissioner is to refer it to the Tribunal for determination.~~

~~— (5) If subsection (4) applies, references in this Division to a scheme under this section are references to a scheme consisting of the provisions of —~~

~~— (a) an agreement under subsection (2); and~~

~~(b) the determination of the Tribunal under subsection (4).~~

~~[Section 30A inserted by No. 51 of 2004 s. 42.]~~

30B. What may be included in a scheme

~~(1) In this section—~~

~~*contractor* and *principal* have the meanings given to those terms in section 23D(1).~~

~~(2) A scheme under section 30A (a *scheme*) may include provision for the election of one or more safety and health representatives for—~~

~~(a) one or more workplaces in addition to the workplace referred to in section 30A(2); or~~

~~(b) any group of employees of the employer concerned that constitutes a distinct unit of the employer's workforce;~~

~~or may make provision for both of those matters, as the case may require.~~

~~(3) A scheme may despite any provision of this Part—~~

~~(a) provide for—~~

~~(i) a contractor; and~~

~~(ii) any person employed by a contractor,~~

~~to be treated, for the purposes of this Part, as employees of the principal that engages the contractor; and~~

~~(b) provide for the principal that engages a contractor to be treated, for the purposes of this Part, as the employer of—~~

~~(i) the contractor; and~~

~~(ii) any person employed by the contractor.~~

~~(4) A scheme may make provision for—~~

~~(a) the scheme to apply to any subsequent election of a safety and health representative; and~~

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~~———— (b) the manner in which an amendment may be made to the
scheme after it has been determined.~~

~~———— [Section 30B inserted by No. 51 of 2004 s. 42.]~~

30C. Appointment of further delegates may be required

~~———— (1) In this section —~~

~~———— **additional employees** means employees who have not been
invited to appoint a delegate or delegates under section 30(1) or
(2) because that subsection has not become applicable to the
workplace at which they work.~~

~~———— (2) A scheme under section 30A cannot make provision of the kind
mentioned in section 30B(2) that will affect additional
employees unless subsection (3) of this section is complied
with.~~

~~———— (3) If it is proposed that such provision be made the employer must
invite any additional employees at a workplace to appoint a
delegate or delegates in accordance with subsection (4).~~

~~———— (4) Additional employees who work at a workplace may, upon
being invited under subsection (3) to do so, appoint a delegate
or delegates from amongst their number to represent them for
the purposes of making an agreement under section 30A(2).~~

~~———— [Section 30C inserted by No. 51 of 2004 s. 42.]~~

31. Election of safety and health representatives

~~———— (1) In this section —~~

~~———— **election** means an election required for the purpose of electing a
safety and health representative following —~~

~~———— (a) the giving of a notice under section 29 in relation to a
workplace; or~~

~~———— (b) a decision of an employer under section 30(2);~~

- ~~———— *relevant employee*, in relation to an election, means ———~~
- ~~———— (a) an employee who works at the workplace to which the election relates; or~~
- ~~———— (b) if a scheme has been established under section 30A for the election, an employee who ———~~
- ~~———— (i) works at a workplace; or~~
- ~~———— (ii) is a member of a group of employees,~~
- ~~———— to which the scheme applies.~~

~~[(2)-(5) deleted]~~

- ~~———— (6) Subject to this section, an election shall be conducted and safety and health representatives shall be elected in accordance with ———~~
- ~~———— (a) any determination under section 30; and~~
- ~~———— (b) if applicable, a scheme established under section 30A.~~
- ~~———— (6a) If there is any inconsistency between a determination under section 30 and a scheme established under section 30A, the latter prevails.~~
- ~~———— (7) An election shall be by secret ballot.~~
- ~~———— (8) Every relevant employee is entitled to vote at an election.~~
- ~~———— (8a) Only a relevant employee is eligible to be elected as a safety and health representative at an election.~~
- ~~———— (9) If, after the relevant steps provided for by or under this Division have been taken, only one eligible candidate is nominated for election to an office of safety and health representative ———~~
- ~~———— (a) a ballot need not to be held; and~~
- ~~———— (b) that candidate shall be deemed to have been duly elected.~~
- ~~———— (10) The person conducting an election shall notify the Commissioner and the employer concerned of the results of the election.~~

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~~— (11) Where a question relating to an election arises, the matter may be referred by any person interested in the question to the Commissioner who shall, if he or she is unable to resolve the matter to the satisfaction of the persons concerned, refer the matter to the Tribunal for determination.~~

~~— [Section 31 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 24 and 47; No. 51 of 2004 s. 43, 69(1) and 102(1).]~~

32. Terms of office

~~— (1) A person who is elected as a safety and health representative holds office, subject to this Act, for a term of 2 years.~~

~~— (2) A person ceases to hold office as a safety and health representative if —~~

~~— (a) the person's term of office expires and the person is not re-elected;~~

~~— (b) the person ceases to be an employee who works at a workplace for which the person was elected;~~

~~— (ba) if the person was elected for a group of employees pursuant to a scheme under section 30A, the person ceases to be an employee who belongs to that group of employees;~~

~~— (c) the person resigns from office by notice given to the employer;~~

~~— (d) he or she is disqualified under section 34.~~

~~— [Section 32 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 47; No. 51 of 2004 s. 45, 86 and 102(1).]~~

33. Functions of safety and health representatives

~~— (1) The functions of a safety and health representative are, in the interests of safety and health at the workplace for which he or she was elected —~~

~~— (a) to inspect that workplace or any part of it —~~

~~— (i) at such times as are agreed with the employer; or~~

-
- ~~————— (ii) where he or she has not inspected the workplace, or that part of it, in the preceding 30 days, at any time upon giving reasonable notice to the employer;~~
 - ~~————— (b) immediately, in the event of an accident, a dangerous occurrence, or a risk of imminent and serious injury to, or imminent and serious harm to the health of, any person, to carry out any appropriate investigation in respect of the matter;~~
 - ~~————— (c) to keep himself or herself informed as to the safety and health information provided by his or her employer in accordance with this Act and liaise as necessary with the department and other Government and private bodies;~~
 - ~~————— (d) forthwith to report to the employer any hazard or potential hazard to which any person is, or might be, exposed at the workplace that comes to his or her notice;~~
 - ~~————— (e) where there is a safety and health committee for the workplace, to refer to it any matters that he or she thinks should be considered by the committee;~~
 - ~~————— (f) to consult and cooperate with his or her employer on all matters relating to the safety or health of persons in the workplace;~~
 - ~~————— (g) liaise with the employees regarding matters concerning the safety or health of persons in the workplace.~~
 - ~~————— (2) A safety and health representative for a workplace has such powers as are necessary for the carrying out of the safety and health representative's functions under this Act and in particular, but without limiting the generality of this provision may, where requested to do so by an inspector, accompany an inspector while the inspector is carrying out, at the workplace, any of the inspector's functions under this Act.~~
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~~— (3) A safety and health representative incurs no civil liability arising from his or her performance of, or his or her failure to perform, any function of a safety and health representative under this Act.~~

~~— (4) If a scheme has been established under section 30A, the references in this section to *the workplace*, *that workplace* and *a workplace* include—~~

~~— (a) if the scheme applies to more than one workplace, each workplace to which the scheme applies; and~~

~~— (b) if under the scheme a safety and health representative is elected for a group of employees, each workplace or part of a workplace at which any member of the group works.~~

~~[Section 33 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 25 and 47; No. 51 of 2004 s. 46, 87, 102(1) and (2); No. 36 of 2009 s. 8.]~~

~~34.~~ Disqualification of safety and health representatives

~~— (1) A party mentioned in subsection (2) may refer to the Tribunal the question of whether a safety and health representative should be disqualified on the grounds that—~~

~~— (a) he or she has done anything under this Act with the intention only of causing harm to the representative's employer or a commercial or business undertaking of the employer;~~

~~— (b) he or she has used or disclosed any information acquired from the representative's employer in his or her capacity as a safety and health representative for a purpose that is not connected with the performance of his or her functions under this Act with the intention of causing harm to the employer or a commercial or business undertaking of the employer; or~~

-
- ~~———— (c) — he or she has failed adequately to perform his or her functions under this Act,~~
- ~~———— or on any number of those grounds.~~
- ~~———— (2) — A reference under subsection (1) relating to the disqualification of a safety and health representative may be made by —~~
- ~~———— (a) — his or her employer;~~
- ~~———— (b) — a relevant employee; or~~
- ~~———— (c) — the Commissioner.~~
- ~~———— (3) — If, upon a reference under subsection (1), the Tribunal is satisfied that grounds for the disqualification of the safety and health representative exist, the Tribunal may disqualify him or her for a specified period, or permanently, from holding office as a safety and health representative.~~
- ~~———— (4) — In determining what disqualification, if any, should be imposed under subsection (3), the Tribunal shall take into account —~~
- ~~———— (a) — the harm, if any, caused to the employer or a commercial or business undertaking of the employer;~~
- ~~———— (b) — the past record of the safety and health representative in performing his or her functions under this Act; and~~
- ~~———— (c) — whether the safety and health representative acted contrary to the public interest,~~
- ~~———— and may take into account any other matters that the Tribunal considers relevant.~~
- ~~———— (5) — In subsection (2)(b) —~~
- ~~———— ***relevant employee*** means —~~
- ~~———— (a) — an employee who works at the workplace concerned;~~
- ~~———— (b) — if the safety and health representative was elected for more than one workplace pursuant to a scheme established under section 30A, an employee who works at any such workplace; or~~
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~~————— (c) if under a scheme referred to in paragraph (b) the safety and health representative was elected for a group of employees, an employee who is a member of the group.~~

~~————— [Section 34 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 26 and 47; No. 51 of 2004 s. 47, 69(1), (2), 88 and 102.]~~

35. Certain duties of employers in relation to safety and health representatives

~~————— (1) Where there is any safety and health representative for a workplace the employer shall —~~

~~————— (a) subject to subsection (2), make available to each safety and health representative such information as the employer has, or could reasonably be expected to have, relating to —~~

~~————— (i) hazards to persons that arise or may arise at the workplace;~~

~~————— (ii) so far as it is relevant to the hazards mentioned in subparagraph (i), the plant and substances used at the workplace and the systems of work at the workplace; and~~

~~————— (iii) the safety and health of employees who work at the workplace;~~

~~————— (b) where an employee so requests, permit a safety and health representative to be present at any interview concerning occupational safety or health between the employer or the employer's representative and the employee;~~

~~————— (c) consult with safety and health representatives on intended changes to the workplace or the plant or substances used at the workplace where those changes may reasonably be expected to affect the safety or health of employees at the workplace;~~

-
- ~~———— (d) — ensure that a safety and health representative receives any entitlement that becomes due to him or her under subsection (1b) or (3);~~
- ~~———— [(e) — deleted]~~
- ~~———— (f) — where any accident or dangerous occurrence takes place in a workplace where employees who are represented by a safety and health representative work, ensure that the safety and health representative is notified thereof forthwith; and~~
- ~~———— (g) — provide safety and health representatives with such facilities and assistance as are necessary or prescribed for the purposes of the performance by them of their functions under this Act.~~
- ~~— (1a) — If, pursuant to a scheme under section 30A, a safety and health representative has been elected for a group of employees, the references in subsection (1) to **a workplace** and **the workplace** include any workplace at which any member of the group works.~~
- ~~— (1b) — Where a safety and health representative attends a course of training —~~
- ~~———— (a) — for which, under subsection (3), the representative is entitled to take time off work; and~~
- ~~———— (b) — that is prescribed for the purposes of this paragraph,~~
- ~~———— the employer is liable to pay, to the extent that is prescribed —~~
- ~~———— (c) — the tuition fee for the course; and~~
- ~~———— (d) — other costs incurred by the representative in connection with attendance at the course.~~
- ~~— (2) — An employer —~~
- ~~———— (a) — shall not make available to a safety and health representative any medical information concerning an employee unless —~~
- ~~———— (i) — the employee has consented to the employer doing so; or~~
-

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~~_____ (ii) it is in a form that does not identify, nor permit
the identification of, the employee;~~

~~_____ and~~

~~_____ (b) is not required by subsection (1)(a) to make available
information disclosing a trade secret.~~

~~_____ (3) The regulations may prescribe the entitlements of a safety and
health representative for the purposes of _____~~

~~_____ (a) performing his or her functions under this Act; and~~

~~_____ (b) his or her attendance at courses of training accredited
under section 14(1)(h);~~

~~_____ but the entitlements for those purposes may be varied, in a way
not less favourable to the safety and health representative than
that prescribed in the regulations, by agreement with the
employer concerned or by a determination made by the Tribunal
upon a reference made to the Tribunal under this subsection by
the employer, the safety and health representative, or the
Commissioner.~~

~~_____ (3a) In subsection (3) _____~~

~~_____ *entitlements* means _____~~

~~_____ (a) the time that a safety and health representative is to be
permitted to take off work with pay; and~~

~~_____ (b) payments to which a safety and health representative is
entitled for attendance at a course of training in his or
her own time.~~

~~_____ (4) If an employer contravenes subsection (1) or (2), the employer
commits an offence.~~

~~_____ [Section 35 inserted by No. 43 of 1987 s. 13; amended by
No. 30 of 1995 s. 27 and 47; No. 51 of 2004 s. 48, 69(1) and (2),
89 and 102(2); No. 36 of 2009 s. 9.]~~

~~35A. Discrimination against safety and health representative in relation to employment~~

~~(1) An employer or a prospective employer must not cause disadvantage to a person for the dominant or substantial reason that the person —~~

~~—— (a) is or was a safety and health representative; or~~

~~—— (b) is performing or has performed any function as a safety and health representative.~~

~~(2) For the purposes of subsection (1) an employer causes disadvantage to a person if the employer —~~

~~—— (a) dismisses the person from employment;~~

~~—— (b) demotes the person or fails to give the person a promotion that the person could reasonably have expected;~~

~~—— (c) detrimentally alters the person's employment position; or~~

~~—— (d) detrimentally alters the person's pay or other terms and conditions of employment.~~

~~(3) For the purposes of subsection (1) a prospective employer causes disadvantage to a person if the prospective employer refuses to employ the person.~~

~~(4) An employer or prospective employer that contravenes subsection (1) commits an offence.~~

~~[Section 35A inserted by No. 51 of 2004 s. 49.]~~

~~35B. Discrimination against safety and health representative in relation to contract for services~~

~~(1) In this section —~~

~~*contractor* and *principal* have the meanings given to those terms in section 23D(1).~~

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- ~~— (2) Where a scheme under section 30A makes provision of the kind described in section 30B(3), a principal must not —~~
- ~~— (a) terminate the engagement of a contractor; or~~
- ~~— (b) subject a contractor to any other detriment,~~
- ~~— for the dominant or substantial reason that the contractor or a person employed by the contractor —~~
- ~~— (c) is or was a safety and health representative; or~~
- ~~— (d) is performing or has performed any function as a safety and health representative.~~
- ~~— (3) A principal that contravenes subsection (2) commits an offence.~~
- ~~— [Section 35B inserted by No. 51 of 2004 s. 49.]~~

~~35C. Claim may be referred to the Tribunal~~

- ~~— (1) A person may —~~
- ~~— (a) refer to the Tribunal —~~
- ~~— (i) a claim that the person's employer or a prospective employer has caused disadvantage to the person in contravention of section 35A; or~~
- ~~— (ii) in the case of a contractor referred to in section 35B, a claim that the principal has contravened that section;~~
- ~~— and~~
- ~~— (b) request the Tribunal to make one or more of the orders provided for by section 35D.~~
- ~~— (2) Subsection (1) applies whether or not —~~
- ~~— (a) the employer or prospective employer has been convicted of an offence under section 35A(4); or~~
- ~~— (b) the principal has been convicted of an offence under section 35B(3).~~

~~— (3) A referral under subsection (1) may also be made on a person's behalf by an agent or legal practitioner referred to in section 31 of the *Industrial Relations Act 1979*.~~

~~— (4) Section 80E(1) of the *Industrial Relations Act 1979* does not apply to a claim under subsection (1) by a Government officer within the meaning of that section.~~

~~— [Section 35C inserted by No. 51 of 2004 s. 49.]~~

35D. Remedies that may be granted

~~— (1) If, on the hearing of a claim under section 35C(1)(a)(i), the Tribunal is satisfied that an employer or a prospective employer has contravened section 35A, the Tribunal may —~~

~~— (a) in the case of an employer, order the employer —~~

~~— (i) to reinstate the claimant if the claimant was dismissed from employment;~~

~~— (ii) to pay to the claimant such sum of money as the Tribunal considers adequate as compensation for loss of employment or loss of earnings; or~~

~~— (iii) both to reinstate the claimant and to pay the claimant the sum of money referred to in subparagraph (ii),~~

~~— as the Tribunal thinks fit; or~~

~~— (b) in the case of a prospective employer, order that person to pay the claimant such sum of money as the Tribunal thinks fit.~~

~~— (2) If, on the hearing of a claim under section 35C(1)(a)(ii), the Tribunal is satisfied that a principal has contravened section 35B, the Tribunal may order the principal to pay the claimant such sum of money as the Tribunal thinks fit.~~

~~— (3) In determining a claim under section 35C(1)(a)(i) the Tribunal may make any order of the kind mentioned in section 23A(3), (4) and (5)(a) of the *Industrial Relations Act 1979* as if the claim were a claim to which section 23A of that Act applies.~~

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~~— (4) In the determination of the amount of compensation for any loss of employment, loss of earnings or detriment —~~

~~— (a) the Tribunal is to have regard to any redress the claimant has obtained under another enactment; and~~

~~— (b) the claimant is not entitled to compensation both under this section and otherwise for the same loss of employment, loss of earnings or detriment.~~

~~— [Section 35D inserted by No. 51 of 2004 s. 49.]~~

~~Division 2 — Safety and health committees~~

~~— [Heading inserted by No. 51 of 2004 s. 50.]~~

36. — Terms used

~~— (1) In this Division —~~

~~— ***allowed period*** means —~~

~~— (a) 3 months; or~~

~~— (b) such longer period as the Commissioner may allow on application by a consultation party;~~

~~— ***consultation party*** means a person that comes within section 39C(2)(a), (b) or (c);~~

~~— ***prescribed requirements*** means —~~

~~— (a) the provisions of —~~

~~— (i) an agreement under section 39C(2); and~~

~~— (ii) section 39C(3);~~

~~— (b) the terms of a determination of —~~

~~— (i) the Commissioner, under section 39D; or~~

~~— (ii) the Tribunal, under section 39G,~~

~~— in respect of the workplace concerned or, if any agreement under section 39E applies, any workplace concerned; and~~

~~— (c) any requirement of the regulations.~~

- ~~— (2) In this Division references to a **safety and health representative for the workplace** or a **safety and health representative for a workplace** include a safety and health representative elected for a group of employees pursuant to a scheme under section 30A if any member of the group works at the workplace concerned.~~

~~— [Section 36 inserted by No. 51 of 2004 s. 50.]~~

37. Employees to appoint representatives

- ~~— Whenever required for the purpose of making an agreement under section 39C(2) or 39E(1) in respect of a workplace, the employees who work at the workplace are to appoint, from amongst their number, one or more employees —~~

- ~~— (a) to represent them for that purpose; or~~
~~— (b) as may be required, to replace any employee previously appointed under this section.~~

~~— [Section 37 inserted by No. 51 of 2004 s. 50.]~~

38. Obligation of employer to establish a safety and health committee

- ~~— (1) An employer must, in accordance with the prescribed requirements, establish a safety and health committee for a workplace within the allowed period after —~~

- ~~— (a) the coming into operation of a regulation requiring the employer to do so;~~
~~— (b) service on the employer of a notice by the Commissioner requiring the employer to do so; or~~
~~— (c) being requested under section 39(1) to do so;~~

- ~~— unless, in the case mentioned in paragraph (c), the Commissioner has decided under section 39A that a safety and health committee is not required to be established for the workplace concerned.~~

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~~— (2) If an employer contravenes subsection (1), the employer commits an offence.~~

~~— [Section 38 inserted by No. 51 of 2004 s. 50.]~~

~~39. Request for establishment of safety and health committee~~

~~— (1) An employee who works at a workplace may request the employer to establish a safety and health committee for the workplace.~~

~~— (2) If a request is made under subsection (1), the employer must within 21 days after the request is received either —~~

~~— (a) notify —~~

~~— (i) the employee who made the request; and~~

~~— (ii) any safety and health representative for the workplace,~~

~~— that the employer agrees to the request; or~~

~~— (b) under section 39A, refer to the Commissioner the question whether a safety and health committee should be established for the workplace.~~

~~— (3) If an employer contravenes subsection (2), the employer commits an offence.~~

~~— [Section 39 inserted by No. 51 of 2004 s. 50.]~~

~~39A. Referral of question to Commissioner~~

~~— (1) If —~~

~~— (a) a request has been made to an employer under section 39(1) in respect of a workplace; and~~

~~— (b) the employer considers that the circumstances of the case are such that the employer should not be required to establish a safety and health committee for the workplace,~~

~~— the employer may refer to the Commissioner the question of whether a safety and health committee should be so established.~~

~~(2) The employer must give notice of a referral under this section to—~~

~~(a) the employee concerned; and~~

~~(b) any safety and health representative for the workplace.~~

~~(3) The Commissioner is to—~~

~~(a) decide a question referred to the Commissioner under subsection (1); and~~

~~(b) notify the employer and the employee concerned of the decision.~~

~~[Section 39A inserted by No. 51 of 2004 s. 50.]~~

~~39B. Employer may establish a safety and health committee~~

~~An employer may, on the employer's own initiative and in accordance with the prescribed requirements, establish a safety and health committee for a workplace if—~~

~~(a) a regulation referred to in section 38(1)(a) has not come into operation;~~

~~(b) a notice referred to in section 38(1)(b) has not been served on the employer; or~~

~~(c) a request has not been made under section 39(1);~~

~~in respect of the workplace.~~

~~[Section 39B inserted by No. 51 of 2004 s. 50.]~~

~~39C. How safety and health committee to be constituted~~

~~(1) In this section—~~

~~**workplace**, where an agreement under section 39E applies, includes 2 or more workplaces.~~

~~(2) Subject to subsection (3), the composition, and the manner in which persons become members, of a safety and health committee for a workplace are to be determined by agreement in writing between—~~

~~(a) the employer;~~

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~~———— (b) — any safety and health representative for the workplace;
and~~

~~———— (c) — the employees appointed under section 37 in respect of
the workplace.~~

~~———— (3) — At least one half of the members of a safety and health
committee for a workplace must be persons each of whom is —~~

~~———— (a) — a safety and health representative for the workplace; or~~

~~———— (b) — an employee who works at the workplace and holds
office as a member representing other employees.~~

~~———— [Section 39C inserted by No. 51 of 2004 s. 50.]~~

~~39D. — Commissioner may make determination in certain cases~~

~~———— (1) — This section applies if —~~

~~———— (a) — a consultation party considers that discussions for the
purpose of making an agreement under section 39C —~~

~~———— (i) — cannot commence or continue because there are
no employees appointed under section 37 in
respect of the workplace concerned;~~

~~———— (ii) — have not been commenced or continued in good
faith by any party;~~

~~———— (iii) — are being unreasonably delayed; or~~

~~———— (iv) — have broken down;~~

~~———— or~~

~~———— (b) — the employer concerned considers that for some other
reason it is unlikely that the employer will be able to
comply with section 38(1) within the allowed period
under that section.~~

~~———— (2) — The employer or other consultation party may refer to the
Commissioner for determination —~~

~~———— (a) — the matters that are required to be settled by agreement
under section 39C; or~~

~~———— (b) — any particular matter mentioned in paragraph (a) on
which the parties cannot agree.~~

~~———— (3) — On such a referral, the Commissioner is to —~~

~~———— (a) — make any necessary determination; and~~

~~———— (b) — notify the employer or other party concerned of the
determination.~~

~~———— [Section 39D inserted by No. 51 of 2004 s. 50.]~~

~~39E. — Functions of committee may cover more than one workplace~~

~~———— (1) — If —~~

~~———— (a) — an employer —~~

~~———— (i) — is under an obligation by operation of
section 38(1); or~~

~~———— (ii) — wishes to take action for the purposes of
section 39B,~~

~~———— in respect of more than one workplace of the employer;
and~~

~~———— (b) — a safety and health committee has not been established
for one or more of those workplaces,~~

~~———— the parties concerned may agree in writing that one safety and
health committee is to be established to exercise functions in
relation to each of the workplaces to which paragraph (b)
applies.~~

~~———— (2) — For the purposes of subsection (1) the parties concerned are —~~

~~———— (a) — the employer;~~

~~———— (b) — any safety and health representative for a workplace to
which subsection (1)(b) applies; and~~

~~———— (c) — the employees appointed under section 37 in respect of
that workplace.~~

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- ~~— (3) An agreement under subsection (1) may provide —~~
- ~~— (a) for the establishment of a safety and health committee to exercise functions in relation to more than one workplace; and~~
- ~~— (b) for that committee to have subcommittees for each workplace —~~
- ~~— (i) to advise the committee on the exercise of its functions in relation to that workplace; and~~
- ~~— (ii) to exercise some or all of those functions as the delegate of the committee in accordance with the terms of a delegation to it.~~

- ~~— (4) The composition of any subcommittee referred to in subsection (3) is to be determined by the parties referred to in subsection (2).~~

~~— [Section 39E inserted by No. 51 of 2004 s. 50.]~~

39F. Amendment of agreement and abolition of committee

- ~~— (1) In this section —~~
- ~~— *relevant parties*, in respect of a workplace, means —~~
- ~~— (a) the employer; and~~
- ~~— (b) each member for the time being of the safety and health committee for the workplace.~~
- ~~— (2) Where —~~
- ~~— (a) an agreement has been made under section 39C(2); or~~
- ~~— (b) the matters referred to in section 39C(2) are governed by provisions consisting —~~
- ~~— (i) wholly of a determination made under section 39D, whether or not it has been varied or confirmed under section 39G; or~~
- ~~— (ii) partly of an agreement under section 39C(2) and partly of a determination made under~~

~~section 39D, whether or not it has been varied or confirmed under section 39G,~~

~~the relevant parties may by agreement in writing made between them—~~

~~(e) vary—~~

~~(i) the agreement or provisions; or~~

~~(ii) if applicable, the agreement or provisions as previously varied under this subsection; and~~

~~(d) make any transitional provision that is necessary or expedient in respect of the variation.~~

~~(3) Where a safety and health committee has been established for a workplace, the relevant parties may by agreement in writing—~~

~~(a) abolish the committee; and~~

~~(b) make any transitional provision that is necessary or expedient in respect of the abolition.~~

~~(4) If the relevant parties cannot agree on the exercise of a power referred to in subsection (2) or (3), any such party may refer to the Commissioner for determination any question—~~

~~(a) whether the agreement or provisions concerned should be varied;~~

~~(b) as to the manner in which the agreement or provisions should be varied; or~~

~~(c) whether a safety and health committee should be abolished,~~

~~or as to transitional provisions that should be made in respect of such a matter.~~

~~(5) On such a referral, the Commissioner is to—~~

~~(a) make any necessary determination; and~~

~~(b) notify the relevant parties of the determination.~~

~~[Section 39F inserted by No. 51 of 2004 s. 50.]~~

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~~39G.— Review of Commissioner's decision~~

- ~~(1) Where the Commissioner has made a decision under section 39A(3) in respect of a workplace—~~
- ~~(a) the employer;~~
- ~~(b) a safety and health representative for the workplace; or~~
- ~~(c) an employee who works at the workplace,~~
- ~~may refer the decision to the Tribunal for review.~~
- ~~(2) Where the Commissioner has made a determination under section 39D(3) in respect of one or more workplaces—~~
- ~~(a) the employer;~~
- ~~(b) any safety and health representative for a workplace concerned; or~~
- ~~(c) an employee appointed under section 37 in respect of a workplace concerned,~~
- ~~may refer the determination to the Tribunal for review.~~
- ~~(3) Where the Commissioner has made a determination under section 39F(5) in respect of—~~
- ~~(a) an agreement; or~~
- ~~(b) a safety and health committee,~~
- ~~a relevant party, within the meaning in that section, in relation to the workplace concerned may refer the determination to the Tribunal for review.~~
- ~~(4) The Tribunal may confirm, vary or revoke a decision or determination of the Commissioner referred to it under this section.~~
- ~~[Section 39G inserted by No. 51 of 2004 s. 50.]~~

~~40. Functions of safety and health committees~~

~~(1) In this section —~~

~~workplace, where an agreement under section 39E applies to the establishment of a safety and health committee, means any workplace in relation to which the committee may exercise functions.~~

~~(2) The functions of a safety and health committee are —~~

~~(a) to facilitate consultation and cooperation between an employer and the employees of the employer in initiating, developing, and implementing measures designed to ensure the safety and health of employees at the workplace;~~

~~(b) to keep itself informed as to standards relating to safety and health generally recommended or prevailing in workplaces of a comparable nature and to review, and make recommendations to the employer on, rules and procedures at the workplace relating to the safety and health of the employees;~~

~~(c) to recommend to the employer and employees the establishment, maintenance, and monitoring of programmes, measures and procedures at the workplace relating to the safety and health of the employees;~~

~~(d) to keep in a readily accessible place and form such information as is provided under this Act by the employer regarding the hazards to persons that arise or may arise at the workplace;~~

~~(e) to consider, and make such recommendations to the employer as the committee sees fit in respect of, any changes or intended changes to or at the workplace that may reasonably be expected to affect the safety or health of employees at the workplace;~~

~~(f) to consider such matters as are referred to the committee by a safety and health representative; and~~

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~~_____ (g) to perform such other functions as may be prescribed in
the regulations or given to the committee, with its
consent, by the employer.~~

~~_____ [Section 40 inserted by No. 43 of 1987 s. 13; amended by
No. 30 of 1995 s. 47; No. 51 of 2004 s. 52 and 90.]~~

~~41.~~

Schedule 1 — Procedures

~~— (1) — Subject to the regulations a safety and health committee may determine its own procedures.~~

~~— [(2) — deleted]~~

~~— [Section 41 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 47; No. 51 of 2004 s. 53.]~~

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Part V—Inspectors

~~———— [Heading inserted by No. 43 of 1987 s. 13.]~~

41A. ~~Terms used~~

~~———— In this Part ———~~

~~———— **employer** and **employee** include a person taken to be an employer
and an employee respectively by operation of section 23D, 23E
or 23F.~~

~~———— [Section 41A inserted by No. 51 of 2004 s. 9.]~~

42. Appointment of inspectors

~~———— The Commissioner, by instrument in writing, is to appoint such
officers of the department as the Commissioner considers
necessary to be inspectors for the purposes of this Act.~~

~~———— [Section 42 inserted by No. 51 of 2004 s. 58.]~~

42A. Appointment of restricted inspectors

~~———— (1) The Commissioner may, by instrument in writing, appoint any
person employed in the Public Service under Part 3 of the
Public Sector Management Act 1994 to be a restricted inspector
for ———~~

~~———— (a) the State; or~~

~~———— (b) any specified area of the State;~~

~~———— during the period specified in the instrument.~~

~~———— (2) A person ceases to be a restricted inspector ———~~

~~———— (a) when the period of the person's appointment expires; or~~

~~———— (b) if the person's appointment is revoked by the
Commissioner.~~

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- ~~(3) A person who ceases to be a restricted inspector must, as soon as practicable, return the certificate provided to the person under section 42C to the Commissioner or to any other person authorised by the Commissioner to receive it.~~

~~[Section 42A inserted by No. 51 of 2004 s. 58.]~~

42B. Powers of restricted inspector

- ~~(1) A restricted inspector has, in respect of —~~
- ~~(a) the State; or~~
- ~~(b) the area of the State for which the restricted inspector is appointed,~~
- ~~such of the functions of an inspector under this Act as are specified in the instrument of appointment.~~
- ~~(2) The performance of a function by a restricted inspector may be made subject to any condition or limitation.~~
- ~~(3) To the extent provided by the instrument of appointment, and subject to that instrument, a restricted inspector is taken to be an inspector appointed under section 42.~~

~~[Section 42B inserted by No. 51 of 2004 s. 58.]~~

42C. Certificate of appointment

- ~~(1) Every inspector and restricted inspector is to be provided with a certificate of appointment signed by the Commissioner or an officer of the department authorised in that behalf by the Commissioner.~~
- ~~(2) An inspector or a restricted inspector must produce the certificate to a person if —~~
- ~~(a) the inspector has performed, or is about to perform, any functions under this Act in relation to a person; and~~
- ~~(b) the person requests that the certificate be produced.~~
- ~~(3) A certificate purporting to have been provided under subsection (1) is, without proof of the signature of the person~~

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~~purporting to have signed it or of the person's authority to have signed it, evidence in a court—~~

~~—— (a) of the appointment to which the certificate purports to relate; and~~

~~—— (b) of any other matter specified in the certificate.~~

~~—— [Section 42C inserted by No. 51 of 2004 s. 58.]~~

43. Powers

~~—— (1) An inspector may, for the purposes of this Act—~~

~~—— (a) at all reasonable times of the day or night, enter, inspect and examine any workplace;~~

~~—— (b) enter any workplace at any other time that the performance of his or her functions under this Act requires such entry;~~

~~—— (c) when entering any workplace, take with him or her such equipment and materials as he or she considers appropriate;~~

~~—— (d) conduct such examination and inquiry as he or she considers necessary to ascertain whether there has been compliance with this Act;~~

~~—— (e) examine any plant, substance or other thing whatsoever at the workplace;~~

~~—— (ea) provide information to any person for the purpose of facilitating compliance with this Act;~~

~~—— (f) take and remove samples of any substance or thing, without paying for it;~~

~~—— (g) take possession of any plant or thing for further examination or testing or for use as evidence;~~

~~—— (h) take photographs and measurements, and make sketches and recordings;~~

~~—— (i) require the production of, examine, and take copies or extracts of, any document;~~

- ~~_____ (j) require that the workplace, or any part of it, be left undisturbed for as long as is specified in the requirement;~~
- ~~_____ (k) in accordance with subsections (1b) and (1c), interview any person who the inspector has reasonable grounds to believe—~~
 - ~~_____ (i) is, or was at any time during the preceding 3 years—~~
 - ~~_____ (I) an employee working at a workplace; or~~
 - ~~_____ (II) an employee occupying residential premises mentioned in section 23G(2),~~
 - ~~_____ in relation to which the inspector is inquiring;~~
 - ~~_____ (ii) was at such a workplace or such residential premises at a time that is relevant to a matter about which the inspector is inquiring; or~~
 - ~~_____ (iii) may otherwise be able to provide information relevant to a matter about which the inspector is inquiring;~~
- ~~_____ (l) require any person whom the inspector interviews under paragraph (k) to answer any questions put to him or her and, if the inspector considers it appropriate, to verify any such answer by statutory declaration;~~
- ~~_____ (m) require any person to state his or her name and address;~~
- ~~_____ (n) require the employer or any person who works at a workplace to render such assistance to the inspector as the inspector considers necessary for the performance of his or her functions under this Act;~~
- ~~_____ (o) exercise such other powers as may be conferred on him or her by the regulations or as may be necessary for the performance of his or her functions under this Act.~~
- ~~_____ (1a) In subsection (1) —~~
 - ~~_____ **workplace** includes residential premises that an employer is or was under a duty to maintain by virtue of section 23G(2).~~

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- ~~— (1b) — An interview referred to in subsection (1)(k) is to be conducted in private if —~~
- ~~— (a) — the inspector considers that to be appropriate; or~~
- ~~— (b) — the person to be interviewed so requests,~~
- ~~— but this subsection does not limit the operation of subsection (2) or section 44.~~
- ~~— (1c) — Subsection (1b) may be invoked during an interview by —~~
- ~~— (a) — the inspector; or~~
- ~~— (b) — the person being interviewed,~~
- ~~— in which case that subsection applies to the remainder of the interview.~~
- ~~— (2) — In exercising any of his or her powers under this Act an inspector may be accompanied by any other person whose assistance the inspector considers necessary, and that person may do such things as are necessary to assist the inspector in the performance of his or her functions, and any thing so done shall be deemed to have been done by the inspector.~~
- ~~— (3) — In carrying out the functions of an inspector under this Act, an inspector shall act in such a manner as to avoid unduly or unreasonably interfering with any work or work process or affecting adversely a covert operation within the meaning of section 4A(1).~~
- ~~— [Section 43 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 32; No. 54 of 2002 s. 7; No. 51 of 2004 s. 10, 59, 91, 102; No. 36 of 2009 s. 10.]~~

44. — Interpreters

- ~~— Where an inspector considers it necessary for the effective performance of his or her functions under this Act he or she may be accompanied by an interpreter, and any inquiry or requirement made to any person by an interpreter on behalf of an inspector shall be deemed to have been made by the~~

inspector and any answer given to the interpreter shall be deemed to have been given to the inspector.

[Section 44 inserted by No. 43 of 1987 s. 13; amended by No. 51 of 2004 s. 102(1) and (2).]

~~45.~~ Notification by inspector

~~(1) In this section~~

~~relevant~~

~~(a) in relation to an employer, means an employer whose employees~~

~~(i) carry out, in a workplace, work of a kind; or~~

~~(ii) carry out work, or are likely to be, in an area of a workplace,~~

~~that is relevant to any purpose for which an inspector has entered the workplace; and~~

~~(b) in relation to~~

~~(i) a safety and health representative; or~~

~~(ii) a safety and health committee,~~

~~means a representative or committee that has functions that are relevant to any purpose referred to in paragraph (a).~~

~~(2) On entering a workplace an inspector shall, as soon as is practicable, take all reasonable steps to notify any relevant employer of the inspector's presence.~~

~~(2a) An employer, upon being notified of the presence of an inspector at a workplace shall, as soon as is practicable, notify any relevant safety and health representative of the presence.~~

~~(3) Upon completing an inspection of a workplace, an inspector shall notify any relevant employer and any relevant safety and health representative or safety and health committee of any action he or she has taken and any further action he or she~~

- ## ~~46. Samples~~

- ~~(1) Where an inspector takes a sample under this Act in relation to a workplace, if practicable he or she shall divide the sample into 3 parts and deliver one part to the employer, use one part for such analysis, if any, as he or she considers necessary, and retain one part for future comparison.~~
- ~~(2) Subject to subsection (3), where an analysis is carried out of a sample taken under this Act in relation to a workplace, the inspector taking the sample shall forthwith notify the employer and any safety and health representative concerned of the results of the analysis.~~
- ~~(3) Subsection (2) does not apply in respect of the results of the analysis of a personal biological sample provided by an employee unless —~~

 - ~~(a) the employee has authorised the inspector to notify the person concerned; or~~

~~———— (b) the results are in a form that could not reasonably be expected to lead to the identification of any person to whom they relate.~~

~~———— [Section 46 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 33 and 47; No. 51 of 2004 s. 102(1).]~~

47. — Offences

~~———— (1) If a person —~~

~~———— (a) impersonates an inspector or forges any document purporting to be a certificate of the appointment of any person as an inspector;~~

~~———— (b) obstructs or interferes with an inspector in the performance of his or her functions under this Act, or any interpreter or other person assisting an inspector in the performance of his or her functions under this Act;~~

~~———— (ba) uses any threat or any abusive or insulting language to an inspector lawfully acting in the performance of a function conferred on an inspector under this Act, or any interpreter or other person assisting an inspector in the performance of that function;~~

~~———— (c) contravenes any requirement of an inspector made under this Act;~~

~~———— (d) provides to an inspector an answer or information that is false or misleading in any material particular;~~

~~———— (e) directly or indirectly prevents another person from complying with a requirement under this Act;~~

~~———— the person commits an offence.~~

~~———— (2) A person is not excused from complying with a requirement under this Act to —~~

~~———— (a) answer a question;~~

~~———— (b) provide information; or~~

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~~_____ (c) _____ produce a document,~~
~~_____ on the ground that to do so might tend to incriminate the person~~
~~_____ or make the person liable to a penalty.~~

~~_____ (3) _____ However _____~~

~~_____ (a) _____ an answer given or information provided by a person~~
~~_____ when so required; or~~

~~_____ (b) _____ the fact that a document produced by the person to~~
~~_____ comply with the requirement was produced,~~

~~_____ is not admissible in evidence against the person in any civil or~~
~~_____ criminal proceedings other than proceedings for perjury or for~~
~~_____ an offence under this Act arising out of the false or misleading~~
~~_____ nature of the answer, information or document.~~

~~_____ (4) _____ Subsection (3) does not apply _____~~

~~_____ (a) _____ to _____~~

~~_____ (i) _____ information in a document produced in~~
~~_____ compliance with a requirement under~~
~~_____ section 43(1)(i); or~~

~~_____ (ii) _____ the fact that such a document was produced;~~
~~_____ or~~

~~_____ (b) _____ to _____~~

~~_____ (i) _____ an answer given or information provided; or~~
~~_____ (ii) _____ the fact that a document was produced,~~
~~_____ by or on behalf of a body corporate.~~

~~_____ [Section 47 inserted by No. 43 of 1987 s. 13; amended by~~
~~_____ No. 30 of 1995 s. 34; No. 51 of 2004 s. 61, 93 and 102(2).]~~

Part VI—Improvement and prohibition notices

[Heading inserted by No. 43 of 1987 s. 13.]

Division 1—Issue of notices by inspector

[Heading inserted by No. 51 of 2004 s. 54.]

47A. Terms used

In this Part—

employer and **employee** include a person taken to be an employer and an employee respectively by operation of section 23D, 23E or 23F.

[Section 47A inserted by No. 51 of 2004 s. 11.]

48. Inspectors may issue improvement notices

(1) Where an inspector is of the opinion that any person—

(a) is contravening any provision of this Act; or

(b) has contravened a provision of this Act in circumstances that make it likely that the contravention will continue or be repeated,

the inspector may issue to the person an improvement notice requiring the person to remedy the contravention or likely contravention or the matters or activities occasioning the contravention or likely contravention.

(2) An improvement notice shall—

(a) state that the inspector is of the opinion that the person—

(i) is contravening a provision of this Act; or

(ii) has contravened a provision of this Act in circumstances that make it likely that the contravention will continue or be repeated;

(b) state reasonable grounds for forming that opinion;

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- ~~_____ (c) specify the provision of this Act in respect of which that opinion is held;~~
- ~~_____ (d) specify the time before which the person is required, to remedy the contravention or likely contravention or the matters or activities occasioning the contravention or likely contravention; and~~
- ~~_____ (e) contain a brief summary of how the right to have the notice reviewed, given by sections 51 and 51A, may be exercised.~~
- ~~_____ (3) A person, other than the employer, issued with an improvement notice shall forthwith give the notice, or a copy of it, to the employer, and where~~
 - ~~_____ (a) under subsection (1), an improvement notice is issued to an employer; or~~
 - ~~_____ (b) under this subsection an improvement notice, or a copy thereof, is given to an employer,~~
- ~~_____ the employer shall cause the notice, or a copy of it, to be displayed in a prominent place at or near any workplace affected by the notice.~~
- ~~_____ (3a) A person shall not remove an improvement notice displayed under subsection (3) before the requirements of that improvement notice have been satisfied.~~
- ~~_____ (3b) Subsection (3a) does not apply in respect of an improvement notice that is suspended under section 51 or 51A or that has ceased to have effect.~~
- ~~_____ (3c) If an improvement notice is issued~~
 - ~~_____ (a) to a self-employed person in respect of a contravention of section 21; or~~
 - ~~_____ (b) to a body corporate to which section 21B applies in respect of a contravention of that section,~~
- ~~_____ the person or body shall comply with subsection (3) and (3d) as if the person or body were an employer.~~

-
- ~~— (3d) — If an improvement notice is modified by the Commissioner under section 51(5)(b), the employer shall cause a copy of the Commissioner's decision to be displayed with the improvement notice, or a copy of it, as required by subsection (3).~~
- ~~— (4) — Subject to sections 51 and 51A, if a person —~~
- ~~— (a) — is issued with an improvement notice; and~~
- ~~— (b) — does not comply with the notice within the time specified in it,~~
- ~~— the person commits an offence.~~
- ~~— (5) — A person issued with an improvement notice commits an offence if the Commissioner is not notified forthwith upon the requirements of the improvement notice being satisfied.~~
- ~~— (6) — If a person contravenes subsection (3), (3a), (3c) or (3d), the person commits an offence.~~
- ~~— [Section 48 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 35; No. 51 of 2004 s. 94 and 107.]~~

49. — Inspectors may issue prohibition notices

- ~~— (1) — Where an inspector is of the opinion that an activity is occurring or may occur at a workplace which activity involves or will involve a risk of imminent and serious injury to, or imminent and serious harm to the health of, any person, the inspector may issue to a person that is or will be carrying on the activity, or a person that has or may be reasonably presumed to have control over the activity, a prohibition notice prohibiting the carrying on of the activity until an inspector is satisfied that the matters which give or will give rise to the risk are remedied.~~
- ~~— (2) — An inspector who issues a prohibition notice, other than in respect of an activity as defined in subsection (7), shall remain at the workplace until the employer has been advised of the notice and, where the notice is in respect of an activity that is occurring, the prohibited activity has ceased.~~

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Division 1 Issue of notices by inspector

s. 49

~~— (3) A prohibition notice shall —~~

~~— (a) state that the inspector is of the opinion that in the workplace there is occurring or may occur an activity which involves or will involve a risk of imminent and serious injury to, or imminent and serious harm to the health of, a person;~~

~~— (b) state reasonable grounds for forming that opinion;~~

~~— (c) specify the activity which in the inspector's opinion involves or will involve the risk and the matters which give or will give rise to the risk;~~

~~— (d) where in the inspector's opinion the activity involves a contravention or likely contravention of any provision of this Act, specify that provision and state the reasons for that opinion; and~~

~~— (e) contain a brief summary of how the right to have the notice reviewed, given by sections 51 and 51A, may be exercised.~~

~~— (4) A person, other than the employer, to whom a prohibition notice is issued shall forthwith give the notice, or a copy of it, to the employer, and where —~~

~~— (a) under subsection (1), a prohibition notice is issued to an employer; or~~

~~— (b) under this subsection a prohibition notice, or a copy thereof, is given to an employer,~~

~~— the employer shall cause the notice, or a copy of it, to be displayed in a prominent place at or near any workplace affected by the notice.~~

~~— (4a) A person shall not remove a prohibition notice displayed under subsection (4) before the requirements of that prohibition notice, taking into account any modifications made under section 51(5), have been satisfied or the prohibition notice has ceased to have effect.~~

- ~~— (4b) — If a prohibition notice is issued —~~
- ~~———— (a) — to a self-employed person in respect of a contravention of section 21; or~~
- ~~———— (b) — to a body corporate to which section 21B applies in respect of a contravention of that section,~~
- ~~———— the person or body shall comply with subsection (4) and (4c) as if the person or body were an employer.~~
- ~~— (4c) — If a prohibition notice is modified by the Commissioner under section 51(5)(b), the employer shall cause a copy of the Commissioner's decision to be displayed with the prohibition notice, or a copy of it, as required by subsection (4).~~
- ~~— (5) — Subject to sections 51 and 51A, if a person issued with a prohibition notice does not comply with the notice, the person commits an offence.~~
- ~~— (6) — If a person contravenes subsection (4), (4a), (4b) or (4c), the person commits an offence.~~
- ~~— (7) — The application of this section extends to residential premises that are being or may be occupied by an employee as mentioned in section 23G(2), and for that purpose —~~
- ~~———— (a) — in this section —~~
- ~~———— (i) — **workplace** includes such premises; and~~
- ~~———— (ii) — references to imminent and serious injury to, or imminent and serious harm to the health of, a person are to be read as applying only to an employee;~~
- ~~———— and~~
- ~~———— (b) — in this section and section 50 **activity** includes the occupation of such premises.~~
- ~~———— [Section 49 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 36; No. 51 of 2004 s. 12, 95 and 108.]~~

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s. 50

50. Notices may include directions

- ~~— (1) An inspector may include in an improvement notice or a prohibition notice directions as to the measures to be taken to remedy any contravention, likely contravention, risk, matters or activities to which the notice relates.~~
- ~~— (2) Any direction under subsection (1) may —~~
 - ~~— (a) refer to any code of practice; and~~
 - ~~— (b) offer the person issued with the notice a choice of ways in which to remedy the contravention, likely contravention, risk, matters or activities.~~
- ~~— [Section 50 inserted by No. 43 of 1987 s. 13; amended by No. 51 of 2004 s. 96.]~~

50A. Notices may be issued to the Crown

- ~~— (1) An improvement notice and a provisional improvement notice may be issued in respect of a contravention of this Act by the Crown in any of its capacities.~~
- ~~— (2) A prohibition notice may be issued in respect of an activity of or controlled by the Crown in any of its capacities.~~
- ~~— (3) If the contravention or activity relates to a body corporate that is an agent of the Crown, the notice is to be issued to the body corporate.~~
- ~~— (4) In the case of any other contravention or activity that relates to the Crown, the notice —~~
 - ~~— (a) is to be issued to the Crown under the title “State of Western Australia”; and~~
 - ~~— (b) is to show the name of the responsible agency under Part VII Division 2 that would be specified in a charge for an offence in respect of that contravention or activity.~~

- ~~— (5) — It is sufficient for the purposes of subsection (3) or (4) if the notice —~~
- ~~— (a) — is delivered to a person at the workplace concerned who has, or reasonably appears to have, responsibility for the management or control of the workplace; or~~
- ~~— (b) — is sent by pre-paid letter addressed and posted to the body corporate or responsible agency concerned at its principal place of business in the State.~~
- ~~— (6) — If a notice is delivered to a person as mentioned in subsection (5)(a) the person must, as soon as is practicable, give a copy of the notice to the executive who is responsible for the day to day administration of the body corporate or responsible agency concerned.~~
- ~~— [Section 50A inserted by No. 51 of 2004 s. 109.]~~

51. — Review of notices

- ~~— (1) — An improvement notice or prohibition notice may, in accordance with this section, be referred for review to the Commissioner by —~~
- ~~— (a) — the person issued with the notice; or~~
- ~~— (b) — the employer (if any) of the person issued with the notice.~~
- ~~— (2) — A reference under subsection (1) may be made in the prescribed form —~~
- ~~— (a) — in the case of an improvement notice, within the time specified in the notice as the time before which the notice is required to be complied with;~~
- ~~— (b) — in the case of a prohibition notice, within 7 days of the issue of the notice or such further time as may be allowed by the Commissioner.~~
- ~~— [(3), (4) — deleted]~~

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Division 1 Issue of notices by inspector

s. 51AA

~~— (5) On the reference under this section of an improvement notice or a prohibition notice for review, the Commissioner shall inquire into the circumstances relating to the notice and may —~~

~~— (a) affirm the notice;~~

~~— (b) affirm the notice with such modifications as seem appropriate; or~~

~~— (c) cancel the notice;~~

~~— and, subject to section 51A, the notice shall have effect or, as the case may be, cease to have effect, accordingly.~~

~~— (6) The Commissioner shall give to the person that referred the matter for review, and to any other person that was entitled under subsection (1) to refer the notice for review, a notice in writing of the decision on the reference and of the reasons for that decision.~~

~~— (6a) In dealing with a reference for the review of a prohibition notice the Commissioner may refer to an expert chosen by the Commissioner such matters as appear appropriate and may accept the advice of that expert.~~

~~— (7) Pending the decision on a reference under this section for the review of a notice, the operation of the notice shall —~~

~~— (a) in the case of an improvement notice, be suspended; and~~

~~— (b) in the case of a prohibition notice, continue, subject to any decision to the contrary made by the Commissioner.~~

~~— [Section 51 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 37; No. 51 of 2004 s. 97 and 103.]~~

~~51AA. Further power of Commissioner to cancel notice~~

~~— (1) The Commissioner, on his or her own initiative, may cancel an improvement notice or a prohibition notice by giving notice in writing of the cancellation, and the reasons for it —~~

~~— (a) to the person issued with the notice; and~~

-
- ~~———— (b) if that person is an employee, to the employee's employer.~~
- ~~———— (2) The power conferred by subsection (1) is not to be exercised in respect of a notice —~~
- ~~———— (a) during a period when a referral of the notice under section 51 is awaiting a determination of the Commissioner under that section; or~~
- ~~———— (b) after a decision in respect of the notice has been referred to the Tribunal under section 51A,~~
- ~~———— but may be exercised at any other time and whether or not the notice has been affirmed under section 51(5)(a) or (b).~~
- ~~———— [Section 51AA inserted by No. 51 of 2004 s. 110.]~~

51A. Further review of notices

- ~~———— (1) A person issued with notice of a decision under section 51(6) may, if not satisfied with the Commissioner's decision, refer the matter in accordance with subsection (2) to the Tribunal for further review.~~
- ~~———— (2) A reference under subsection (1) may be made within 7 days of the issue of the notice under section 51(6).~~
- ~~———— (3) A review of a decision made under section 51 shall be in the nature of a rehearing.~~
- ~~———— (4) The Tribunal shall act as quickly as is practicable in determining a matter referred under this section.~~
- ~~———— (5) On a reference under subsection (1) the Tribunal shall inquire into the circumstances relating to the notice and may —~~
- ~~———— (a) affirm the decision of the Commissioner;~~
- ~~———— (b) affirm the decision of the Commissioner with such modifications as seem appropriate; or~~

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s. 51AB

~~———— (c) — revoke the decision of the Commissioner and make such other decision with respect to the notice as seems fit,~~

~~———— and the notice shall have effect or, as the case may be, cease to have effect accordingly.~~

~~— [(6) — deleted]~~

~~— (7) — Pending the decision on a reference under this section, irrespective of the decision of the Commissioner under section 51, the operation of the notice in respect of which the reference is made shall —~~

~~———— (a) — in the case of an improvement notice, be suspended; and~~

~~———— (b) — in the case of a prohibition notice, continue, subject to any decision to the contrary made by the Tribunal.~~

~~———— [Section 51A inserted by No. 30 of 1995 s. 38; amended by No. 51 of 2004 s. 64, 69(1)–(3) and 98; No. 36 of 2009 s. 11.]~~

~~Division 2 — Issue of provisional improvement notices by safety and health representative~~

~~———— [Heading inserted by No. 51 of 2004 s. 55.]~~

~~51AB. Term used: qualified representative~~

~~———— In this Division —~~

~~———— **qualified representative** means a safety and health representative who has completed a course of training prescribed for the purposes of this definition.~~

~~———— [Section 51AB inserted by No. 51 of 2004 s. 55.]~~

~~51AC. Issue of provisional improvement notices~~

~~— (1) — Subsection (2) applies where a qualified representative —~~

~~———— (a) — is of the opinion that a person —~~

~~———— (i) — is contravening a provision of this Act; or~~

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representative

s. 51AD

- ~~_____ (ii) has contravened a provision of this Act in
circumstances that make it likely that the
contravention will continue or be repeated;~~
- ~~_____ and~~
- ~~_____ (b) has undertaken the consultations required by
section 51AD.~~
- ~~_____ (2) The qualified representative may issue to the person a
provisional improvement notice requiring the person to
remedy _____~~
- ~~_____ (a) the contravention or likely contravention; or~~
- ~~_____ (b) the matters or activities occasioning the contravention or
likely contravention.~~
- ~~_____ (3) A qualified representative may exercise the power conferred by
subsection (2) only _____~~
- ~~_____ (a) in respect of a workplace for which the qualified
representative was elected; or~~
- ~~_____ (b) if, pursuant to a scheme under section 30A, the qualified
representative was elected for a group of employees, in
respect of any workplace at which any member of the
group works.~~
- ~~_____ (4) If a provisional improvement notice is issued to an employee,
the employee must, as soon as is practicable, give a copy of the
notice to the employee's employer.~~
- ~~_____ [Section 51AC inserted by No. 51 of 2004 s. 55.]~~

51AD. Consultation required before issue

- ~~_____ (1) In this section _____~~
- ~~_____ **consult** means consult about the matters or activities to which
an intended notice will relate.~~

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s. 51AE

- ~~— (2) Before issuing a provisional improvement notice a qualified representative must —~~
- ~~— (a) consult with the person that is to be issued with the notice; and~~
- ~~— (b) if there is any other safety and health representative for the workplace concerned, consult with another representative for that workplace so far as it is reasonably practicable to do so.~~
- ~~— (3) The reference in subsection (2) to a safety and health representative includes a safety and health representative elected for a group of employees pursuant to a scheme under section 30A if any member of the group works at the workplace concerned.~~
- ~~— (4) The regulations may make provision requiring a qualified representative, in specified circumstances, to consult with a person who holds a prescribed office in the department before issuing a provisional improvement notice.~~
- ~~— [Section 51AD inserted by No. 51 of 2004 s. 55.]~~

~~51AE. Contents of notice~~

- ~~— (1) A provisional improvement notice must —~~
- ~~— (a) state that the qualified representative is of the opinion that the person —~~
- ~~— (i) is contravening a provision of this Act; or~~
- ~~— (ii) has contravened a provision of this Act in circumstances that make it likely that the contravention will continue or be repeated;~~
- ~~— (b) state reasonable grounds for the representative being of that opinion;~~
- ~~— (c) specify the provision of this Act in respect of which the opinion is held;~~

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representative

s. 51AF

- ~~_____ (d) specify the day before which the person is required to
remedy—~~
- ~~_____ (i) the contravention or likely contravention; or~~
- ~~_____ (ii) the matters or activities occasioning the
contravention or likely contravention;~~
- ~~_____ and~~
- ~~_____ (e) contain a brief summary of the right to have the notice
reviewed by an inspector under section 51AH.~~
- ~~_____ (2) The day specified for the purposes of subsection (1)(d) must be
more than 7 days after the day on which the notice is issued.~~
- ~~_____ [Section 51AE inserted by No. 51 of 2004 s. 55.]~~

51AF. Provisional notices may include directions

- ~~_____ (1) A qualified representative may include in a provisional
improvement notice directions as to the measures to be taken to
remedy—~~
- ~~_____ (a) any contravention or likely contravention; or~~
- ~~_____ (b) matters or activities,~~
- ~~_____ to which the notice relates.~~
- ~~_____ (2) Any direction under subsection (1) may—~~
- ~~_____ (a) refer to any code of practice; and~~
- ~~_____ (b) offer the person issued with the notice a choice of ways
in which to effect the remedy.~~
- ~~_____ [Section 51AF inserted by No. 51 of 2004 s. 55.]~~

51AG. Failure to comply with notice

- ~~_____ (1) A person commits an offence if the person fails to comply with
a provisional improvement notice issued to the person.~~
- ~~_____ (2) Subsection (1) does not apply if the right conferred by
section 51AH(2) is exercised.~~

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s. 51AH

~~————— [Section 51AG inserted by No. 51 of 2004 s. 55.]~~

51AH. Review of notice by an inspector

~~————— (1) In this section —~~

~~————— **affected person** means —~~

~~————— (a) the person issued with a provisional improvement notice; or~~

~~————— (b) in the case of a notice issued to an employee —~~

~~————— (i) the employee; and~~

~~————— (ii) the employer of the employee.~~

~~————— (2) An affected person may, in writing delivered or sent to the department (a **review notice**), require that an inspector review a provisional improvement notice.~~

~~————— (3) A review notice —~~

~~————— (a) may be sent —~~

~~————— (i) by letter addressed to, and posted to a place of business of, the department;~~

~~————— (ii) by transmission to a facsimile number used by the department; or~~

~~————— (iii) by electronic data transmission to an email address used by the department;~~

~~————— and~~

~~————— (b) must be received by the department not later than the day specified in the provisional improvement notice for the purposes of section 51AE(1)(d).~~

~~————— (4) The operation of the provisional improvement notice is suspended by the receipt by the department of a review notice in accordance with this section.~~

~~————— (5) Where a review notice is received by the department in accordance with this section, an inspector must as soon as is practicable —~~

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-
- ~~_____ (a) attend at the workplace; and~~
 - ~~_____ (b) inquire into the circumstances relating to the notice,~~
 - ~~_____ and having done so may _____~~
 - ~~_____ (c) affirm the notice;~~
 - ~~_____ (d) affirm the notice with modifications; or~~
 - ~~_____ (e) cancel the notice.~~
 - ~~_____ (6) If an inspector affirms a provisional improvement notice, with
or without modifications, the notice as so affirmed has effect as
if it had been issued by the inspector under section 48.~~
 - ~~_____ [Section 51AH inserted by No. 51 of 2004 s. 55.]~~
-

s. 51B

~~Part VIA — Safety and health magistrates~~

~~[Heading inserted by No. 30 of 1995 s. 39.]~~

~~51B. — Safety and health magistrates~~

~~Every magistrate holds office as a safety and health magistrate by virtue of this section and ceases to hold that office upon ceasing to hold office as a magistrate.~~

~~[Section 51B inserted by No. 30 of 1995 s. 39.]~~

~~51C. — Jurisdiction of safety and health magistrate~~

~~(1) A safety and health magistrate has jurisdiction to —~~

~~[(a) deleted]~~

~~(b) hear and determine under the *Criminal Procedure Act 2004* proceedings instituted under section 52, subject to section 19(1) of the *Children's Court of Western Australia Act 1988*.~~

~~[(2)-(4) deleted]~~

~~(5) When exercising jurisdiction under subsection (1)(b) a safety and health magistrate constitutes a court of summary jurisdiction.~~

~~(6) Sections 15, 16, 35 and 36 and Part 3 Division 2 of the *Magistrates Court Act 2004* apply to and in relation to a safety and health magistrate in the same way as they apply to and in relation to the Magistrates Court and its officers.~~

~~[Section 51C inserted by No. 30 of 1995 s. 39; amended by No. 51 of 2004 s. 65; No. 59 of 2004 s. 141; No. 84 of 2004 s. 78.]~~

~~[51D. Deleted by No. 51 of 2004 s. 66.]~~

51E. Administrative arrangements

~~The Chief Magistrate of the Magistrates Court shall make such administrative arrangements as are necessary to enable a safety and health magistrate to carry out functions under this Act.~~

~~[Section 51E inserted by No. 30 of 1995 s. 39; amended by No. 59 of 2004 s. 141.]~~

s. 51F

~~Part VIB—Occupational Safety and Health Tribunal~~

~~[Heading inserted by No. 51 of 2004 s. 67.]~~

~~51F. Terms used~~

~~In this Part—~~

~~**Commission** and **Chief Commissioner** have the meanings given to those terms in section 7(1) of the *Industrial Relations Act 1979*;~~

~~**matter** includes a claim under section 35C.~~

~~[Section 51F inserted by No. 51 of 2004 s. 67.]~~

~~51G. Industrial Relations Commission sitting as the Occupational Safety and Health Tribunal~~

~~(1) By this subsection the Commission has jurisdiction to hear and determine matters that may be referred for determination under sections 28(2), 30(6), 30A(4), 31(11), 34(1), 35(3), 35C, 39G(1), (2) and (3), 51A(1) and 61A.~~

~~(2) When sitting in exercise of the jurisdiction conferred by subsection (1) the Commission is to be known as the Occupational Safety and Health Tribunal (the **Tribunal**).~~

~~(3) A determination of the Tribunal on a matter mentioned in subsection (1) has effect according to its substance and an order containing the determination is an instrument to which section 83 of the *Industrial Relations Act 1979* applies.~~

~~[Section 51G inserted by No. 51 of 2004 s. 67; amended by No. 36 of 2009 s. 12.]~~

~~51H. Jurisdiction to be exercised by Commissioner with requisite qualifications~~

~~(1) The jurisdiction conferred by section 51G in respect of any matter is to be exercised—~~

- ~~— (a) by the commissioner designated under the *Industrial Relations Act 1979* section 16(2A) to exercise the jurisdiction; or~~
- ~~— (b) if that Commissioner is unable to act by reason of sickness, absence or other cause—~~
- ~~— (i) by another Commissioner; or~~
- ~~— (ii) an Acting Commissioner appointed under section 17 of the *Industrial Relations Act 1979*, to whom the Chief Commissioner may allocate the matter under section 16 of that Act.~~
- ~~— (2) In allocating a matter for the purposes of subsection (1)(b) the Chief Commissioner is to have regard to the desirability of the Commissioner concerned having relevant knowledge in the field of occupational safety and health.~~
- ~~— (3) A Commissioner to whom a matter has been allocated under subsection (1)(b) may continue and complete the hearing and determination of part heard proceedings after the Commissioner referred to in subsection (1)(a) has resumed his or her duties.~~
- ~~— (4) A person who is a commissioner may, even though the person's designation has ceased to have effect under the *Industrial Relations Act 1979* section 16(2B), continue and complete the hearing and determination of part heard proceedings after another commissioner has been designated under section 16(2A) of that Act.~~
- ~~— [Section 51H inserted by No. 51 of 2004 s. 67; amended by No. 36 of 2009 s. 13.]~~

51H. Practice, procedure and appeals

- ~~— (1) The provisions of sections 22B, 26(1), (2) and (3), 27, 28, 31(1), (2), (3), (5) and (6), 33, 34(1), (3) and (4), 36 and 49 of the *Industrial Relations Act 1979* that apply to and in relation to the exercise of the jurisdiction of the Commission constituted by a~~

s. 51J

~~Commissioner apply to the exercise of the jurisdiction conferred
by section 51G—~~

- ~~— (a) with such modifications as are prescribed under
section 113 of that Act; and~~
- ~~— (b) with such other modifications as may be necessary or
appropriate.~~

- ~~— (2) For the purposes of subsection (1), section 31(1) of the
Industrial Relations Act 1979 applies as if paragraph (c) were
deleted and the following paragraph were inserted instead—~~

~~“~~

- ~~— (c) by a legal practitioner.~~

~~”.~~

~~— [Section 51I inserted by No. 51 of 2004 s. 67.]~~

51J. Conciliation

- ~~— (1) This section applies where a matter has been referred to the
Tribunal for determination under section 28(2), 30(6), 30A(4),
31(11), 35(3) or 39G.~~
- ~~— (2) If the Tribunal considers that the issues involved may be
resolved by conciliation—~~
 - ~~— (a) the Tribunal may endeavour to assist the parties to reach
an agreement on those issues; and~~
 - ~~— (b) for that purpose the Tribunal may—~~
 - ~~— (i) arrange conferences of the parties or their
representatives presided over by the Tribunal;~~
 - ~~— (ii) arrange for the parties or their representatives to
confer among themselves at a conference at
which the Tribunal is not present; and~~
 - ~~— (iii) otherwise encourage the parties to exchange or
divulge attitudes or information that in the
opinion of the Tribunal would assist in the
resolution of the issues.~~

-
- ~~— (3) — The Tribunal may give any direction or make any order or declaration that the Tribunal thinks expedient for the purposes of this section, and any such direction, order or declaration is enforceable as if it were given or made under section 32 of the *Industrial Relations Act 1979*.~~
- ~~— (4) — If the Tribunal gives or makes a direction, order or declaration under subsection (3) the Tribunal must —~~
- ~~———— (a) — if it is given or made orally, reduce the direction, order or declaration to writing as soon as is practicable; and~~
- ~~———— (b) — make the text of the direction, order or declaration available to the parties as soon as is practicable after it is given or made.~~
- ~~— (5) — If the Tribunal —~~
- ~~———— (a) — takes action under subsection (2)(a); and~~
- ~~———— (b) — is satisfied that the parties have reached agreement on all of the issues involved,~~
- ~~———— the Tribunal may, with the consent of the parties, make a determination for the purposes of section 51G in terms of that agreement.~~
- ~~— (6) — If the Tribunal —~~
- ~~———— (a) — takes action under subsection (2)(a); and~~
- ~~———— (b) — subsection (5)(b) does not apply,~~
- ~~———— the Tribunal is to determine the matter for the purposes of section 51G.~~
- ~~— (7) — In making a determination mentioned in subsection (6) the Tribunal is to endeavour to ensure that the matter is resolved —~~
- ~~———— (a) — taking into account any agreement reached by the parties on any particular issue; and~~
- ~~———— (b) — subject to paragraph (a), on terms that could reasonably have been agreed between the parties in the first instance or by conciliation.~~

s. 51K

~~———— [Section 51J inserted by No. 51 of 2004 s. 67.]~~

~~51K. — Certain matters to be heard together~~

~~———— (1) — The section applies if —~~

~~———— (a) — under the *Industrial Relations Act 1979*, an employee
has referred to the Commission a claim that the
employee has been harshly, oppressively or unfairly
dismissed from employment; and~~

~~———— (b) — a matter —~~

~~———— (i) — involving the same employer and employee; and~~

~~———— (ii) — arising out of the same circumstances;~~

~~———— has been referred for determination under the
jurisdiction conferred by section 51G.~~

~~———— (2) — An employee referred to in subsection (1) may in writing
request that a matter referred to in subsection (1)(a) be heard
and determined by the Commissioner who is hearing and
determining the matter referred to in subsection (1)(b).~~

~~———— (3) — If such a request is made, the Chief Commissioner, in exercising
the powers conferred by section 16 of the *Industrial Relations
Act 1979*, is to allocate the hearing and determination of the
matter accordingly.~~

~~———— (4) — If —~~

~~———— (a) — an employee has referred to the Commission a claim of
the kind described in section 29(1)(b)(ii) of the
Industrial Relations Act 1979; and~~

~~———— (b) — the claim involves the same employer and arises out of
the same circumstances as a matter that has been
referred for determination under the jurisdiction
conferred by section 51G,~~

~~———— nothing in this section prevents the Chief Commissioner
exercising the powers conferred by section 16 of that Act so that~~

s. 51K

~~the claim is heard and determined by the Commissioner who is
hearing and determining the matter referred to in paragraph (b).~~

~~[Section 51K inserted by No. 51 of 2004 s. 67.]~~

Part VII—Legal proceedings

~~[Heading inserted by No. 43 of 1987 s. 13.]~~

Division 1—General provisions

~~[Heading inserted by No. 51 of 2004 s. 30.]~~

52. Prosecutions

~~(1) Proceedings for an offence against this Act may be instituted by any person authorised in that behalf by the Commissioner.~~

~~(2) Subject to section 19(1) of the *Children's Court of Western Australia Act 1988*, proceedings for an offence against this Act shall be heard and determined by a safety and health magistrate.~~

~~(3) Proceedings for an offence against this Act may be commenced at any time within 3 years after the offence was committed.~~

~~[Section 52 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 40; No. 63 of 1998 s. 5(1); No. 59 of 2004 s. 141.]~~

53. Evidentiary provisions

~~(1) In proceedings for an offence against this Act an averment in the charge that at a particular time —~~

~~(a) a particular place was a workplace;~~

~~(b) a particular person was an employer;~~

~~(ba) a particular person was an employer of particular persons;~~

~~(bb) a particular person was an employer at a particular workplace;~~

~~(c) a particular person had —~~

~~(i) control of a particular workplace; or~~

- ~~————— (ii) — control of the means of access to or egress from a particular workplace;~~
- ~~————— (d) — a notice required under this Act to be given had not been given;~~
- ~~————— (e) — a prescribed fee had not been paid;~~
- ~~————— (f) — a particular person was an inspector or a restricted inspector under section 42A;~~
- ~~————— is, in the absence of evidence to the contrary, taken to be proved.~~
- ~~————— (2) — The person commencing a prosecution for an offence against this Act is taken to be authorised under section 52(1) to commence the prosecution, in the absence of evidence to the contrary.~~
- ~~————— (3) — In proceedings for an offence against this Act, production of a copy of ———~~
- ~~————— (a) — a code of practice;~~
- ~~————— (b) — an Australian Standard; or~~
- ~~————— (c) — an Australian/New Zealand Standard,~~
- ~~————— purporting to be certified by the Commissioner to be a true copy as at any date or during any period is, without proof of the signature of the Commissioner, sufficient evidence of the contents of the code of practice or Standard as at that date or during that period.~~
- ~~————— [Section 53 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 41; No. 10 of 1998 s. 56; No. 51 of 2004 s. 111; No. 84 of 2004 s. 80.]~~

~~54. — General penalty~~

- ~~————— If a person commits an offence against this Act for which a penalty is not otherwise provided, the person is liable to a level one penalty.~~
- ~~————— [Section 54 inserted by No. 51 of 2004 s. 31.]~~

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Part VII Legal proceedings

Division 1 General provisions

s. 54A

~~[54AA. Deleted by No. 51 of 2004 s. 32.]~~

54A. Continuing offences

- ~~— (1) Where an offence is committed by a person by reason of the contravention of a provision of this Act under which the person is required or directed to do any act or thing, or to refrain from doing any act or thing, that offence is taken to continue so long as the act or thing so required or directed remains undone, or continues to be done, as the case may be.~~
- ~~— (2) Where an offence is taken to continue, the person that committed the offence, whether by act or omission, commits an additional offence on each day during which the offence is taken to continue after notice of the offence has been given by or on behalf of an inspector to the offender, and is liable to a fine not exceeding—~~
- ~~———— (a) \$200, where the offence is committed by a person as an employee;~~
- ~~———— (b) \$1 000, where the offence is committed by an individual and paragraph (a) does not apply; and~~
- ~~———— (c) \$2 000, where the offence is committed by a body corporate,~~
- ~~———— for every day on which the offence is so continued.~~
- ~~———— [Section 54A inserted by No. 30 of 1995 s. 42; amended by No. 51 of 2004 s. 33 and 103.]~~

54B. Appeals

- ~~— (1) Part 2 of the *Criminal Appeals Act 2004* applies in respect of decisions of a safety and health magistrate made under section 52.~~

~~[(2) (4) deleted]~~

~~———— [Section 54B inserted by No. 30 of 1995 s. 42; amended by No. 51 of 2004 s. 68; No. 59 of 2004 s. 141; No. 84 of 2004 s. 78.]~~

55. Offences by bodies corporate

- ~~(1) Where a body corporate is guilty of an offence under this Act and it is proved that the offence occurred with the consent or connivance of, or was attributable to any neglect on the part of, any director, manager, secretary or other officer of the body, or any person who was purporting to act in any such capacity he or she, as well as the body corporate, is guilty of that offence.~~
- ~~(1a) Despite subsection (1), if a body corporate is guilty of an offence under section 19A(1), 21A(1), 21C(1), 22A(1), 23AA(1), 23B(1) or 23H(1) the following provisions apply—~~
- ~~(a) a person referred to in subsection (1) is guilty of that offence if it is proved that—~~
- ~~(i) the offence was attributable to any neglect on the part of the person; or~~
- ~~(ii) the person consented to or connived in the acts or omissions to which section 18A(2)(a)(ii) applied that were proved against the body corporate,~~
- ~~in circumstances where the person—~~
- ~~(iii) knew that the contravention would be likely to cause the death of, or serious harm to, a person to whom a duty was owed; but~~
- ~~(iv) acted or failed to act as mentioned in subparagraph (i) or (ii) in disregard of that likelihood;~~
- ~~(b) if paragraph (a) does not apply, a person referred to in subsection (1) is guilty of an offence under section 19A(2), 21A(2), 21C(2), 22A(2), 23AA(2), 23B(2) or 23H(2), as the case may require, if it is proved that the offence of the body corporate—~~
- ~~(i) occurred with the consent or connivance of the person; or~~
- ~~(ii) was attributable to any neglect on the part of the person.~~

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Division 2 Criminal proceedings against the Crown

s. 55A

~~— (1b) — A person convicted of an offence by virtue of subsection (1) or (1a) is liable to the penalty to which an individual who is convicted of that offence is liable.~~

~~— (2) — Where the affairs of a body corporate are managed by its members, subsections (1) and (1a) shall apply in relation to the acts and defaults of a member in connection with his or her functions of management as if he or she were a director of the body corporate.~~

~~———— [Section 55 inserted by No. 43 of 1987 s. 13; amended by No. 51 of 2004 s. 34, 102(1) and (2).]~~

~~55A. — No double jeopardy~~

~~———— A person is not liable to be punished twice under this Act in respect of any act or omission.~~

~~———— [Section 55A inserted by No. 51 of 2004 s. 35.]~~

~~Division 2 — Criminal proceedings against the Crown~~

~~———— [Heading inserted by No. 51 of 2004 s. 36.]~~

~~55B. — Crown may be prosecuted~~

~~———— The Crown in any capacity may, in accordance with this Division, be prosecuted for an offence against this Act.~~

~~———— [Section 55B inserted by No. 51 of 2004 s. 36.]~~

~~55C. — Prosecution against body corporate~~

~~— (1) — Where the act or omission constituting the offence is alleged against a body corporate that is an agent of the Crown, the prosecution proceedings are to be taken against the body corporate.~~

~~— (2) — Subsection (1) includes a case where —~~

~~———— (a) — a body corporate is the successor in law, as defined in section 55F(1), of an agency or department; or~~

~~———— (b) — a body corporate is determined under section 55F(3).~~

~~[Section 55C inserted by No. 51 of 2004 s. 36.]~~

55D. Prosecution in other cases

~~(1) Where~~

~~(a) the act or omission constituting the offence is alleged
against an agency or department that is an agent of the
Crown (the *responsible agency*); and~~

~~(b) section 55C does not apply;~~

~~the prosecution proceedings are to be taken against the Crown.~~

~~(2) For the purposes of subsection (1) the WA Police is to be treated
as an agency of the Crown.~~

~~(3) Proceedings referred to in subsection (1) may be brought against
the Crown under the title "State of Western Australia".~~

~~[Section 55D inserted by No. 51 of 2004 s. 36.]~~

55E. Provisions applicable to responsible agency

~~(1) In this section~~

~~*chief executive* means the person who is for the time being
responsible for the day to day administration of a responsible
agency;~~

~~*prosecution proceedings* means proceedings referred to in
section 55D(1).~~

~~(2) For the purposes of prosecution proceedings~~

~~(a) the responsible agency~~

~~(i) is to be specified in the charge for the offence;~~

~~(ii) is entitled to act for the Crown in the
proceedings; and~~

~~(iii) subject to any rules of court, has the procedural
rights and obligations of the Crown as the
defendant in the proceedings;~~

~~and~~

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- ~~———— (b) — the complainant may during the proceedings, with the leave of the court, substitute another responsible agency for the agency in the proceedings.~~
- ~~———— (3) — In prosecution proceedings a person authorised by the chief executive of the responsible agency concerned may act on behalf of the agency, and it is not necessary for proof to be given of the authority of the person to do so.~~
- ~~———— (4) — It is sufficient service of a document required to be served on a responsible agency for the purposes of prosecution proceedings if the document —~~
 - ~~———— (a) — is delivered to a person who is or appears to be the chief executive of the responsible agency, or a person acting as such, at a place of business of the responsible agency; or~~
 - ~~———— (b) — is sent by pre-paid letter addressed and posted to the responsible agency at its principal place of business in the State.~~

~~———— [Section 55E inserted by No. 51 of 2004 s. 36.]~~

~~55F. — Proceedings where agency has ceased to exist~~

- ~~———— (1) — In this section —~~
 - ~~———— **successor in law**, in relation to an agency or department, means —~~
 - ~~———— (a) — the sole successor; or~~
 - ~~———— (b) — if there is more than one successor, the one that has the relevant functions formerly vested in the agency or department.~~
- ~~———— (2) — If an agency or department referred to in section 55D(1)(a) —~~
 - ~~———— (a) — has ceased to exist; but~~
 - ~~———— (b) — has a successor in law to which section 55C(2) does not apply;~~

~~the successor in law is the responsible agency for the purposes of section 55D(1).~~

~~(3) If an agency or department referred to in section 55D(1)(a) —~~

~~(a) has ceased to exist; and~~

~~(b) either —~~

~~(i) it has no apparent successor in law; or~~

~~(ii) there is doubt as to which agency or department has the relevant functions;~~

~~the responsible agency for the purposes of that section is such agency of the Crown as the Minister determines.~~

~~[Section 55F inserted by No. 51 of 2004 s. 36.]~~

~~55G. Penalties in proceedings against the Crown~~

~~(1) In subsection (3)(b) —~~

~~*successor in law*, in relation to an agency or department, means —~~

~~(a) the successor in law as defined in section 55F(1); or~~

~~(b) the agency of the Crown determined under section 55F(3).~~

~~(2) The penalty that may be imposed on the Crown if it is convicted of an offence against this Act in proceedings referred to in section 55D(1) is the penalty applicable to a body corporate.~~

~~(3) In proceedings referred to in section 55D(1), a higher penalty may be imposed for an offence involving a responsible agency on the ground that it is a subsequent offence, only if the acts or omissions constituting the previous offence or offences were those of —~~

~~(a) the same responsible agency; or~~

~~(b) a responsible agency of which it is the successor in law.~~

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~~— (4) — A penalty imposed in proceedings referred to in section 55D(1)
cannot be enforced under the *Fines, Penalties and Infringement
Notices Enforcement Act 1994*.~~

~~———— [Section 55G inserted by No. 51 of 2004 s. 36.]~~

Division 3 — Undertaking by offender in lieu of payment of fine

~~———— [Heading inserted by No. 51 of 2004 s. 36.]~~

~~55H. — Terms used~~

~~———— In this Division ———~~

Infringement notice offences and modified penalties

[r. 271]

Table

<u>Item</u>	<u>Provision</u>	<u>Modified penalty for an individual (\$)</u>	<u>Modified penalty for a body corporate (\$)</u>
<u>1.</u>	<u>Regulation 13B(3)</u>	<u>100</u>	<u>500</u>
<u>1A.</u>	<u>Regulation 13B(4)</u>	<u>100</u>	<u>500</u>
<u>1B.</u>	<u>Regulation 20(2)</u>	<u>600</u>	<u>3 000</u>
<u>2.</u>	<u>Regulation 22</u>	<u>300</u>	<u>1 500</u>
<u>3.</u>	<u>Regulation 54</u>	<u>600</u>	<u>3 000</u>
<u>4.</u>	<u>Regulation 61</u>	<u>600</u>	<u>3 000</u>
<u>5.</u>	<u>Regulation 69(1)</u>	<u>600</u>	<u>3 000</u>
<u>6.</u>	<u>Regulation 69(3)</u>	<u>600</u>	<u>3 000</u>
<u>7.</u>	<u>Regulation 70</u>	<u>600</u>	<u>3 000</u>
<u>8.</u>	<u>Regulation 71(1)</u>	<u>600</u>	<u>3 000</u>
<u>9.</u>	<u>Regulation 71(2)</u>	<u>600</u>	<u>3 000</u>
<u>10.</u>	<u>Regulation 74(1)</u>	<u>600</u>	<u>3 000</u>
<u>[11-19</u>	<u>deleted]</u>		
<u>20.</u>	<u>Regulation 101</u>	<u>300</u>	<u>1 500</u>
<u>21.</u>	<u>Regulation 107</u>	(a) <u>for a large packaging or overpack — 300</u>	(a) <u>for a large packaging or overpack — 1 500</u>
		(b) <u>in any other case — 100</u>	(b) <u>in any other case — 500</u>
<u>22.</u>	<u>Regulation 112(1)</u>	<u>600</u>	<u>3 000</u>
<u>23A.</u>	<u>Regulation 112(2)</u>	<u>600</u>	<u>3 000</u>
<u>23B.</u>	<u>Regulation 112(3)</u>	<u>600</u>	<u>3 000</u>

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<u>Item</u>	<u>Provision</u>	<u>Modified penalty for an individual (\$)</u>	<u>Modified penalty for a body corporate (\$)</u>
<u>23C.</u>	<u>Regulation 112(5)</u>	<u>600</u>	<u>3 000</u>
<u>23.</u>	<u>Regulation 116</u>	<u>600</u>	<u>3 000</u>
<u>24.</u>	<u>Regulation 119</u>	<u>600</u>	<u>3 000</u>
<u>25.</u>	<u>Regulation 123(1)</u>	<u>300</u>	<u>—</u>
<u>25A.</u>	<u>Regulation 123(2)</u>	<u>300</u>	<u>—</u>
<u>26.</u>	<u>Regulation 127(1)</u>	<u>300</u>	<u>—</u>
<u>27.</u>	<u>Regulation 127(2)</u>	<u>300</u>	<u>—</u>
<u>27.</u>	<u>Regulation 138(3)</u>	<u>300</u>	<u>1 500</u>
<u>[28</u>	<u><i>deleted</i></u>		
<u>29.</u>	<u>Regulation 141(1)</u>	<u>300</u>	<u>—</u>
<u>30.</u>	<u>Regulation 141(3)</u>	<u>300</u>	<u>—</u>
<u>31.</u>	<u>Regulation 142(2)</u>	<u>600</u>	<u>3 000</u>
<u>32.</u>	<u>Regulation 142(3)</u>	<u>100</u>	<u>500</u>
<u>33.</u>	<u>Regulation 143(2)</u>	<u>600</u>	<u>3 000</u>
<u>34.</u>	<u>Regulation 143(3)</u>	<u>100</u>	<u>500</u>
<u>35.</u>	<u>Regulation 146(1)</u>	<u>300</u>	<u>—</u>
<u>36.</u>	<u>Regulation 147</u>	<u>300</u>	<u>1 500</u>
<u>37.</u>	<u>Regulation 150(1)</u>	<u>200</u>	<u>1 000</u>
<u>38.</u>	<u>Regulation 151(1)</u>	<u>200</u>	<u>1 000</u>
<u>39.</u>	<u>Regulation 152</u>	<u>300</u>	<u>1 500</u>
<u>40.</u>	<u>Regulation 153</u>	<u>300</u>	<u>1 500</u>
<u>41.</u>	<u>Regulation 154</u>	<u>200</u>	<u>—</u>
<u>42.</u>	<u>Regulation 155(2)</u>	<u>200</u>	<u>—</u>
<u>43A</u>	<u>Regulation 156A(2)</u>	<u>300</u>	<u>1 500</u>
<u>43.</u>	<u>Regulation 158</u>	<u>300</u>	<u>1 500</u>

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<u>Item</u>	<u>Provision</u>	<u>Modified penalty for an individual (\$)</u>	<u>Modified penalty for a body corporate (\$)</u>
<u>44.</u>	<u>Regulation 159(1)</u>	<u>300</u>	<u>1 500</u>
<u>45.</u>	<u>Regulation 160(1)</u>	<u>200</u>	<u>—</u>
<u>46.</u>	<u>Regulation 160(2)</u>	<u>100</u>	<u>—</u>
<u>47.</u>	<u>Regulation 160(3)</u>	<u>200</u>	<u>—</u>
<u>48.</u>	<u>Regulation 161(1)</u>	<u>200</u>	<u>—</u>
<u>49.</u>	<u>Regulation 161(2)</u>	<u>200</u>	<u>—</u>
<u>50.</u>	<u>Regulation 163</u>	<u>600</u>	<u>3 000</u>
<u>51.</u>	<u>Regulation 164(1)</u>	<u>600</u>	<u>3 000</u>
<u>52.</u>	<u>Regulation 165(1)</u>	<u>200</u>	<u>—</u>
<u>53.</u>	<u>Regulation 166(2)</u>	<u>100</u>	<u>—</u>
<u>54.</u>	<u>Regulation 169</u>	<u>100</u>	<u>—</u>
<u>55.</u>	<u>Regulation 170</u>	<u>200</u>	<u>—</u>
<u>56.</u>	<u>Regulation 171(2)</u>	<u>600</u>	<u>—</u>
<u>57.</u>	<u>Regulation 172</u>	<u>600</u>	<u>—</u>
<u>58.</u>	<u>Regulation 173</u>	<u>600</u>	<u>—</u>
<u>59.</u>	<u>Regulation 174</u>	<u>600</u>	<u>—</u>
<u>60.</u>	<u>Regulation 177(2)</u>	<u>600</u>	<u>3 000</u>
<u>61.</u>	<u>Regulation 177(3)</u>	<u>600</u>	<u>3 000</u>
<u>62.</u>	<u>Regulation 178(4)</u>	<u>300</u>	<u>1 500</u>
<u>63.</u>	<u>Regulation 179(2)</u>	<u>300</u>	<u>1 500</u>
<u>[64]</u>	<u><i>deleted</i></u>		
<u>65.</u>	<u>Regulation 185(1)</u>	<u>600</u>	<u>3 000</u>
<u>66.</u>	<u>Regulation 237(2)</u>	<u>100</u>	<u>500</u>
<u>67.</u>	<u>Regulation 237(3)</u>	<u>100</u>	<u>500</u>
<u>68.</u>	<u>Regulation 237(6)</u>	<u>100</u>	<u>500</u>

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<u>Item</u>	<u>Provision</u>	<u>Modified penalty for an individual (\$)</u>	<u>Modified penalty for a body corporate (\$)</u>
69.	<u>Regulation 239</u>	<u>100</u>	<u>—</u>
70.	<u>Regulation 240</u>	<u>100</u>	<u>—</u>
71.	<u>Regulation 243</u>	<u>600</u>	<u>3 000</u>
71A.	<u>Regulation 244(3)</u>	<u>600</u>	<u>3 000</u>
72.	<u>Regulation 247(2)</u>	<u>100</u>	<u>500</u>
73.	<u>Regulation 248(2)</u>	<u>100</u>	<u>500</u>
74.	<u>Regulation 257(1)</u>	<u>600</u>	<u>3 000</u>
75.	<u>Regulation 258(1)</u>	<u>600</u>	<u>3 000</u>
76.	<u>Regulation 259(2)</u>	<u>200</u>	<u>1 000</u>

~~[Schedule 1—**convicted** means found guilty of an offence,
whether after a plea of guilty or otherwise;~~

~~**court** means a safety and health magistrate exercising
jurisdiction under section 51C(1)(b);~~

~~**relevant offence** means an offence against—~~

~~(a) section 24(4), 30(7), 35(4), 38(2), 39(3), 45(5), 47(1),
48(4), (5) or (6) or 49(5) or (6); or~~

~~(b) the regulations.~~

~~[Section 55H inserted by No. 51 of 2004 s. 36.]~~

55I. Court may allow offender to make election

~~(1) Where—~~

~~(a) a person (the **offender**) is convicted of one or more
relevant offences; and~~

~~(b) the court has fined the offender,~~

~~the court may, subject to subsection (2), make an order allowing
the offender to elect either—~~

~~(c) to pay the fine or fines; or~~

- ~~————— (d) as an alternative, to enter into an undertaking with the Commissioner under section 55M not later than a day specified by the court.~~
- ~~————— (2) A court is not to make an order under this section unless the court is satisfied that —~~
- ~~————— (a) the breach of the relevant offence did not result in physical harm to any person;~~
- ~~————— (b) the offender wishes an order to be made and the complainant does not oppose that being done;~~
- ~~————— (c) the offender and the Commissioner are likely to reach agreement on the provisions of the proposed undertaking within the time that the court proposes to specify under subsection (1)(d); and~~
- ~~————— (d) the cost to the offender of complying with the proposed undertaking will be substantially equivalent to the amount of the fine or fines imposed.~~
- ~~————— (3) After the court has fined the offender, the court may adjourn the proceedings to allow —~~
- ~~————— (a) the offender time to consider whether the offender wishes an order to be made; and~~
- ~~————— (b) the complainant time to consider whether to oppose that being done,~~
- ~~————— as mentioned in subsection (2)(b).~~
- ~~————— (4) Nothing in this Division limits the powers of a court under the Sentencing Act 1995.~~
- ~~————— [Section 55I inserted by No. 51 of 2004 s. 36.]~~

55J. Making of election

- ~~————— (1) An election is made, pursuant to an order under section 55I(1), by the offender —~~
- ~~————— (a) lodging an election in writing with the clerk of the court in which the order was made; and~~

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- ~~———— (b) — serving a copy of the election on the Commissioner,
———— not later than 28 days after the day on which the order was
———— made.~~
- ~~———— (2) — If —~~
- ~~———— (a) — an order is made under section 55I(1); but~~
- ~~———— (b) — the offender fails to make an election in accordance with
———— subsection (1),~~
- ~~———— the offender is taken, at the expiry of the period mentioned in
———— subsection (1), to have elected to pay the fine or fines.~~
- ~~———— [Section 55J inserted by No. 51 of 2004 s. 36.]~~

55K. — Failure to enter into undertaking

- ~~———— An election under section 55J to enter into an undertaking lapses
———— if the undertaking is for any reason not entered into before the
———— time allowed under section 55I(1)(d).~~
- ~~———— [Section 55K inserted by No. 51 of 2004 s. 36.]~~

55L. — Time for payment of fines

- ~~———— (1) — The liability of the offender to pay the fine or fines in
———— connection with which an order is made under section 55I(1) is
———— suspended by the making of the order.~~
- ~~———— (2) — If the offender elects to pay the fine or fines, for the purposes of
———— section 32 of the *Fines, Penalties and Infringement Notices
———— Enforcement Act 1994* the fine or fines are taken to have been
———— imposed on the day on which the election is made.~~
- ~~———— (3) — If the offender is taken by section 55J(2) to have elected to pay
———— the fine or fines, for the purposes of the section referred to in
———— subsection (2) the fine or fines are taken to have been imposed
———— at the time mentioned in section 55J(2).~~
- ~~———— (4) — If —~~
- ~~———— (a) — the offender elects to enter into an undertaking; but~~
- ~~———— (b) — the election lapses under section 55K,~~

~~for the purposes of the section referred to in subsection (2) the fine or fines are taken to have been imposed on the day specified under section 55I(1)(d).~~

~~[Section 55L inserted by No. 51 of 2004 s. 36.]~~

55M. Nature and terms of undertaking

~~(1) An undertaking for the purposes of this Division is a document by which the offender gives undertakings to the Commissioner that the offender will—~~

~~(a) take the action specified in the undertaking;~~

~~(b) bear the costs and expenses of doing so; and~~

~~(c) complete all of the required action not later than a day specified in the document.~~

~~(2) The action required to be taken by the offender is to come within the provisions described in section 55N(2) or (3).~~

~~(3) The provisions of the undertaking are to be such as are agreed between the Commissioner and the offender.~~

~~(4) The Commissioner is to furnish a copy of an undertaking, and of any amendment made under section 55Q, to the court concerned.~~

~~[Section 55M inserted by No. 51 of 2004 s. 36.]~~

55N. What may be included in undertaking

~~(1) In this section—~~

~~*specified* means specified in the undertaking.~~

~~(2) An undertaking is to provide for the offender to do one or more of the following—~~

~~(a) to take specified steps for the improvement of occupational safety and health—~~

~~(i) at a specified workplace; or~~

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- ~~_____ (ii) in connection with the business or operations of the offender;~~
- ~~_____ (b) to take specified steps to publicise details of _____~~
- ~~_____ (i) any specified offence;~~
- ~~_____ (ii) its consequences;~~
- ~~_____ (iii) the amount of the fine or fines imposed and the fact that the undertaking has been entered into under this Division; or~~
- ~~_____ (iv) any other related matter;~~
- ~~_____ (c) to remedy any consequence of a specified offence, so far as it is practicable to do so, but not in a way that is excluded by subsection (4);~~
- ~~_____ (d) to carry out a specified project or activity for the improvement of occupational safety and health _____~~
- ~~_____ (i) in the community;~~
- ~~_____ (ii) in a particular section of the community; or~~
- ~~_____ (iii) in connection with a particular kind of activity in the State.~~
- ~~_____ (3) The Commissioner may require that an undertaking contain any incidental or supplementary provision that the Commissioner considers necessary or expedient to achieve its purpose, including provision for _____~~
- ~~_____ (a) the reporting of matters; and~~
- ~~_____ (b) providing proof of compliance;~~
- ~~_____ to the Commissioner.~~
- ~~_____ (4) An undertaking cannot provide for the offender to take any action _____~~
- ~~_____ (a) that the offender has a duty to take in order to comply with any provision of this Act; or~~
- ~~_____ (b) for the taking of which an improvement notice or a prohibition notice could be issued.~~

~~[Section 55N inserted by No. 51 of 2004 s. 36.]~~

55O. Effect of undertaking

~~The liability of the offender to pay the fine or fines in connection with which the undertaking is given —~~

~~(a) is suspended by the giving of the undertaking; and~~

~~(b) is cancelled by the full discharge of the offender's obligations under the undertaking.~~

~~[Section 55O inserted by No. 51 of 2004 s. 36.]~~

55P. Failure to comply with undertaking

~~(1) An offender commits an offence if the offender fails to fully discharge the obligations under an undertaking before the day specified in the undertaking in accordance with section 55M(1)(c).~~

~~(2) A court that convicts an offender of an offence against subsection (1) must order that the fine or fines to which the undertaking relates be paid in addition to any penalty imposed for the offence against subsection (1).~~

~~(3) For the purposes of section 32 of the *Fines, Penalties and Infringement Notices Enforcement Act 1994*, the fine or fines to which an order under subsection (2) applies are taken to be imposed on the day on which that order is made.~~

~~[Section 55P inserted by No. 51 of 2004 s. 36.]~~

55Q. Amendment of undertaking

~~An undertaking may be amended by an instrument in writing signed by the offender and the Commissioner.~~

~~[Section 55Q inserted by No. 51 of 2004 s. 36.]~~

55R. Undertaking may be published

~~The Commissioner may cause an undertaking to be published in any manner the Commissioner thinks fit including —~~

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- ~~_____ (a) by publication in a newspaper; or~~
- ~~_____ (b) by posting a copy of the undertaking on an internet
website maintained by the Commissioner.~~
- ~~_____ *[Section 55R inserted by No. 51 of 2004 s. 36.]*~~

Part VIII—Miscellaneous

[Heading inserted by No. 43 of 1987 s. 13.]

56. Discrimination

- ~~(1) If an employer or prospective employer in any way treats an employee or prospective employee less favourably than would otherwise be the case for the dominant or substantial reason that the employee or prospective employee—~~
- ~~(a) is or has been a member of a safety and health committee;~~
 - ~~(b) performs or has performed any function as a member of a safety and health committee;~~
 - ~~(c) gives or has given assistance or information to an inspector, safety and health representative or any member of a safety and health committee; or~~
 - ~~(d) makes or has made a complaint in relation to safety or health to—~~
 - ~~(i) the Commissioner;~~
 - ~~(ii) an inspector;~~
 - ~~(iii) a person who is or was his or her employer or fellow employee;~~
 - ~~(iv) a safety and health representative; or~~
 - ~~(v) a member of a safety and health committee,~~
- ~~the employer or prospective employer commits an offence.~~
- ~~(2) A trade union that in any way treats a person less favourably than it otherwise would for the dominant or substantial reason of the manner in which he or she performs or has performed any function as a safety and health representative or a member of a safety and health committee commits an offence.~~
- [Section 56 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 43 and 47; No. 51 of 2004 s. 56, 99, 102(1) and 112.]*

s. 57

~~57.~~ in Codes of practice

- ~~— (1) For the purpose of providing practical guidance to employers, self-employed persons, employees, and other persons that are subject to a duty under Part III of this Act, the Minister may, upon the recommendation of the Commission, approve any code of practice.~~
- ~~— (2) A code of practice may consist of any code, standard, rule, specification or provision relating to occupational safety or health that is prepared by the Commission or any other body and may incorporate by reference any other such document either as it is in force at the time the code of practice is approved or as it may from time to time thereafter be amended.~~
- ~~— (3) The Minister may, upon the recommendation of the Commission, approve any revision of the whole or any part of a code of practice or revoke the approval of a code of practice.~~
- ~~— (4) The Minister shall cause to be published in the *Government Gazette* 22 Jun 2010 p. 2740; 13 Jun 2014 p. 1949-50; notice of every approval or revocation under this section and the approval or revocation comes into force on the day of such publication.~~
- ~~— (5) The Minister shall cause a copy of every code of practice, and any document incorporated in it by reference, and any revision or revocation of a code of practice to be laid before each House of Parliament within 14 sitting days of such House.~~
- ~~— (6) The Minister shall cause a copy of every code of practice, including any revision thereof and any document incorporated in it by reference, to be made available, without charge, for public inspection.~~
- ~~— (7) A person is not liable to any civil or criminal proceedings by reason only that the person has not complied with a provision of a code of practice.~~
- ~~— (8) Where it is alleged in a proceeding under this Act that a person has contravened a provision of this Act or the regulations in~~

relation to which a code of practice was in effect at the time of the alleged contravention—

(a) the code of practice is admissible in evidence in that proceeding; and

(b) demonstration that the person complied with the provision of the Act or regulations whether or not by observing that provision of the code of practice is a satisfactory defence.

[Section 57 inserted by No. 43 of 1987 s. 13; amended by No. 30 of 1995 s. 44 and 47; No. 51 of 2004 s. 100.]

57A. Visitors to comply with directions

(1) In this section—

authorised person, in relation to a workplace, means—

(a) an employer of any employee at the workplace, including a person that is an employer by operation of section 23D, 23E or 23F;

(b) any self-employed person carrying out work at the workplace; and

(c) a person at the workplace who has the management and control of—

(i) the workplace; or

(ii) the work being carried out at the workplace;

conduct includes a failure to do a particular act or thing;

employee includes a person who is an employee by operation of section 23D, 23E or 23F.

(2) Subsection (3) applies if—

(a) a person (a **visitor**) is at a workplace otherwise than in the capacity of—

(i) an employer;

(ii) an employee;

(iii) a self-employed person; or

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- ~~_____ (iv) a person having control, to any extent, of the
workplace;~~
- ~~_____ and~~
- ~~_____ (b) an authorised person believes on reasonable grounds
that _____~~
- ~~_____ (i) any conduct of the visitor at the workplace; or~~
- ~~_____ (ii) the presence of the visitor in the workplace or in
a particular part of the workplace,~~
- ~~_____ constitutes a hazard to any person.~~

~~_____ (3) The authorised person may direct the visitor _____~~

~~_____ (a) to immediately cease engaging in the conduct
concerned; or~~

~~_____ (b) to immediately leave the workplace and not to return as
a visitor to the workplace until permitted by the
authorised person to do so.~~

~~_____ (4) A person who, without reasonable excuse, fails to comply with a
direction given to the person under subsection (3) commits an
offence.~~

~~_____ [Section 57A inserted by No. 51 of 2004 s. 113.]~~

**58. Governor may transfer administration of certain laws to
Minister**

~~_____ (1) For the purposes of facilitating the coordination of the
administration of laws relating to occupational safety and
health, where the Governor is of the opinion that _____~~

~~_____ (a) any law or a provision of a law relates to occupational
safety and health and that law or that provision is
administered by a Minister other than the Minister
charged with the administration of this Act the Governor
may by order transfer the administration of that law or
that provision to the Minister;~~

~~_____ (b) any law or provision of a law not relating to
occupational safety and health that is administered by~~

~~the Minister refers to an officer of the department the Governor may order that the reference shall be read and construed as a reference to an officer specified in the order,~~

~~and any such order shall have effect accordingly.~~

~~(2) An order made under subsection (1) may be amended or revoked by the Governor.~~

~~(3) An order made under subsection (1) or subsection (2) shall be published in the *Government Gazette* and shall be laid before each House of Parliament within 14 sitting days of such House.~~

~~(4) An order under this section may provide for the transfer of any function imposed by the transferred law from the officer or authorised person specified in that law to an officer of the department who has the relevant qualifications and whose office or designation is specified in the order and any duty or power conferred by or under the transferred law may be carried out or exercised by the officer so specified and any direction or order given by the officer so specified under or for the purposes of the transferred law shall have effect accordingly.~~

~~(5) A transferred law is deemed to be a prescribed law for the purposes of section 14(1)(b)(ii).~~

~~[Section 58, formerly section 19, renumbered as section 58 by No. 43 of 1987 s. 14; amended by No. 30 of 1995 s. 47.]~~

59. Liability of members

~~A person who is or has been Commissioner or member or acting member of the Commission or an inspector is not personally liable for anything done or omitted in good faith in, or in connection with, the exercise or purported exercise of any power conferred, or the carrying out of any duty or function imposed on the Commissioner, the Commission or an inspector, as the case requires, under this Act.~~

~~[Section 59, formerly section 20, renumbered as section 59 and amended by No. 43 of 1987 s. 15.]~~

s. 60

60.—— Regulations

- ~~—— (1) The Governor may make regulations prescribing all matters that are necessary or convenient to be prescribed for giving effect to the purposes of this Act.~~
- ~~—— (2) Without affecting the generality of subsection (1), the Governor may make regulations ——~~
 - ~~—— (a) requiring a reference in a transferred law to be read and construed in the manner specified in the regulations;~~
 - ~~—— (b) containing such provisions as in the opinion of the Governor are necessary or convenient for the purpose of dealing with matters that are incidental to or consequential on the making of an order under section 58 and of a regulation made pursuant to paragraph (a), including provisions of a savings or transitional nature.~~
- ~~—— (3) A provision of a regulation made under subsection (2) may take effect on and from a day that is earlier than the day on which the regulation is published in the *Government Gazette*.~~
- ~~—— (4) To the extent to which a provision of a regulation made under this section takes effect on and from a day that is earlier than the day on which it is published in the *Government Gazette*, the provision does not operate ——~~
 - ~~—— (a) to affect, in a manner prejudicial to any person (other than the State or a public authority), the rights of that person existing before that day of publication; or~~
 - ~~—— (b) to impose a liability on any person (other than the State or a public authority) in respect of anything done or omitted to be done before that day of publication.~~
- ~~—— (5) Without affecting the generality of subsection (1) regulations may be made with respect to any of the matters specified in Schedule 1.~~

- ~~— (6) Regulations made under this Act may provide that contravention of a regulation constitutes an offence and provide for penalties not exceeding —~~
- ~~— (a) in the case of an offence committed by a person as an employee —~~
- ~~— (i) for a first offence, a fine of \$5 000; and~~
- ~~— (ii) for a subsequent offence, a fine of \$6 250;~~
- ~~— (b) in the case of an offence committed by an individual where paragraph (a) does not apply —~~
- ~~— (i) for a first offence, a fine of \$25 000; and~~
- ~~— (ii) for a subsequent offence, a fine of \$31 250;~~
- ~~— or~~
- ~~— (c) in the case of an offence committed by a body corporate —~~
- ~~— (i) for a first offence, a fine of \$50 000; and~~
- ~~— (ii) for a subsequent offence, a fine of \$62 500,~~
- ~~— and if the offence is a continuing one a further penalty not exceeding —~~
- ~~— (d) \$200, in the case of an offence committed by a person as an employee;~~
- ~~— (e) \$1 000, in the case of an offence committed by an individual where paragraph (d) does not apply; and~~
- ~~— (f) \$2 000, in the case of an offence committed by a body corporate,~~
- ~~— for each day or part of a day during which the offence continues after notice of the offence has been given by or on behalf of an inspector to the offender.~~
- ~~— [Section 60, formerly section 21, renumbered as section 60 and amended by No. 43 of 1987 s. 16; No. 30 of 1995 s. 45; No. 51 of 2004 s. 37; No. 36 of 2009 s. 14.]~~

s. 61A

61A. — Review of Commissioner's decisions under the regulations

~~— (1) — In this section —~~

~~— *reviewable decision* means —~~

~~— (a) — a decision made under the regulations by the
Commissioner himself or herself; and~~

~~— (b) — a determination of the Commissioner on the review,
under the regulations, of a decision made under the
regulations by a person other than the Commissioner,
whether or not the decision was made by that person as a
delegate of the Commissioner,~~

~~— but does not include a decision made by a person acting as a
delegate of the Commissioner.~~

~~— (2) — A person who is not satisfied with a reviewable decision may,
within 14 days of receiving notice of the decision, refer the
decision to the Tribunal for review.~~

~~— (3) — On reference of a decision under subsection (2), the Tribunal is
to inquire into the circumstances relevant to the decision and
may —~~

~~— (a) — affirm the decision; or~~

~~— (b) — set aside the decision; or~~

~~— (c) — substitute for the decision any decision that the Tribunal
considers the Commissioner should have made in the
first instance.~~

~~— (4) — Pending the decision on a reference under this section, the
operation of the reviewable decision is to continue, subject to
any decision to the contrary made by the Tribunal.~~

~~— [Section 61A inserted by No. 36 of 2009 s. 15.]~~

61. — Review of Act

~~— (1) — The Minister shall carry out a review of the operations of this
Act on every fifth anniversary of the commencement of this Act~~

~~and in the course of such review the Minister shall consider and have regard to—~~

- ~~———— (a) the attainment of the objects of this Act;~~
- ~~———— (b) the administration of the Acts and laws relating to occupational safety and health administered by the Minister;~~
- ~~———— (c) the effectiveness of the operations of the Commission, any advisory committees and the department;~~
- ~~———— (d) the need for the continuation of the Commission and any committees established under this Act;~~
- ~~———— (e) such other matters as appear to him or her to be relevant.~~
- ~~———— (2) The Minister shall prepare a report based on his or her review of this Act and shall, as soon as is practicable after its preparation, cause the report to be laid before each House of Parliament.~~
- ~~———— [Section 61, formerly section 22, renumbered as section 61 by No. 43 of 1987 s. 17 Nov 2015 p. 4701; 11 Jul 2017 p. 3833; amended by No. 30 of 1995 s. 47; No. 51 of 2004 s. 102(2) and (3).]~~

Schedule 1 — Subject matter for regulations

[s. 60(5)]

~~[Heading inserted by No. 36 of 2009 s. 16.]~~

- ~~1. Safety and health standards or procedures to be complied with~~
 - ~~(a) at any workplace;~~
 - ~~(b) in the performance of any work;~~
 - ~~(c) in the use, cleaning, maintenance, disposal or transportation of any plant;~~
 - ~~(d) in the use, handling, treatment, removal, processing, storing, transport or disposal of any substance;~~
 - ~~(e) in the design, manufacture, importing or supplying of any plant;~~
 - ~~(f) in the design, manufacture, importing or supplying of any substance; or~~
 - ~~(g) in the design or construction of any building or structure, including a temporary structure.~~
- ~~1A. The imposition of duties on persons in relation to~~
 - ~~(a) the identification of hazards at workplaces;~~
 - ~~(b) the assessment of risks resulting from such hazards; and~~
 - ~~(c) the taking of remedial or other action.~~
- ~~2. The safeguarding, siting, installing, testing, altering, repairing, maintaining or dismantling of any plant.~~
- ~~3. The testing, analysis, labelling or marking of any plant or substance.~~
- ~~4. The registration or licensing of~~
 - ~~(a) any work, plant, process, substance or workplace;~~
 - ~~(b) any person carrying out any kind of work,~~
 - ~~by the Commissioner or any other prescribed person or authority.~~
- ~~4A. Duties to be observed by~~
 - ~~(a) the owner; or~~
 - ~~(b) a person having the control,~~

-
- of plant used at a workplace.
- 5. The issuing of certificates of competency or provisional certificates of competency for persons engaged in prescribed work and for the duration, variation, suspension or cancellation of such certificates.
- 6. The prohibition of the carrying on of prescribed activities at workplaces or the performance of prescribed work except by or under the supervision of persons with prescribed qualifications, training or experience.
- 6A. The prohibition of the use, handling, treatment, storage, transportation or disposal of any prescribed substance at a workplace.
- 7. The taking of any measures or precautions to avoid any accident or dangerous occurrence at any workplace.
- 8. The taking of any action in the event of any accident, injury, disease or dangerous occurrence.
- 9. The monitoring by an employer of —
- (a) the health of the employees of the employer, subject to their consent; and
- (b) working conditions at each workplace at which an employee of the employer, carries out work.
- 10. The supply, use and maintenance of clothing and equipment for occupational safety or health purposes and the approval of such clothing and equipment for particular purposes.
- 11. Fire safety rules and procedures and the provision and maintenance of fire protection equipment.
- 12. The appointment of persons who are to be responsible for the supervision of occupational safety and health in prescribed circumstances or industries.
- 13. The form and use of scaffolding, form work, false work and related equipment.
- 14. The carriage and handling of cash.
- 15. The provision of first aid facilities at workplaces and the standards for such facilities.

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Schedule 1 Subject matter for regulations

- ~~— 16. The provision by an employer of suitably qualified persons who are available to advise the employer on matters concerning the safety and health of the employees of the employer.~~
- ~~— 17. The medical examination of employees subject to their consent.~~
- ~~— 18. The provision by employers or occupiers of prescribed facilities for the safety and health of persons at the workplace.~~
- ~~— 19. The employment of young persons.~~
- ~~— 20. The safety of persons in isolated or remote areas.~~
- ~~— 21. Standards for the manual handling of loads by employees.~~
- ~~— 22. The safety of persons in the vicinity of any workplace.~~
- ~~— 23. The giving of notices, in specified circumstances, to the Minister, an inspector or other prescribed person or authority.~~
- ~~— 24. The keeping and provision of records and returns for the purposes of this Act (including records relating to accidents and dangerous occurrences that occur at work and work related injuries suffered by employees).~~
- ~~— 24A. The reporting of injuries incurred at workplaces, or diseases affecting employees at workplaces, other than injuries and diseases prescribed for the purposes of section 231.~~
- ~~— 25. The provision by an employer to the employees of the employer, in such languages as may be appropriate, of information relating to safety and health in connection with the work carried out by the employee.~~
- ~~— 26. Procedures that are to be carried out on inspections under this Act.~~
- ~~— 26A. The conduct of elections under this Act by secret ballot.~~
- ~~— [26B. deleted]~~
- ~~— 26C. The remuneration of agents for services performed in connection with appearances under section 51D.~~
- ~~— 26D. The establishment of safety and health committees by employers.~~
- ~~— 27. Fees (including differential and periodic fees) for the purpose of this Act.~~

- ~~— 28. — Forms to be used for the purposes of this Act.~~
- ~~— 29. — The recovery of fees under this Act.~~
- ~~— 30. — Standards in relation to the use of any physical, biological, chemical or psychological hazard (including standards concerning exposure to any of those hazards).~~
- ~~— 31. — The approval of laboratories for the analysis of samples taken under this Act and the conduct of tests for the purposes of this Act.~~

~~[Schedule inserted by No. 43 of 1987 s. 18; amended by No. 30 of 1995 s. 46 and 47; No. 51 of 2004 s. 13, 57, 69(4), 101 and 114.]~~

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Notes

- ¹ This is a compilation of the *Dangerous Goods Occupational Safety (Road and Rail Transport of Non-explosives) Regulations 2007* *Health Act 1984* and includes the amendments made by the other written laws referred to in the following table ^{3 4a, 47}. The table also contains information about any reprint.

Compilation table

Citation	Short title	Gazette	Number and year	Assent	C
<i>Dangerous Goods Occupational Health, Safety (Road and Rail Transport of Non-explosives) Regulations 2007</i>	<i>Welfare Act 1984</i> ⁵	101 of 1984		3149 Dec 2007 p. 6893-70561984	r. R A 1 2
<i>Dangerous Goods Occupational Health, Safety (Road and Rail Transport of Non-explosives) Welfare Amendment Regulations 2008</i>	<i>Act 1987</i>	30 Jun 2008 p. 3129-3043 of 1987		6 Jul 1987	r. R A 3 10
<i>Dangerous Goods Occupational Health, Safety (Road and Rail Transport of Non-explosives) Welfare Amendment Regulations</i>	<i>Act (No. 2) 2008-1987</i>	23 Jan 2009 p. 15755 of 1987		3 Nov 1987	r. R (s)
Reprint of the Occupational Health, Safety and Welfare Act 1984 as at 23 Jan 1989 (includes amendments listed above)					
<i>Occupational Health, Safety and Welfare Amendment Act 1990</i>		84 of 1990		17 Dec 1990	4
<i>Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations (No. 2) 2009</i>	<i>Acts Amendment (Public Sector Management) Act 1994 s. 19</i>	32 of 1994		1629 Jun 2009 p. 2193-41994	r. R r. 34
<i>Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations 2010</i>	<i>Mines Safety and Inspection Act 1994 s. 109</i>	22 Jun 2010 p. 2715-4062 of 1994		7 Nov 1994	r. R (s) 8
<i>Dangerous Goods Occupational Safety (Road and Rail Transport of Non-explosives) Health Legislation Amendment Regulations (No. 2) 2010</i>	<i>Act 1995</i>	20 Aug 2010 p. 4070-130 of 1995		11 Sep 1995	r. R r. 4

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Reprint 1: The Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Regulations 2010					
2010 16 Nov 1995 (includes amendments listed above)					
Sentencing (Consequential Provisions) Act 1995 Pt. 55		78 of 1995		16 Jan 1996	4 p.
Industrial Relations Legislation Amendment and Repeal Act 1995 s. 67(5)		79 of 1995		16 Jan 1996	14
Reprint of the Occupational Safety and Health Act 1984 as at 15 May 1996 (includes amendments listed above except the Act 1995)					
Statutes (Repeals and Minor Amendments) Act (No. 2) 1998 s. 56		10 of 1998		30 Apr 1998	34
Occupational Safety and Health (Validation) Act 1998^{7,8}		63 of 1998		12 Jan 1999	12
Reprint of the Occupational Safety and Health Act 1984 as at 22 Mar 1999 (includes amendments listed above)					
Dangerous Goods Occupational Safety (Road and Rail Transport of Non-explosives) Health Amendment Regulations 2012 Act 2002⁹		54 of 2002		3 Aug 2012 p. 3757	603 Jan 2003 r. s. R. A r. r. r. r. R (s
Statutes (Repeals and Minor Amendments) Act 2003 s. 87¹⁰				19 Feb 2013 p. 988	15 Dec 2003 r. R (s
Dangerous Goods Occupational Safety (Road and Rail Transport of Non-explosives) Health Legislation Amendment Regulations 2013 and Repeal Act 2004^{11,12,13}		2 Dec 2013 p. 5497-851	of 2004	12 Nov 2004	r. R r. A 14 p. P an s. 12
Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations 2014 Courts Legislation Amendment and Repeal Act 2004 s. 141		13 Jun 2014 p. 1929-5059	of 2004	23 Nov 2004	r. R r. 3-
Dangerous Goods Mines Safety (Road and Rail Transport of Non-explosives) Inspection Amendment		68 of 2004		8 Jan 2015 p. 131-24	Dec 2004 r. R (s

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Regulations (No. 2) 2014 Act 2004	s. 94				20
Criminal Procedure and Appeals (Consequential and Other Provisions) Act 2004 s. 78 and 80	Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations 2015	16 Dec 2004	2004		20 p. y. s. G 3 p. (G 7 p.
Reprint 25: The Dangerous Goods Occupational Safety (Road and Rail Transport of Non-explosives) Regulations 2007					
(includes amendments listed above)					
Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Regulations (No. 2) 2015	Petroleum Legislation Amendment and Repeal Act 2005 s. 50	13 of 2005	1 Sep 2005		1 p. M s. G 1 p. 9 p.
Planning and Development (Consequential and Transitional Provisions) Act 2005 s. 15		38 of 2005	12 Dec 2005		
Dangerous Goods Safety Regulations	Petroleum Amendment Regulations 2016 Pt. 5	Act 2007 s. 101	21 Dec 2007		6 G
Mines and Petroleum Regulations Amendment (Fees and Levies) Regulations 2016 Pt. 4	Police Amendment Act 2008 s. 15 and s. 23(5)	8 of 2008	31 Mar 2008		2 p. 3 1 (s s. 2 (s G 2 p. 14
Training Legislation Amendment and Repeal Act 2008 s. 57		44 of 2008	10 Dec 2008		
Mines and Petroleum Regulations Amendment (Fees and Charges)		23 Jun 2017 p. 3279-309	1 Jul 2017 (see r. 2(b))		

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Occupational Safety and Health Act 1984

Citation	Short title	Gazetta	Number and year	Assent	
<i>Regulations 2017 Pt. 4</i>	Reprint 6: The Occupational Safety and Health Act 1984 as at 19 Dec 2008 (includes amendments listed above except those in the <i>Petroleum Legislation Amendment and Repeal Act 2005</i> , the <i>Petroleum Amendment Act 2007</i> and the <i>Training Legislation Amendment and Repeal Act 2008</i>)				
<i>Acts Amendment (Bankruptcy) Act 2009 s. 60</i>		18 of 2009		16 Sep 2009	
<i>Dangerous Goods (Road and Rail Transport of Non-explosives) Health Legislation Amendment Regulations 2017 Act 2009 Pt. 2</i>		11 Jul 2017 p. 3820-3336	of 2009	3 Dec 2009	
<i>Mines and Petroleum Regulations Amendment (Fees and Charges) Regulations 2018 Pt. 4</i>		25 Jun 2018 p. 2297-324		1 Jul 2018 (see r. 2(b))	

² *The Dangerous Goods Safety Act 2004 Pt. 3* commenced 1 Mar 2008.

^{14a} On the date as at which this compilation was prepared, provisions referred to in the following table had not come into operation and were therefore not included in this compilation. For the text of the provisions see the endnotes referred to in the table.

Provisions that have not come into operation

Short title	Number and year	Assent	Commencement
<i>Standardisation of Formatting Act 2010 s. 4</i> ¹⁴	19 of 2010	28 Jun 2010	To be proclaimed (see s. 2(b))
<i>Public Sector Reform Act 2010 s. 89</i> ¹⁸	39 of 2010	1 Oct 2010	To be proclaimed (see s. 2(b))

² Now see the *Workplace Relations Act 1996* of the Commonwealth.

³ Formerly referred to the *Petroleum Act 1967*, the short title of which was changed to the *Petroleum and Geothermal Energy Resources Act 1967* by the *Petroleum Amendment Act 2007 s. 5*. The reference was changed under the *Reprints Act 1984 s. 7(3)(gb)*.

⁴ Under the *Public Sector Management Act 1994* s. 112(2), a reference in a written law to the Public Service Commissioner is, unless the contrary intention appears or it is otherwise provided under the *Acts Amendment (Public Sector Management) Act 1994*, to be construed as if it had been amended to be a reference to the Minister for Public Sector Management (as defined in the *Interpretation Act 1984*). This reference was amended under the *Reprints Act 1984* s. 7(5)(a).

⁵ Now known as the *Occupational Safety and Health Act 1984*; short title changed (see note under s. 1).

⁶ The *Dangerous Goods Occupational Safety (Road and Rail Transport of Non-explosives) Amendment Regulations (No. 2) 2010* published in *Gazette* 25 Jun 2010 p. 2873-4 were repealed, and *Health Legislation Amendment Act 1995* s. 49 and 50 are transitional provisions that are of no further effect.

⁷ The *Occupational Safety and Health (Validation) Act 1998* s. 4 reads as follows:
“

4. Validation

(1) In this section—

Commissioner means—

(a) the Commissioner for Occupational Health, Safety and Welfare within the meaning of the *Occupational Health, Safety and Welfare Act 1984* as in force before 1 October 1995; or

(b) the WorkSafe Western Australia Commissioner within the meaning of the *Occupational Safety and Health Act 1984* as in force on and from 1 October 1995.

(2) No act, matter or thing done before 8 October 1996—

(a) by or in respect of William Neil Bartholomaeus; or

(b) under the direction, authority or control or purported direction, authority or control of, or pursuant to a delegation or purported delegation made by, William Neil Bartholomaeus,

in his capacity or purported capacity as Commissioner is, or ever has been, invalid by reason that there was a defect in his appointment as Commissioner, or that he had not been appointed at all.

(3) Each act, matter or thing referred to in subsection (2) is, and always has been, as valid, and effective and authorised by the principal Act as it would have been if William Neil Bartholomaeus had been duly appointed as Commissioner at the time the act, matter or thing was done, the direction, authority or control exercised or the delegation made.

”

⁸—The *Occupational Safety and Health (Validation) Act 1998* s. 5(2) reads as follows:

“

- (2) — Section 52(3) of the *Occupational Safety and Health Act 1984*, as inserted by subsection (1), applies in respect of an offence committed against that Act before the commencement of subsection (1) despite the fact that the time for commencing proceedings for that offence expired before the commencement of subsection (1).

”

⁹—The *Occupational Safety and Health Amendment Act 2002* s. 8 reads as follows:

“

8. — Election of safety and health representatives by police officers before the commencement of this Act

- (1) — In this section —
- ***commencement day*** means the day on which this Act comes into operation;
- ***police officer*** has the same meaning as it has in section 3(1) of the *Occupational Safety and Health Act 1984* on and after the commencement day;
- ***transition period*** means the period of 9 months ending immediately before the commencement day.
- (2) — The provisions listed in the Table to this subsection are to be treated as being in operation during the transition period for the purposes of allowing police officers to elect safety and health representatives for a workplace and for the training of those representatives during that period.

Table

the

1. — This Act

s. 4

s. 5

2. — Occupational Safety and Health Act 1984

s. 3(1)

s. 32(2)(b) and (c)

s. 29

s. 35(1)(e)

s. 30

s. 35(3)(b)

s. 31

s. 56(1)

s. 32(1)

3. ~~Occupational Safety and Health Regulations 1996~~

~~r. 2.2~~

- ~~— (3) The term of a safety and health representative elected before the commencement day begins, for the purpose of section 32(1) of the *Occupational Safety and Health Act 1984*, on the commencement day.~~
- ~~— (4) Despite subsection (3), regulation 2.2(3) of the *Occupational Safety and Health Regulations 1996* applies to a safety and health representative elected before the commencement day in relation to the first 12 months of being so elected.~~

”.

¹⁰—The *Statutes (Repeals and Minor Amendments) Act 2003* s. 87(6) reads as follows:

“

- ~~— (6) The amendment made by subsection (5) to the name of the Commission referred to in that subsection does not affect the appointment of a member of that Commission who holds office immediately before the commencement of this section.~~

”.

¹¹—The *Occupational Safety and Health Legislation Amendment and Repeal Act 2004* s. 44 reads as follows:

“

44. ~~Saving provision for existing safety and health representatives~~

- ~~— The amendments made by section 43 do not affect the continuation in office of any safety and health representative who held office under Part IV of the *Occupational Safety and Health Act 1984* immediately before the commencement of that section.~~

”.

¹²—The *Occupational Safety and Health Legislation Amendment and Repeal Act 2004* s. 51 reads as follows:

“

51. ~~Savings and transitional provisions for existing safety and health committees~~

- ~~— (1) The repeal of section 37 of the *Occupational Safety and Health Act 1984* (the *OSH Act*) by section 50 does not affect the status of a safety and health committee that is in existence under the OSH Act immediately before that repeal.~~

- ~~— (2) Any such committee is to be taken, after the commencement of section 50, to have been established under section 38 or 39B of the OSH Act inserted by section 50, as the case may be.~~
- ~~— (3) If before the commencement of section 50 —~~
 - ~~— (a) a request was made in respect of a workplace under section 36(1) of the OSH Act repealed by section 50; but~~
 - ~~— (b) a safety and health committee had not been established for the workplace under section 37 of the OSH Act so repealed;~~
- ~~— the duty of the employer under section 37 of the OSH Act to establish a safety and health committee for the workplace lapses on that commencement.~~

”.

¹³ — The *Occupational Safety and Health Legislation Amendment and Repeal Act 2004* Pt. 6 Div. 3 reads as follows:

“

Division 3 — Transitional provisions

~~71. Existing referrals to safety and health magistrate~~

- ~~— (1) A matter referred to a safety and health magistrate under the *Occupational Safety and Health Act 1984* and not finally determined before the commencement of section 65 —~~
 - ~~— (a) may continue to be dealt with; and~~
 - ~~— (b) any order made in such a proceeding may be appealed against or enforced;~~
- ~~— as if that section and section 68 had not been enacted.~~
- ~~— (2) A determination or decision of a safety and health magistrate made before the commencement of section 65 may be the subject of —~~
 - ~~— (a) an application for leave to appeal under section 54B(2) of the *Occupational Safety and Health Act 1984* repealed by section 68; and~~
 - ~~— (b) an appeal for which leave is granted under section 54B(2);~~
- ~~— as if section 68 had not been enacted.~~

~~72. Appeal proceedings in progress~~

- ~~— (1) An application for leave to appeal made under section 54B(2) of the *Occupational Safety and Health Act 1984* but not finally determined before the commencement of section 68, and an appeal for which leave is granted on such an application, may be dealt with and determined as if that section had not been enacted.~~

- (2) — An appeal brought under section 54B(2) of the *Occupational Safety and Health Act 1984* but not finally determined before the commencement of section 68, may be dealt with and determined as if that section had not been enacted.

22.

- ¹⁴ — On the date as at which this compilation was prepared, the *Standardisation of Formatting Act 2010* s. 4 had not come into operation. It reads as follows:

4. — Schedule headings reformatted

- (1) — This section amends the Acts listed in the Table.
- (2) — In each Schedule listed in the Table:
- (a) — if there is a title set out in the Table for the Schedule — after the identifier for the Schedule insert that title;
 - (b) — if there is a shoulder note set out in the Table for the Schedule — at the end of the heading to the Schedule insert that shoulder note;
 - (c) — reformat the heading to the Schedule, as amended by paragraphs (a) and (b) if applicable, so that it is in the current format.

Aet	Identifier	Title	Shoulder note
<i>Occupational Safety and Health Act 1984</i>	Schedule		[s. 60(5)]

- ¹⁵ — Footnote no longer applicable.

- ¹⁶ — This amendment took effect on 15 May 2010 when the *Petroleum Legislation Amendment and Repeal Act 2005* s. 50 came into operation, by the *Dangerous Goods Safety (Road and Rail Transport of Non-explosives) Amendment Repeal Regulations 2010* (see *Gazette* 30 Jun 2010 p. 3157). see *Gazette* 14 May 2010 p. 2015.

- ¹⁷ — A reference to the *Petroleum Safety Act 1999* is not included in the table because that Act was repealed before the amendments in Sch. 2 to that Act came into operation. The repeal was made by the *Petroleum Legislation Amendment and Repeal Act 2005* s. 51.

- ¹⁸ — On the date as at which this compilation was prepared, the *Public Sector Reform Act 2010* s. 89 had not come into operation. It reads as follows:

~~89. Various references to “Minister for Public Sector
Management” amended~~

- ~~(1) This section amends the Acts listed in the Table.~~
~~(2) In the provisions listed in the Table delete “Minister for Public
Sector Management” and insert:~~

~~Public Sector Commissioner~~

Table

<i>Occupational Safety and Health Act 1984</i>	s. 8(2), 9(3), 14A(6), 15(4)
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